

On The Boulevard

BELLE REALTY OF LAFAYETTE, LLC · 101-149 ARNOULD BLVD. · LAFAYETTE, LA 70506

PRIVILEGED & CONFIDENTIAL
ATTORNEY-CLIENT
COMMUNICATION

September 29, 2026

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By email: jeremy@lawbecker.com · cc: rachael@lawbecker.com

Re: On The Boulevard (101-149 Arnould Blvd.) and Lot 7, Block M (110 Marie Antoinette St.): exposure to a renewed LCG administrative rezoning

Jeremy,

Enclosed is a brief prepared for Belle's ownership, with Exhibits A-K. It covers the center's exposure if LCG revives the 2022 "100 Block Leonie" administrative rezoning. That proposal named Lot 7, the center's remote parking lot, for CH → MN-1. It never went forward, but the program behind it is still running, and the Johnston-Louisiana corridor code review is the likely vehicle for the next attempt.

WHAT THE PACKAGE SHOWS

- Lot 7 carries the center's parking variance.** The survey records Variance Entry 99-11797 at 344 spaces required and 324 provided, with floor area "limited to available parking spaces." Lot 7 is striped for 32 spaces, which the 324 appears to include. Without them the center is 52 short, against the 20 the variance covers. Brief §4; Ex. B-2, B-3.
- MN-1 on Lot 7 undercuts its use.** A stand-alone parking facility is not permitted in MN. Lot 7's status would then rest on the contiguous-parking rule in § 89-39(d)(2) against the same-lot accessory-use definition. Brief §4; Ex. E-6, E-11, E-18, E-20.
- MN-1 on the center reaches the rent roll.** 41% of scheduled rent sits in uses that would be conditional, nonconforming, or dependent on how staff classifies them. That rises to 54% if the Retail (A) 6,000 SF cap is read per lot. Brief §5; Ex. E-16, J.
- The next notice may be publication only.** Staff reports about 1,100 parcels rezoned since 2019. For a revision of more than ten parcels, the code allows notice by publication without mailing or signs. Brief §3; Ex. E-23, F, H.

WHERE WE WOULD VALUE YOUR VIEW

- A zoning verification request confirming Lot 7 as the center's required contiguous parking under § 89-39(d)(2) and Variance 99-11797.
- Recording a declaration of destination (C.C. art. 741) or other structure tying Lot 7 to the center, and whether Entry 03-060864 (referenced on Lot 7 in the survey) already does so or complicates it.
- Pulling Entries 98-18247, 99-11797 and 03-060864 from the Clerk of Court, and the 2022 Zoning Commission file.
- Our leasing rule for Lot 7: stalls to center tenants only, under § 89-39(f) leases filed with the Administrator, and no third-party leases.
- Engaging in the corridor code review and PlanLafayette update, and whether CM or a § 89-53(e)(4) conditional rezoning is an acceptable fallback.

The brief is an operating analysis for ownership, not a legal opinion. Citations run to stamped exhibit pages (e.g., "Ex. E-18"); the PDF is bookmarked, and Section 8 separates facts from inferences. Exhibit J and Section 5 contain tenant rent data; please treat them as confidential.

Given the firm's planning and zoning work for LCG, let me know if you would like any part of this handled differently. Glad to walk through it at your convenience.

Sincerely,

Adam Abdalla

Property Manager, On The Boulevard, on behalf of Belle Realty of Lafayette, LLC
adam@adamabdalla.com

Enclosure: *Rezoning Exposure: Executive Brief with Exhibits A-K* (Sept. 24, 2026; 126 pp.)

BELLE REALTY OF LAFAYETTE, LLC · ON THE BOULEVARD · 101-149 ARNOULD BLVD., LAFAYETTE, LA

Rezoning Exposure

Executive brief to the owners on the city’s administrative rezoning program, the Lot 7 remote parking lot, and what it would take to protect the center.

WHAT HAPPENED

2022 city-initiated rezoning named Lot 7. Never adopted.

WHY IT RETURNS

A standing rezoning program, the land-use plan, and the Johnston corridor code review.

WHAT’S AT STAKE

Lot 7 carries the center’s parking variance; 41% of rent sits in uses MN-1 restricts.

WHAT TO DO

Put Lot 7’s role on the public record now, before the next proposal.

Brief with Exhibits A-K · Sources cited to exhibit page (e.g., Ex. E-18 = Exhibit E, page 18)

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HOW TO READ THE CITATIONS

Numbered notes appear at the end of the brief. Each note ends with an exhibit pinpoint in bold. Exhibit pages carry a stamp in the upper right (for example “EX. E-18”). Where a statement is an inference or a recommendation rather than a documented fact, the text says so.

SCOPE

This is an operating and risk analysis prepared for ownership. It is not a legal opinion. Positions on Louisiana land-use and civil law flagged below should be confirmed by land-use counsel before filing.

1 THE BOTTOM LINE

SUMMARY

The 2022 rezoning was not a one-off, and it was aimed at the part of the property the center cannot operate without. Lot 7, the remote parking lot at 110 Marie Antoinette, was one of the named parcels.¹ The city never adopted that proposal, but nothing that drove it has changed. The next attempt is likely to come through the Johnston Street corridor code review, possibly with notice by publication only.²³

32

striped spaces on Lot 7; the survey's 324 "provided" (vs. 344 required) appears to include them — confirm (action 4)⁴

-52

spaces short of requirement without Lot 7 (if counted in the 324), against the 20 the variance already covers

41.2%

of monthly rent (\$36,244.34) in suites MN-1 would make conditional, nonconforming or classification-dependent⁵

54%

of rent exposed if the city reads the 6,000 SF retail cap as a total for the whole lot⁶

What the owners should know

- **This is a program, not a proposal.** Planning staff has administratively rezoned about 1,100 parcels since 2019 and reports doing so monthly. Its stated criteria include "hard edges" between heavy commercial and single-family zoning, which describes this block.⁷
- **Taking Lot 7 out of commercial zoning takes the center's parking with it.** The variance limits floor area to available parking. MN-1 does not allow a stand-alone parking lot, and the code's accessory-use rule assumes parking on the same lot as the use it serves.⁸⁹
- **Rezoning the center itself would hit the rent roll.** Jason's Deli and Graze would need conditional use permits at any change of tenant, expansion or relocation. The largest tenant would exceed the MN retail size cap. Future leasing would be limited to the MN use list.¹⁰
- **The city's own map misdescribes Lot 7.** The land-use layer staff relies on shows it as a single-family home. The assessor shows commercial use.¹¹

Decisions requested of ownership

- 1 Authorize protective filings on Lot 7:** a zoning verification request, a recorded parking declaration, and a correction of the land-use layer. (Section 7, items 1–3.)
- 2 Adopt a Lot 7 leasing rule:** parking on Lot 7 may be assigned to center tenants only, under a lease filed with the city. No leases to outside parties. (Section 6.)
- 3 Authorize the records pull and counsel review:** the 1998/1999 variance instruments, the 2003 servitude the survey references on Lot 7, and the 2022 city file. (Section 7, items 4–5.)
- 4 Set a fallback position** in case the city presses a rezoning anyway: CM zoning, or a conditional rezoning that preserves restaurants and excludes Lot 7. (Section 7, item 8.)

2 WHAT HAPPENED IN 2022

FACTS

On April 27, 2022, LCG Planning noticed a May 16, 2022 Zoning Commission *briefing* on an “LCG-led administrative effort to rezone properties” north of Johnston, west of Arnould and south of Patricia. The notice named 105–123 Leonie Street, 109, 110 and 111 Marie Antoinette, and 100 Montrose Avenue. It proposed moving the CH (Commercial-Heavy) parcels to MN-1 (Mixed-Use Neighborhood) and the RM-1 parcels (Fire Station #6 and Our Savior’s Church) to PI-L. Staff said a formal vote could come as early as June 20, 2022.¹

ADDRESS IN NOTICE	PARCEL	OWNER OF RECORD	ZONING THEN → PROPOSED	ZONING TODAY
110 Marie Antoinette (Lot 7, Blk M)	6009649	Belle Realty of Lafayette — remote parking	CH → MN-1	CH
109 Marie Antoinette (Lot 5, Blk M)	6146857	Rock Hound LLC	CH → MN-1	CH
111 Marie Antoinette (Lot 6, Blk M)	6001471	Begnaud	CH → MN-1	CH
101 & 100 blk Marie Antoinette (Lots 1–4, Blk M)	6129212 6001472	Our Savior’s Church	RM-1 → PI-L	RM-1
100 Montrose Ave.	6128591	City of Lafayette (Fire Sta. #6)	RM-1 → PI-L	RM-1
105–123 Leonie St.	Several owners (see Ex. A-2 map, Ex. C-2)		CH → MN-1	CH

Parcel, owner and current zoning: LCG GIS, Ex. C-1, C-2. Belle’s ownership of Lot 7 is also shown on the ALTA survey title block, Ex. B-3.

Outcome. Every named parcel still carries its 2022 zoning.¹¹ A search of council documents found no ordinance for these parcels from 2022 through 2026, so the proposal was apparently not pursued rather than formally denied.¹² The Zoning Commission minutes and staff file for May 16, 2022 are no longer online. There is therefore no public record of *why* it stopped, and nothing in the record prevents staff from starting again.

WHY THIS MATTERS

The code’s two-year bar on repeat petitions is triggered only by final Council action, Council inaction for 90 days, or withdrawal of an officially advertised petition. The 2022 item was a briefing with no formal action. The bar also does not apply to comprehensive revisions of areas over 20 acres, and the Administrator can waive it. More than two years have passed in any case.¹³

The program

Staff has run administrative rezonings continuously since 2019, reporting that it does so monthly.¹⁴ 860 parcels from 2019 to the Sept. 2022 report, about 170 in 2023, and about 76 in 2024. Each annual report gives the same criteria, including “hard edges ... between heavy commercial zoning and single-family residential” and “reducing the amount of heavy commercial and industrial zoned land.”⁷ The center and Lot 7 are CH zoning directly across Patricia Street from RS-1 single-family homes (Ex. C-1).

The plan

Each zoning district is tied to a PlanLafayette future land use category. MN implements “Transitional Mixed-Use.” CH implements “Commercial/Office.”¹⁵ At plan scale, Johnston Street is drawn as a Transitional Mixed-Use band, with a Mixed-Use Center node near Arnould. The block sits at the edge between the two. Either reading is a mixed-use category, and neither is Commercial/Office, the category CH implements.¹⁶ The plan directs staff to “review zoning classifications for consistency with the FLUM” and is due for its five-year update.¹⁴ *Inference:* as long as the map reads this way, staff has a consistency argument against CH, most naturally for MN-1. Consistency with the plan is the first rezoning standard in the code.¹⁷

The corridor

The Johnston–Louisiana Corridor project runs to “Johnston Street at Ambassador.” *Inference:* Arnould lies on Johnston between Doucet and Ambassador Caffery, so the center sits inside the corridor. The city’s project page states that “as part of Phase One, LCG will review the existing codes and regulations along the corridor.”² The October 2025 release says design will address “land use.”¹⁸ Staff has used this sequence before:

- **2022 — Johnston Street.** Garfield to General Mouton put up for final adoption as CH → MN-1 and CM-2, with a carve-out CUP for a bar.¹⁹
- **2023 — Bertrand Drive.** Rezoned as a walkable connector.
- **2024 — Congress Street.** Rezoned “to plan for the Congress St. Streetscape Project.”⁷

NOTICE RISK

For a comprehensive revision of more than ten parcels, the code lets the city skip mailed notice and signs if notice is published.³ Ownership should not count on another letter like the one in 2022.

4 LOT 7 CARRIES THE CENTER

DOCUMENTED FACTS · ANALYSIS

The ALTA survey records the zoning information supplied by the city: “Parking As per Variance; Entry No. 99-11797, Req’d 344/324 Provided” and “Floor Space Area Restrictions: Limited to Available Parking Spaces.” Schedule B lists both variance instruments: Entry 98-18247 (the original) and Entry 99-11797 (the revision now of record).⁴ Lot 7 is part of the surveyed property and is striped for 32 spaces.²⁰

	LEGAL COUNT (VARIANCE)	STRIPED COUNT (2019 PLAT)
Spaces required	344	344
Spaces provided, with Lot 7	324	314
Shortfall the variance covers today	20	30
Spaces provided, without Lot 7	292	282
Shortfall without Lot 7	52	62

The 10-space legal/striped gap is under reconciliation; the architect’s CAD shows an unlabeled 10-stall Johnston row. Ex. I.²¹

Analysis. The variance ties floor area to available parking. Losing Lot 7 takes the center 52 spaces short, well past the 20-space relief it has. Ownership’s view that taking Lot 7 “effectively takes the center” is supported by the record.

How MN-1 on Lot 7 would bite

- **Stand-alone parking is not a permitted MN use.** A “parking facility” is a lot “offering parking to the public” as “the principal use of the premises.” It is permitted in CH and CM and not in MN.⁸
- **The accessory-use rule is written for the same lot.** An accessory use is “located on the same lot with the principal use.”⁹ The parking code separately treats a lot across a street within 300 feet as “contiguous” required parking.²² The center’s best position is that Lot 7 is the center’s *required, contiguous* parking. That position is strongest while both sides of Marie Antoinette carry the same commercial zoning. *Inference:* splitting the zoning invites the argument that a CH center’s parking cannot sit in an MN district.
- **If Lot 7 became nonconforming, it would erode.** Nonconformities are “viewed narrowly,” with doubts resolved against continuation.²³ Repaving or restriping a nonconforming parking lot requires bringing it into conformity or getting the Administrator’s approval.²⁴ A nonconforming use is lost after 12 continuous months vacant.²⁵

FOUND IN THE SURVEY · NEEDS REVIEW

The survey plots a reference to Entry No. 03-060864 inside Lot 7 and on the adjoining lot to the south. Schedule B lists that entry as exception 27, a “Cross Easement and Servitude Agreement.” The survey is internally inconsistent: the callout inside Lot 7 is keyed “25,” with its digits partly overstruck, and exception 25 is a signage instrument.²⁰ The instrument’s terms are not in the property record. It may already tie Lot 7 to other property, for better or worse. Pull it before recording anything new.

5 TENANT EXPOSURE UNDER MN-1

RENT ROLL · SEPT. 10, 2026

If the center itself were rezoned MN-1, existing tenants would continue as lawful nonconforming or pre-existing uses. The exposure shows up at turnover, expansion, relocation and rebuild, and in how lenders and buyers value the property.^{25 26} The table maps each suite to the LDC use it most likely falls under.^{10 27 5}

Permitted 58.8% Classification call 9.6% Conditional 13.4% Nonconforming 18.2%				
STATUS UNDER MN-1	SUITES	SF	\$/MONTH	SHARE OF RENT
PERMITTED	16	36,904	\$51,826.37	58.8%
NONCONFORMING	1	9,931	\$16,008.90	18.2%
CONDITIONAL	2	7,219	\$11,782.80	13.4%
CLASSIFICATION	2	5,577	\$8,452.64	9.6%
VACANT	2	3,179	\$0.00	—
Total	23	62,810	\$88,070.71	100%

The three issues that drive the number

- **Retail size cap.** “Each Retail, Limited (A) use on a Lot shall be limited to six thousand (6,000) gross square feet per lot.”⁶ The Pink Paisley (9,931 SF; 18.2% of rent) exceeds it on any reading. If staff reads it as one total for the lot, all 30,618 SF of Retail (A) space (\$47,554.09/month, 54.0% of rent) is over the cap. Retail (B) and Retail, general, which have no cap, are not permitted in MN at all.
- **Food and beverage.** Restaurant, food service and bar/lounge are conditional uses in MN. Amplified sound outside a building is prohibited.²⁸ This affects the anchor (Jason’s Deli), Graze, and any future restaurant in the vacant bays.
- **Two classification calls.** Fast Pass Tag & Title could be classed as Office (permitted) or Business support services (not permitted). The 107 dessert café could be a Snack/beverage bar (permitted) or a Restaurant (conditional). Get the Administrator’s reading in writing.

EXPECT THIS ARGUMENT FROM STAFF

Minimum parking does not apply in MN, so a rezoned center would no longer depend on its variance.²⁹ That is true, but it trades a parking constraint the center already meets for use restrictions that reach 41.2% of rent and all future leasing.

5 SUITE SCHEDULE

CLASSIFICATION BY LDC DEFINITION

SUITE	TENANT / USE	SF	\$/MO	LIKELY LDC USE	MN-1	EX.
101-103	The Pink Paisley Women's fashion boutique	9,931	\$16,008.90	Retail, limited (A) — over the 6,000 SF cap	NONCONFORMING	E-9, E-16
105	Painted Bayou Art & specialty gifts	2,222	\$3,231.16	Retail, limited (A)	PERMITTED	E-9, E-16
107	Great American Cookies / Hershey's Dessert café	1,743	\$2,541.88	Snack/beverage bar (P) or Restaurant (C)	CLASSIFICATION	E-8, E-14, E-15
109	JC Kate Boutique Women's apparel	2,546	\$3,808.39	Retail, limited (A)	PERMITTED	E-9, E-16
111	BERNINA Lafayette (Lola Pink) Sewing & fabric retail	1,690	\$2,605.42	Retail, limited (A)	PERMITTED	E-9, E-16
113	Graze Acadiana Charcuterie café & catering	2,606	\$4,017.58	Restaurant / Food service	CONDITIONAL	E-8, E-14
115-117	The Clothing Loft Exchange Fashion consignment	4,340	\$6,654.68	Retail, limited (A) (used merchandise)	PERMITTED	E-9, E-16
117½	Victoria Nails Nail salon	1,769	\$2,800.92	Personal services	PERMITTED	E-8, E-15
119	OUPAC Financial Consumer lending & tax prep	1,982	\$2,890.42	Office (loan company) or Financial institution — both P	PERMITTED	E-8, E-14, E-15
119½	Cat Clinic of Lafayette Feline veterinary clinic	1,974	\$3,035.03	Animal hospital (indoor)	PERMITTED	E-8, E-14
121	Magnolia Salon Hair salon	1,709	\$2,527.90	Personal services	PERMITTED	E-8, E-15
123	The Tux Shoppe Formalwear rental	3,563	\$5,492.96	Retail, limited (A) (apparel rental)	PERMITTED	E-9, E-16
125-127	Jordan Amanda by Shoetique Fashion & footwear	4,273	\$6,587.54	Retail, limited (A)	PERMITTED	E-9, E-16
129	HotWorx Infrared fitness studio	1,789	\$2,832.58	Health/fitness club	PERMITTED	E-10, E-17
131	Vacant Inline shop	1,907	—	Future use limited to MN list	VACANT	
133	Vacant Inline shop	1,272	—	Future use limited to MN list	VACANT	
135A	C. Wolf Barber Shop Barber	1,580	\$2,040.83	Personal services	PERMITTED	E-8, E-15
135B	Belle Realty (owner office) Management office	1,580	—	Office	PERMITTED	E-8, E-15
137	Greek Expressions Apparel & custom merchandise	2,053	\$3,165.04	Retail, limited (A)	PERMITTED	E-9, E-16
139/141	Fast Pass Tag & Title Vehicle registration & title	3,834	\$5,910.76	Office (P) or Business support services (not permitted)	CLASSIFICATION	E-8, E-15
143	1st Franklin Financial Consumer finance	1,917	\$3,354.75	Office (loan company) or Financial institution — both P	PERMITTED	E-8, E-14, E-15
145	Upstream Rehabilitation Physical therapy	1,917	\$798.75	Medical office/clinic	PERMITTED	E-10, E-17
149	Jason's Deli (anchor) Full-service restaurant	4,613	\$7,765.22	Restaurant	CONDITIONAL	E-8, E-14

Rents per the Sept. 10, 2026 schedule. 139/141 shows the adopted combined allocation; a tenant-signed renewal is pending. 145 is in abatement through Dec. 2026 (\$3,035.25 from Jan. 2027 per owner schedule). The Clothing Loft term ends Sept. 30, 2026. Ex. J.

6 LEASING PART OF LOT 7

ANSWER TO OWNERSHIP

Leasing part of Lot 7 to a center tenant helps, if it is papered as that tenant's required parking and filed with the city. Leasing to an outside party hurts.

TO A CENTER TENANT · HELPS

- For example, employee parking for Jason's Deli or other center staff.
- Structure it under LDC § 89-39(f): the term runs at least as long as the tenant's lease, and a copy is filed with the Administrator.²⁹
- The result is a public record that Lot 7 is the center's required, contiguous parking under § 89-39(d)(2).²²
- Keep the stalls counted toward the center's total so "available parking" under the variance does not drop.

TO AN OUTSIDE PARTY · HURTS

- It makes Lot 7 look like a stand-alone "parking facility ... offering parking to the public," which is a principal use MN does not permit.⁸
- It breaks the link to the center that the protective argument depends on.
- It reduces the "available parking spaces" that floor area is tied to.⁴
- It gives staff a zoning-vs-use gap on paper.

What actually protects the lot

A lease does not create zoning protection. Protection comes from continuous lawful use (a use is lost after 12 months vacant) and from records that show what the lot is for.²⁵ The storage structure on Lot 7 is fine if it clearly serves the center's operations. The stronger tools, in order:

1. A written zoning verification from the Administrator that Lot 7 is required, contiguous parking for 101–149 Arnould under § 89-39(d)(2) and Variance 99-11797.
2. A recorded parking declaration tying Lot 7 to the center parcels. Because both estates have one owner, a predial servitude cannot yet exist. A recorded declaration of destination is the recognized route, or an affiliated entity can hold Lot 7 and grant the servitude. Counsel should structure this.³⁰
3. Correction of the city's land-use layer, which shows Lot 7 as a single-family home (Ex. C-1).

7 RECOMMENDED ACTIONS

RANKED BY PROTECTION PER EFFORT

#	ACTION AND WHY	OWNER	TIMING	EFFORT
1	Request a zoning verification letter for Lot 7 as required contiguous parking (§ 89-39(d)(2); Variance 99-11797). Puts the city's own determination on file before the next staff review.	Property mgmt / counsel	30 days	Low
2	Ask LCG GIS/Planning to correct the land-use layer for 110 Marie Antoinette. Removes the data error that feeds a "gap" finding.	Property mgmt	30 days	Low
3	Record a parking declaration (destination) tying Lot 7 to the center parcels; file center-tenant parking leases with the Administrator. Makes the dependency part of the public record and ties it to title.	Counsel	60 days	Moderate
4	Pull Entries 98-18247, 99-11797 and 03-060864 from the Clerk of Court; confirm that Lot 7 is counted in the 324 and read the Lot 7 servitude. Confirms the arithmetic in Section 4; checks for an existing encumbrance.	Counsel	30 days	Low
5	Public records request: 5/16/2022 Zoning Commission minutes, staff file and briefing packet for "100 Block Leonie." Shows why the 2022 proposal stopped and what staff will reuse.	Property mgmt	30 days	Low
6	Ask for the Administrator's written reading of the Retail (A) 6,000 SF cap (per business or per lot) and of the Fast Pass and 107 uses. Limits the 18%–54% range of rent exposure.	Counsel	45 days	Low
7	Enter the Johnston corridor Phase One code review and the Plan Lafayette update as a stakeholder; ask for a Commercial/Office designation for the block. Addresses the plan inconsistency that drives MN-1 proposals.	Ownership	Ongoing	Moderate
8	Pre-approve fallback terms: keep CH; if not, CM (restaurants, parking lots and uncapped Retail, limited (B) permitted) or a conditional rezoning under § 89-53(e)(4) that keeps restaurants by right and excludes Lot 7. Lets ownership negotiate quickly if a proposal appears.	Ownership	Now	—
9	Monitor published legal notices and Zoning Commission agendas monthly. Published notice may be the only notice.	Property mgmt	Monthly	Low

CM zoning permits restaurants, parking facilities and Retail, limited (B), which has no size cap. The Retail (A) cap applies in every district, and Retail, general is not permitted in CM (Ex. E-8, E-9, E-11, E-16).

Conditional rezoning authority: § 89-53(e)(4), Ex. E-24.¹⁷ Precedent for a carve-out in an administrative rezoning: CO-055-2022, Ex. G-2.¹⁹

8 OPEN ITEMS AND CONFIDENCE

FACT · INFERENCE · ASSUMPTION

STATEMENT	BASIS	CONFIDENCE
Lot 7 was named in the 2022 proposal, and all named parcels keep their 2022 zoning.	Documented — Ex. A, C	HIGH
The variance requires 344 spaces, provides 324, and limits floor area to available parking.	Documented on the survey; the instrument itself has not been pulled — Ex. B	HIGH
Lot 7's 32 spaces are counted in the 324.	Inference from the survey and the 2007/2019 counts — Ex. B, I	MEDIUM · VERIFY (ACTION 4)
Use-table statuses, the retail cap, parking and nonconformity rules.	Documented — LDC May 2026, Ex. E	HIGH
The block sits between Transitional Mixed-Use and Mixed-Use Center on the plan map; neither is Commercial/Office.	Analyst reading of a plan-scale map — Ex. D-4, D-7	MEDIUM
The corridor code review is the likely route for a new proposal.	Inference — Ex. F, G, H	MEDIUM
Suite-by-suite use classifications.	Analyst reading of definitions; two calls flagged — Ex. E, J	MEDIUM
Why the 2022 proposal stopped.	No public record found	UNKNOWN
Whether Entry 03-060864 burdens Lot 7, and on what terms.	Plotted on the survey with conflicting callout keys; not read	UNKNOWN



1. LCG Community Development & Planning, *Public Hearing Notice — 100 Block Leonie Street Administrative Rezoning* (Apr. 27, 2022), with map. **Ex. A-1, A-2.**
2. LCG, *Johnston–Louisiana Corridor* project page (printed Sept. 24, 2026): corridor runs to “Johnston Street at Ambassador,” seven segments, about 10 years, construction anticipated 2028; “As part of Phase One, LCG will review the existing codes and regulations along the corridor ...” **Ex. H-1 to H-8** (code review at H-6).
3. LDC § 89-53 (rezoning may be initiated on “Recommendation of the LCG administration”; for a comprehensive revision of more than ten parcels, sign and mailing requirements do not apply if notice is published). **Ex. E-23.**
4. Montagnet & Domingue, Inc., *ALTA/ACSM Survey for Belle Realty of Lafayette, LLC* (May 20, 1994; last rev. July 19, 2019), sheet notes “Information provided by Planning, Zoning and Codes Department” and Schedule B exceptions 23–28. **Ex. B-1, B-2.**
5. Rent schedule as of Sept. 10, 2026 (\$88,070.71/month), Command Platform lease records: the July 16, 2026 signed rent roll, superseded for ten suites by the Sept. 9–10, 2026 lease review (adopted by operator ruling Sept. 11, 2026). Demised area 62,810 SF (plat headline 62,883 SF). Classification is the analyst’s reading of the LDC definitions. **Ex. J.**
6. LDC § 89-21(d), “Retail, limited (A)”: “Each Retail, Limited (A) use on a Lot shall be limited to six thousand (6,000) gross square feet per lot.” **Ex. E-16.**
7. LCG Planning Division annual reports: 2022, dated Sept. 2022 (“860 parcels have been administratively rezoned since the beginning of 2019”), 2023 (“upwards of 170 parcels ... in 2023”; Bertrand Dr. corridor), 2024 (“upwards of 76 parcels ... in 2024”; criteria including “hard edges ... between heavy commercial zoning and single-family residential” and “reducing the amount of heavy commercial ... land”; Congress St. rezoned “to plan for the Congress St. Streetscape Project”). **Ex. F-2, F-4, F-6.**
8. LDC § 89-21(d), “Parking facility”: “A parking lot or a parking garage offering parking to the public and is the principal use of the premises.” **Ex. E-18.** Use table: permitted in CH and CM; blank (not permitted) in MN. **Ex. E-11.**
9. LDC Table 89-21-1, “A — Accessory Use”: “customarily incidental and subordinate to the principal use or building and located on the same lot with the principal use or building” **Ex. E-6.**
10. LDC § 89-21, Table 89-21-2 Use Table (MN and CH columns). **Ex. E-7 to E-13** (restaurant, bar, food service, financial, personal services, office rows at E-8; retail rows at E-9; health/fitness and medical rows at E-10; parking facility row at E-11).
11. LCG GIS ArcGIS REST services `BaseLayers/LCG_UDC_Zoning`, `LCG_Parcels_with_CAMA_Data_View`, `LCG_LandUse`, queried Sept. 24, 2026. **Ex. C-1, C-2.**
12. Full-text search of the LCG council document system (apps.lafayettela.gov/obcouncil) for “Leonie,” “Marie Antoinette,” “Arnould,” “Montrose,” “Our Savior” and “Belle Realty,” Sept. 2026; no rezoning ordinance for the named parcels found for 2022–2026. Search results are not reproduced as an exhibit. Current zoning of each parcel: **Ex. C-2.**
13. LDC § 89-53(h)(1)–(3) (bar triggered only by final Council action, Council inaction within 90 days, or withdrawal after official advertisement; bars a further petition for “the same or more intensive zoning district” for 2 years unless recommended by the Administrator; inapplicable to comprehensive revisions of areas larger than 20 acres). **Ex. E-25.**
14. PlanLafayette, Implementation — plan review and update “at least every five years” (last amended Dec. 2021, Ex. D-1). **Ex. D-5.** Action 1.1.1, “Review zoning classifications for consistency with the FLUM” (lead: DP); status note: “Planning staff is doing administrative rezonings monthly” [sic]. **Ex. D-6.**
15. Lafayette Development Code (“LDC”) (amended May 2026) § 89-6(a) (district-to-FLU table: MN implements Transitional Mixed-Use; CH implements Commercial/Office). **Ex. E-2.**
16. PlanLafayette 2035 (adopted 2014; amended Dec. 2021), Ch. 3, “FLUM and Land Use Categories” and Fig 3.1 Future Land Use Map, pp. 30–31, 35. **Ex. D-2 to D-4.** The site’s category is read from the map at plan scale (analyst overlay, **Ex. D-7**); the map is not parcel-specific.
17. LDC § 89-53(e)(4) (conditional rezoning: limit uses, attach conditions, or in a comprehensive revision of more than ten parcels allow a conditional use as a matter of right) and § 89-53(f) (standards, including consistency with the comprehensive plan and compatibility with surrounding uses). **Ex. E-24, E-25.**
18. LCG news release, *Johnston Street Revitalization Moves Forward in Lafayette* (Oct. 21, 2025) (about \$28.5 million available; design to address “transportation, drainage, land use, and environmental sustainability”). **Ex. H-9 to H-11.**

19. Lafayette City Council agenda (July 19, 2022), item for final adoption: CO-055-2022, Case No. ZON2022-0016, Johnston Street (Garfield St. to General Mouton Ave.) Administrative Rezoning: CH to MN-1 and CM-2 with a CUP for a bar/lounge. **Ex. G-2.**
20. Montagnet & Domingue ALTA/ACSM Survey, *supra*, Lot 7, Block M detail (32 striped spaces: 6 + 8 + 10 + 8; a callout keyed “25” referencing Entry No. 03-060864, digits partly overstruck, inside Lot 7; a callout keyed “27”, Entry No. 03-060864, on the adjoining lot to the south) and title block (“Being ... Lot 7, Block M”). **Ex. B-3.** Schedule B lists exception 25 as Entry 99-041054 (signage) and exception 27 as Entry 03-060864 (Cross Easement and Servitude Agreement). **Ex. B-2.**
21. Command Platform property record (On The Boulevard), property facts and recorded-instrument register, and Parking Count Reconciliation Memo (June 10, 2026, updated Sept. 5, 2026). **Ex. I.**
22. LDC § 89-39(d)(1)–(2): required parking must be on a contiguous lot, and a lot separated “by 1 or more parcels, an alley, servitude, or street” is considered contiguous if within 300 feet; § 89-39(d)(4) (MN parking maximum). **Ex. E-20.**
23. LDC § 89-96 (nonconformities created by a change to an area’s zoning; “viewed narrowly and have all doubts resolved against the continuation or expansion”). **Ex. E-26.**
24. LDC § 89-101 (nonconforming site improvements, including parking spaces that do not conform in number or dimensions; no additions, repairs or alterations unless brought into conformity or approved by the Administrator; “mere financial hardship” insufficient). **Ex. E-30.**
25. LDC § 89-98(g) (a nonconforming use may resume only in compliance after the premises remain vacant for a continuous period of 12 calendar months; lease, bankruptcy and foreclosure exceptions). **Ex. E-29.**
26. LDC § 89-103 (destruction: restoration with no increase in building volume or floor area; registration and completion deadlines). **Ex. E-31.**
27. LDC § 89-21(d) use definitions. **Ex. E-14 to E-18** (financial institutions, restaurant, food service at E-14; office, business support, personal services at E-15; Retail, limited (A)/(B)/general at E-16; medical office and health/fitness at E-17; parking facility at E-18).
28. LDC § 89-11 (MN purpose; (d) “no sound shall be amplified outside of the confines of a building”). **Ex. E-4, E-5.**
29. LDC § 89-39(f) (leased required parking: located per (d), term at least as long as the use’s lease, copy filed with the Administrator); § 89-39(g)(1) (minimum parking requirements do not apply in MN, MX or D). **Ex. E-22.**
30. La. Civ. Code arts. 646 (predial servitude requires estates belonging to different owners) and 741 (servitude by destination of the owner). Cited for counsel’s structuring review; not reproduced as an exhibit.



EXHIBIT INDEX

FOLLOWS THIS BRIEF

EX.	DOCUMENT AND WHAT IT SHOWS	SOURCE	PAGES
A	LCG Public Hearing Notice and map, 100 Block Leonie St. Administrative Rezoning (Apr. 27, 2022) The 2022 proposal; Lot 7 (110 Marie Antoinette) named.	Owner's copy	2
B	ALTA/ACSM survey for Belle Realty, rev. July 19, 2019, with enlarged details of the zoning notes, Schedule B, Lot 7 and the title block Variance 99-11797 (344/324); floor-area restriction; Lot 7 part of the property; Entry 03-060864 referenced on Lot 7 (conflicting callout).	Montagnet & Domingue, Inc.	3
C	Zoning and land-use maps; parcel register Current zoning; 2022 parcels unchanged; Lot 7 misclassified.	LCG GIS, queried Sept. 24, 2026	2
D	Plan Lafayette 2035 (amended Dec. 2021), excerpts, with analyst overlay FLU categories; Fig. 3.1; five-year update; Action 1.1.1.	LCG	7
E	Lafayette Development Code (amended May 2026), excerpts Districts, use table, definitions, parking, rezoning, nonconformities.	LCG	31
F	Planning annual reports 2022, 2023, 2024, excerpts Administrative rezoning program and criteria.	LCG Planning Division	6
G	City Council agenda — CO-055-2022 (Johnston St. CH → MN-1) Corridor precedent, with a CUP carve-out.	LCG Council	2
H	Johnston–Louisiana Corridor project page; Oct. 21, 2025 release Phase One code review; scope; schedule.	LCG (printed Sept. 24, 2026)	11
I	Command Platform property record extracts; parking reconciliation memo Property facts; recorded instruments; Lot 7 flags; parking counts.	Belle / Cypress Command	4
J	Rent schedule and MN-1 classification worksheet Section 5 figures.	Command Platform, Sept. 10, 2026	2
K	Owner's 2022 packet: LDC Article 2 (edition supplied in 2022) and LCG procedures summary Code in force at the time of the 2022 notice.	Owner's copy	31

EXHIBIT



LCG Public Hearing Notice and map, 100 Block Leonie St. Administrative Rezoning (Apr. 27, 2022)

SHOWS	The 2022 proposal; Lot 7 (110 Marie Antoinette) named.
SOURCE	Owner's copy
PROVENANCE	Owner's packet (uploaded "Combined Issue" PDF), pp. 1-2.
PAGES	A-1 to A-2

April 27, 2022

PUBLIC HEARING NOTICE

**Monday, May 16, 2022 at 5:30 p.m. or immediately following the
conclusion of the Lafayette City Planning Commission, whichever occurs later
Lafayette City Zoning Commission**

**Re: 100 Block Leonie Street (105 - 123 Leonie Street, 109, 110 and
111 Marie Antoinette, and 100 Montrose Avenue) Administrative Rezoning
Town Hall Auditorium
220 West Willow Street, Building C Lafayette, LA 70501**

On Monday, May 16, 2022, the Zoning Commission will be briefed on a proposed LCG-led administrative effort to rezone properties located generally north of Johnston Street, west of Arnould Boulevard, and south of Patricia Street. **Our records indicate that you own property in this area.** See the attached map indicating the subject properties.

The planning division is undertaking a comprehensive review of zoning across the city. The subject properties have been identified as areas where there appears to be a gap between the current zoning and the current uses and/or the zoning is not compatible with the uses of the surrounding properties. When those instances are found, staff begins research to determine if an administrative rezoning is appropriate and briefs the Zoning Commission on the area. The commissioners provide input and receive public input before a formal proposal comes forward. **That briefing is scheduled for Monday, May 16, 2022, and no formal commission action will be taken.**

Your Property/Your Zoning District

The current zoning of your property is CH (Commercial-Heavy) or RM-1 (Residential Mixed). Given the current uses in the immediate vicinity, staff believes MN-1 (Mixed-Use Neighborhood) is appropriate for the existing CH (Commercial-Heavy) zoning districts, and that PI-L (Public/Institutional Light) is appropriate for the existing RM-1 (Residential Mixed) zoning districts. Note: the RM-1 districts include Fire Station #6 and Our Savior's Church. The existing uses in the CH (Commercial-Heavy) zoning districts include single-family homes, light retail, offices, daycare and civic organizations. These uses are permitted in MN-1 (Mixed-Use Neighborhood) zoning districts.

Zoning districts determine the uses and structures that can be built on your property. If you are not familiar with zoning regulations or districts, please feel free to reach out to staff (contact information below) for a more thorough explanation of what this means for your property. In addition, you may review the zoning districts in Article 2 of the Lafayette Development Code: www.lafayettela.gov/docs/default-source/d-p-documents/planning-files/lafayette-development-code_March-2022.pdf

Next Steps

Depending on the results of this briefing, the next step would be to bring a formal proposal to the commission as early as June 20, 2022 to vote on a recommendation to be sent to the City Council. Should this proposal move forward, the Council will hold an additional public hearing and approve, modify, or deny the recommended administrative rezoning.

Meeting Details/More Information

We encourage you to contact the staff and/or attend the public hearing if you have an interest in the matter. If you are unable to attend, you may express your opinion in writing. Please address all letters to the Commission

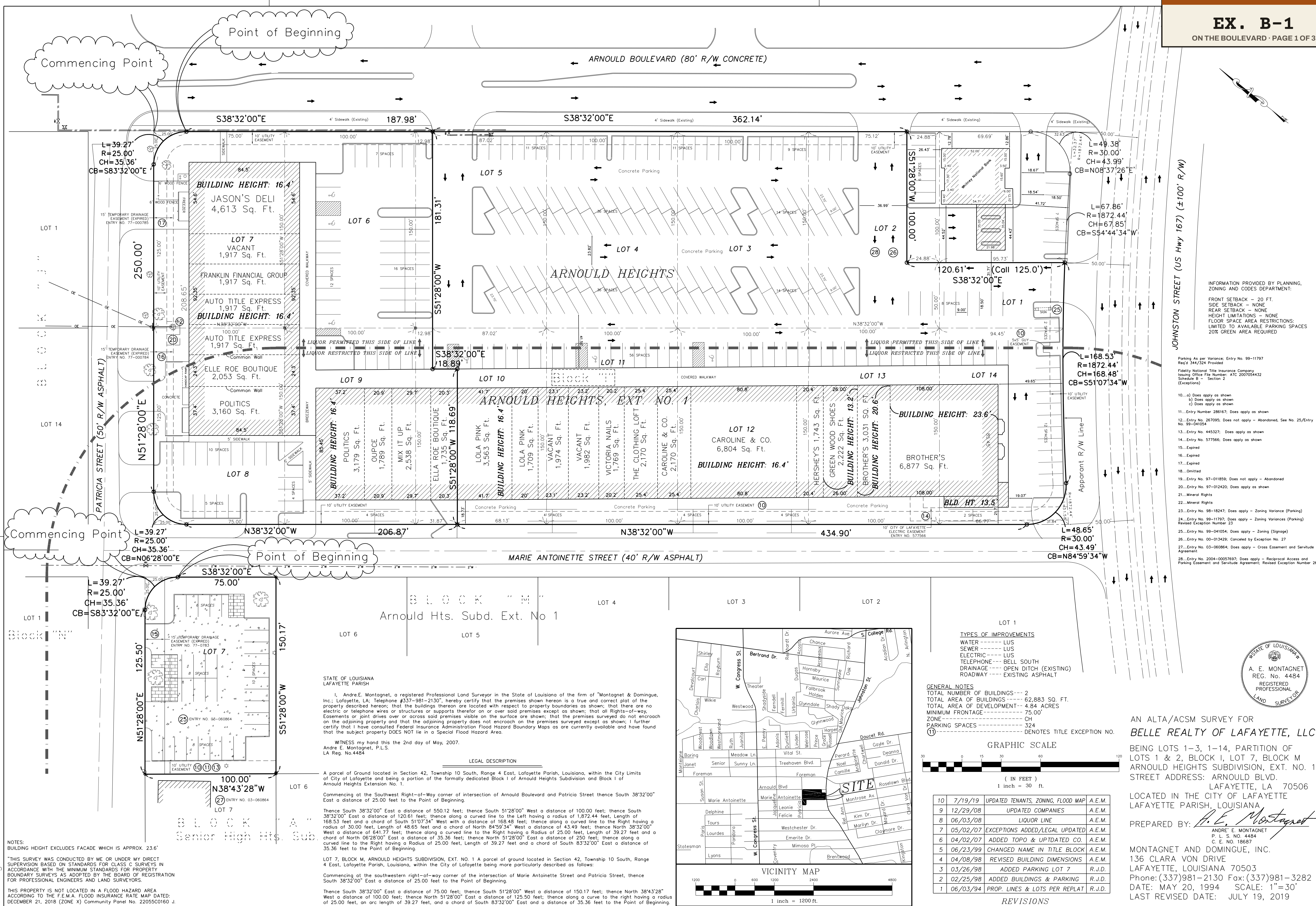
0 300 600 Feet

EXHIBIT

B

ALTA/ACSM survey for Belle Realty, rev. July 19, 2019, with enlarged details of the zoning notes, Schedule B, Lot 7 and the title block

SHOWS	Variance 99-11797 (344/324); floor-area restriction; Lot 7 part of the property; Entry 03-060864 referenced on Lot 7 (conflicting callout).
SOURCE	Montagnet & Domingue, Inc.
PROVENANCE	Owner's packet, p. 3; enlargements B-2 and B-3 made from the same sheet.
PAGES	B-1 to B-3



B SURVEY DETAIL · ZONING NOTES AND SCHEDULE B

ENLARGEMENT OF EX. B-1, RIGHT MARGIN

Enlarged from the ALTA/ACSM survey (Montagnet & Domingue, Inc., last rev. July 19, 2019). No content altered.

JOHNSTON STREET (

INFORMATION PROVIDED BY PLANNING, ZONING AND CODES DEPARTMENT:

FRONT SETBACK - 20 FT.
SIDE SETBACK - NONE
REAR SETBACK - NONE
HEIGHT LIMITATIONS - NONE
FLOOR SPACE AREA RESTRICTIONS:
LIMITED TO AVAILABLE PARKING SPACES
20% GREEN AREA REQUIRED

Parking As per Variance; Entry No. 99-11797
Req'd 344/324 Provided

Fidelity National Title Insurance Company
Issuing Office File Number: ATC 2007054432
Schedule B - Section 2
(Exceptions)

10....a) Does apply as shown
b) Does apply as shown
c) Does apply as shown

11....Entry Number 286167; Does apply as shown

12....Entry No. 267095; Does not apply - Abandoned, See No. 25/Entry
No. 99-041054

13....Entry No. 445327; Does apply as shown

14....Entry No. 577566; Does apply as shown

15....Expired

16....Expired

17....Expired

18....Omitted

19....Entry No. 97-011859; Does not apply - Abandoned

20....Entry No. 97-012420; Does apply as shown

21....Mineral Rights

22....Mineral Rights

23....Entry No. 98-18247; Does apply - Zoning Variance (Parking)

24....Entry No. 99-11797; Does apply - Zoning Variances (Parking)
Revised Exception Number 23

25....Entry No. 99-041054; Does apply - Zoning (Signage)

26....Entry No. 00-013429; Canceled by Exception No. 27

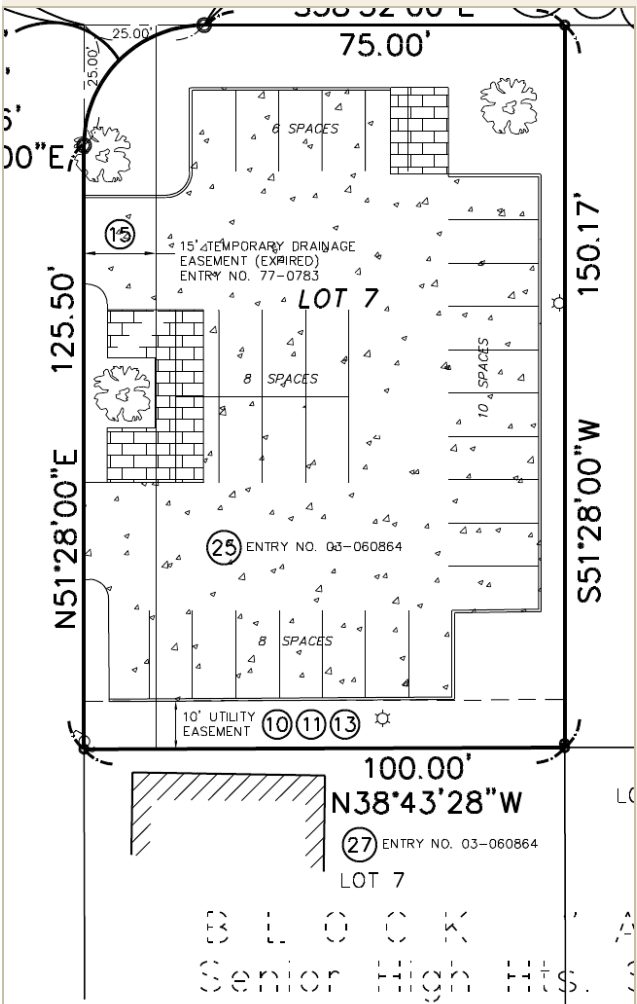
27....Entry No. 03-060864; Does apply - Cross Easement and Servitude
Agreement

28....Entry No. 2004-00057697; Does apply - Reciprocal Access and
Parking Easement and Servitude Agreement; Revised Exception Number 26

B SURVEY DETAIL · LOT 7, BLOCK M AND TITLE BLOCK

ENLARGEMENT OF EX. B-1

LOT 7, BLOCK M · 32 STRIPED SPACES (6 + 8 + 10 + 8) · ENTRY NO. 03-060864 PLOTTED



APPROX. 23.6'

DER MY DIRECT
S C SURVEYS IN

TITLE BLOCK · "BEING ... LOT 7, BLOCK M"

AN ALTA/ACSM SURVEY FOR
TITLE EXCEPTION NO. **BELLE REALTY OF LAFAYETTE, LLC**
BEING LOTS 1-3, 1-14, PARTITION OF
LOTS 1 & 2, BLOCK I, LOT 7, BLOCK M
ARNOULD HEIGHTS SUBDIVISION, EXT. NO. 1
STREET ADDRESS: ARNOULD BLVD.
LAFAYETTE, LA 70506
LOCATED IN THE CITY OF LAFAYETTE
LAFAYETTE PARISH, LOUISIANA
PREPARED BY: *A. E. Montagnet*
ANDRE E. MONTAGNET
P. L. S. NO. 4484
C. E. NO. 18687
MONTAGNET AND DOMINGUE, INC.
136 CLARA VON DRIVE
LAFAYETTE, LOUISIANA 70503

FLOOD MAP	A.E.M.
NIES	A.E.M.
AL UPDATED	A.E.M.
DATED CO.	A.E.M.
TLE BLOCK	A.E.M.
MENSIONS	A.E.M.

EXHIBIT

C

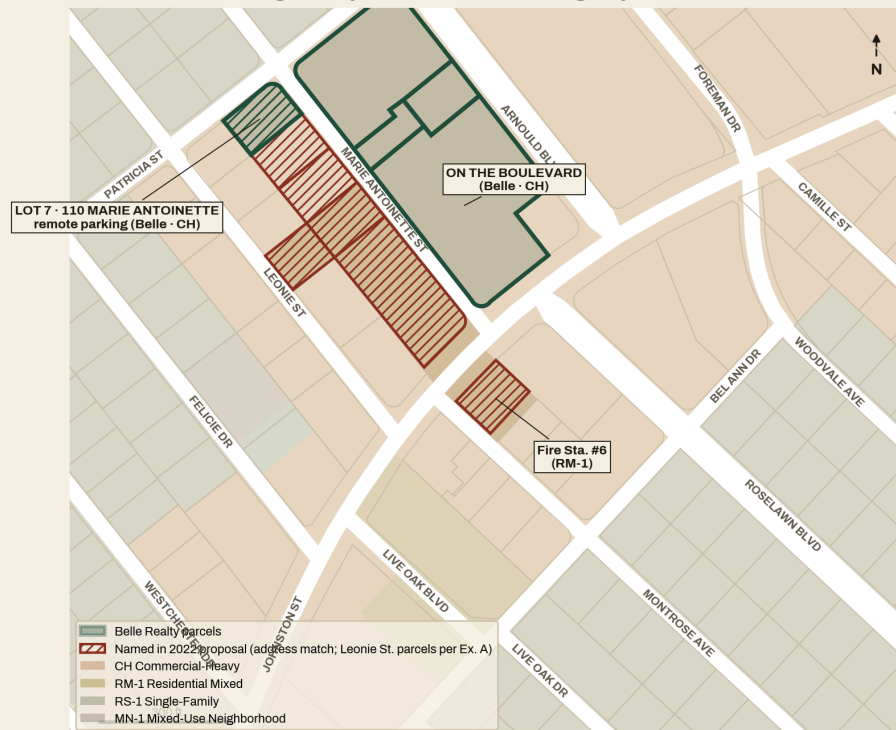
Zoning and land-use maps; parcel register

SHOWS	Current zoning; 2022 parcels unchanged; Lot 7 misclassified.
SOURCE	LCG GIS, queried Sept. 24, 2026
PROVENANCE	https://maps.lafayetteela.gov/arcgis/rest/services/BaseLayers/ - LCG_UDC_Zoning, LCG_Parcels_with_CAMA_Data_View, LCG_LandUse, LCG_Centerlines.
PAGES	C-1 to C-2

C ZONING AND LAND-USE MAPS

LCG GIS · QUERIED SEPT. 24, 2026

A · Official zoning today (LCG UDC Zoning layer)



B · LCG existing-land-use layer vs. assessor record



Source: LCG GIS ArcGIS REST services – BaseLayers/LCG_UDC_Zoning, LCG_Parcels_with_CAMA_Data_View, LCG_LandUse, LCG_Centerlines – queried 24 Sept 2026. Parcel lines are GIS approximations, not a survey.

Map A: the official zoning layer, with Belle parcels outlined and parcels named in the 2022 notice hatched (Leonie Street parcels are shown on the 2022 map, Ex. A-2). Map B: the city's existing-land-use layer compared with assessor data. Prepared by the analyst from LCG GIS data; not a survey.

C PARCEL REGISTER · SUBJECT AREA

ZONING, ASSESSOR USE AND GIS LAND USE BY PARCEL

ASSMT #	LOCATION	OWNER OF RECORD	ZONING	ASSESSOR USE	GIS LAND-USE LAYER	WHY LISTED
6009649	110 Marie Antoinette St	Belle Realty Of Lafayette Llc	CH	Commercial light	Residential single family	BELLE · NAMED 2022
6026783	100 Blk Arnould Blvd	Belle Realty Of Lafayette Llc	CH	Commercial light	Commercial light	BELLE
6026784	123 Arnould Blvd; 125 Arnould Blvd	Belle Realty Of Lafayette Llc	CH	Commercial light	Commercial light	BELLE
6026785	127 Arnould Blvd; 129 Arnould Blvd; 131 Arnould Blvd; 133 Arnould Blvd; 135 Arnould Blvd; 135 Arnould Blvd B; 137 Arnould Blvd; 139 Arnould Blvd; 141 Arnould Blvd; 143 Arnould Blvd; 145 Arnould Blvd; 149 Arnould Blvd	Belle Realty Of Lafayette Llc	CH	Commercial light	Commercial light	BELLE
6026788	101 Arnould Blvd; 105 Arnould Blvd; 107 Arnould Blvd; 109 Arnould Blvd; 111 Arnould Blvd; 113 Arnould Blvd; 115 Arnould Blvd; 117 Arnould Blvd; 117 1/2 Arnould Blvd; 119 Arnould Blvd; 119 1/2 Arnould Blvd; 121 Arnould Blvd	Belle Realty Of Lafayette Llc	CH	Commercial light	Commercial light	BELLE
6001471	111 Marie Antoinette St	Begnaud Mary Lucille	CH	Residential single family	Residential single family	NAMED 2022
6001472	100 Blk Marie Antoinette St	Our Saviors Church; Our Saviors Church Fam	RM-1	Civic private	Civic private	NAMED 2022
6128591	100 Montrose Ave	City Of Lafayette	RM-1	Row	Civic public	NAMED 2022
6129212	101 Marie Antoinette St	Our Saviors Church; Our Saviors Church Fam	RM-1	Civic private	Civic private	NAMED 2022
6146857	109 Marie Antoinette St	Rock Hound Llc	CH	Office	Commercial light	NAMED 2022
6037564	105 Leonie St	Rock Hound Llc	CH	Commercial light	Civic public	LEONIE 105-123 RANGE
6037607	113 Leonie St	Rock Hound Llc	CH	Residential single family	Residential single family	LEONIE 105-123 RANGE
6049345	120 Leonie St	Legato Properties Llc	CH	Office	Commercial light	LEONIE 105-123 RANGE
6049346	110 Leonie St	Legato Properties Llc	CH	Educational	Commercial light	LEONIE 105-123 RANGE
6050940	111 Leonie St	Rock Hound Llc	CH	Office	Commercial light	LEONIE 105-123 RANGE
6053116	115 Leonie St; 117 Leonie St; 119 Leonie St; 121 Leonie St; 123 Leonie St	H&H Development Llc	CH	Office	Commercial light	LEONIE 105-123 RANGE
6057360	106 Leonie St	Rock Hound Llc	CH	Office	Commercial light	LEONIE 105-123 RANGE

Sources: LCG GIS ArcGIS REST services — BaseLayers/LCG_Parcels_with_CAMA_Data_View (owner, assessor use, description), BaseLayers/LCG_UDC_Zoning (zoning at parcel interior point), BaseLayers/LCG_LandUse (existing-land-use polygon at parcel interior point). Queried Sept. 24, 2026. Shaded row: Belle parcel where the GIS land-use layer disagrees with the assessor.

EXHIBIT

D

PlanLafayette 2035 (amended Dec. 2021), excerpts, with analyst overlay

SHOWS	FLU categories; Fig. 3.1; five-year update; Action 1.1.1.
SOURCE	LCG
PROVENANCE	https://www.lafayetteela.gov/media/jj2blctv/plan-lafayette-amended-december-2021.pdf – PDF pp. 1, 60, 61, 65, 201, 213; D-7 analyst overlay.
PAGES	D-1 to D-7

Plan

LA FAYETTE



our people.

our community.

our economy.

FLUM and Land Use Categories

The FLUM's generalized land use categories are defined below and illustrated in Figure 4.1. They are intended to provide general guidance for future development and infrastructure planning, while being flexible enough to allow for specific zoning designations within each area.

Mixed-Use Centers include: Downtown and the Oil Center, Ambassador Caffery North and Gloria Switch, Moss Street at the Northgate Mall, Johnston near the Acadiana Mall, Kaliste Saloom and Ambassador Caffery South.

Mixed-Use Center

Core mixed-use areas of the parish, including downtown. Uses include retail, office, services, restaurants, and residential. The mixed-use centers are envisioned as walkable districts served by transit. The mixed-use centers are anticipated to range in scale and density. The highest density uses and activity would take place downtown, with more moderate density and uses in the outlying centers.



Examples of Mixed-Use Centers

Transitional Mixed-Use occurs along corridors and between centers and residential neighborhoods.

Transitional Mixed-Use

Includes both commercial and residential mixed-uses. The transitional mixed-use category is anticipated to serve as a transition between higher density mixed-use (from the mixed-use center) to residential or other lower density uses. It is envisioned to include residential, retail, and office in a walkable neighborhood along a transportation corridor or as a ring surrounding a mixed-use center in a walkable, pedestrian friendly pattern.



Examples of Transitional Mixed-Use

Commercial/Office

Includes general commercial and employment uses, such as neighborhood retail, services, office, and limited residential. The scale of uses will vary based on the context surrounding each area. Newly developed and redeveloped areas are encouraged to accommodate all types of users – including pedestrians, bicyclists, transit users, and motorists. Development should include pedestrian friendly design features such as sidewalks, crosswalks, and street trees. Parking should be located at the interior or rear of the site, rather than fronting the primary road.

Commercial/Office is found along the I-49 planned extension, I-10, Kaliste Saloom Road, and sections of Ambassador Caffery Parkway.



Examples of Commercial / Office

Office/Industrial

Includes both light and heavy industrial uses existing in the parish. New light industrial or office park employment uses are also targeted in these areas, including along Cameron Street, Pont Des Mouton, the Airport, and Southpark Road. Buffering is recommended to help screen and transition between surrounding residential and mixed-use areas and office/industrial areas.

Office/Industrial is found along Cameron Street, Pont Des Mouton, the Airport, and Southpark Road.



Examples of Office / Industrial

and update of the Comprehensive Plan at least every five years.

The following checklist will guide the plan monitoring and updating process, to be established within six months of comprehensive plan adoption. At the anniversary of plan adoption, staff shall submit a report indicating actions taken, progress made toward plan implementation during the previous year, and work planned for the upcoming year.

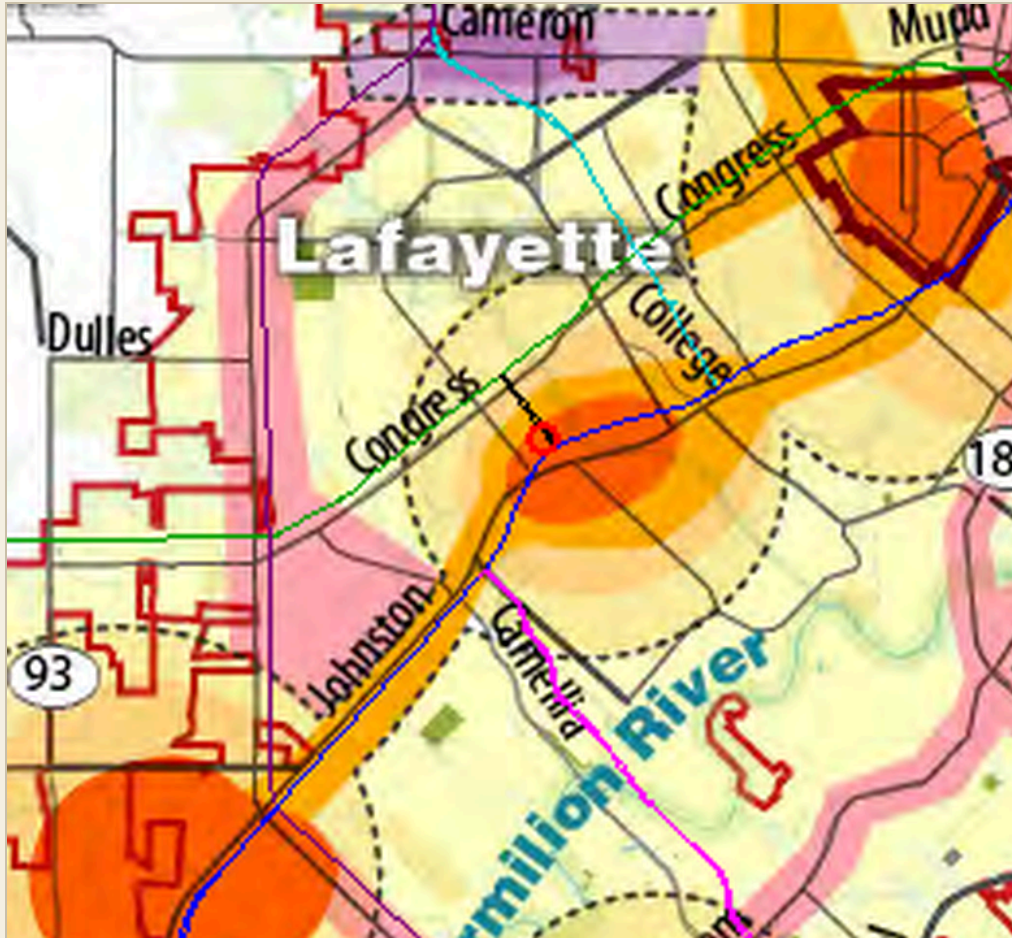
Every five years, staff will submit a Five-Year Evaluation Report to the Planning Commission that summarizes the major accomplishments of the five-year period, results of performance metrics, and recommendations for amendments to the plan. Once a specific action has been implemented as documented in the Annual Report, the performance monitoring will help to assess whether the action is having positive results.

ANNUAL REPORT	5-YEAR UPDATE	Annual Report & 5-Year Update Checklist
☒	☒	Update the Action Matrix indicating the status of each action.
☒	☒	Highlight the successes of the past year / 5 years.
☒	☒	Note any necessary changes to the actions within the plan.
☒	☒	Summarize the next year's priorities and work program and assign responsibilities.
☒	☒	Define the ongoing role for the Comprehensive Plan Citizens Advisory Committee or other vehicle for continuous citizen participation and dialogue.
☒	☒	Summarize the ongoing process for coordination (e.g., LCG departments, institutions, adjacent municipalities, LPSS, development interests, etc).
☐	☒	Update performance metrics with data from the last 5-year period or as data becomes available.

Element	Goal	Policy	Action Item	Lead	Division	Timeline (short, mid, long)	Assessment
3.1 FUTURE LAND USE							
	GOAL 1	ALIGN LAND USE, TRANSPORTATION, AND UTILITY PLANNING WITH THE FLUM.					
		1.01	Encourage compact, mixed-use, pedestrian friendly development in centers and along corridors as designated by the FLUM. (Related to Community Character - Policy 10)				
		1.01	1.1.1 Review zoning classifications for consistency with the FLUM.	DP	Planning	Short	<i>As part of the major amendment to PlanLafayette the Landuse and Transportation Implementation Guide is being developed. The future landuse map categories align with zoning classifications. Planning staff is doing administrative rezonings monthly to address problems with the zoning.</i>
		1.01	1.1.2 Review proposed transportation improvements (e.g., new roads, road extensions, road widening, transit facilities, bicycle and pedestrian improvements, etc.) for consistency with the FLUM.	DP	Planning	Short	
		1.01	1.1.3 Revise the zoning ordinance to allow and encourage mixed land uses and incentivize pedestrian and transit friendly development.	DP	Zoning	Mid	<i>LDC and amendments. Urban "A" development types incentivize urban development through reductions in parking, open space and increased density.</i>
		1.01	1.1.4 Revise the zoning ordinance to include design standards for new development that address quality, street frontage, building entrances, utility placement and scale.	DP	Zoning	Long	<i>LDC and amendments. LDC has urban development districts with A and B development types. Downtown Development Code is part of the LDC.</i>
		1.01	1.1.5 Study existing parking availability and need, and consider creating maximum parking standards for new development in mixed-use areas.	DP	Zoning	Mid	<i>The LDC established parking maximums and required the use of green infrastructure to exceed those maximums. In addition, parking requirements for the "A" development types are reduced by 50%.</i>
		1.01	1.1.6 Implement incentives through the LDC and review processes to encourage and direct development in centers and along corridors.	DP		Long	<i>Incentives are built in to the urban zoning districts by reductions in parking, open space and increased densities.</i>
		1.01	1.1.7 Use the Small Area Plans and Model Nodal Plans as prototypes to illustrate desired land use and design principles for future development.	DP	Planning	Short	
		1.02	Protect and improve residential neighborhood character, including historical and cultural neighborhood resources				
		1.02	1.2.1 Require transitions in building height and landscape setbacks or buffers between higher intensity uses and residential neighborhoods.	DP	Zoning	Mid	<i>Depending on the height, transitional building heights may apply via the bulk plane regulations in the LDC. Buffer requirements in parish. Implementing MN zoning district with smaller scale commercial and residential uses as a buffer between commercial and residential properties.</i>
		1.02	1.2.2 Build capacity for local neighborhood planning through a citizen planner and advocacy program that provides training, examples of best practices, and information about resources available to improve neighborhoods. (Related to Housing and Neighborhood Policy 11)	DP	Planning	Long	<i>Neighborhood Planning Process, Citizen Planning handbooks and Neighborhood Toolkit developed. Planner as Neighborhood Coordinator has been hired as part of planning staff.</i>
		1.02	1.2.3 Develop a neighborhood program that facilitates projects by providing the tools necessary to complete projects / programs.	DP	Planning	Mid	<i>Neighborhood Toolkit.</i>
		1.02	1.2.4 Establish a regular capital program allocation devoted to neighborhood projects under the neighborhood program.	DP	Planning	Mid	<i>Neighborhood CIP projects.</i>
		1.02	1.2.5 Address vacant lots with a streamlined adjudicated property policy and procedures to protect the historic character of older neighborhoods. (Related to Housing and Neighborhoods Policy 12, Future Land Use Policy 12)	DP	Planning	Mid	<i>Established adjudicated property process. Approximately 150 properties have been disposed of through our program to date. Implemented in the property renovation plan a requirement to protect the historic character of older neighborhoods.</i>
		1.03	Encourage employment and retail centers located throughout the parish, with downtown serving as one of the major centers for concentration of jobs and retail businesses				
		1.03	1.3.1 Work with the Lafayette Economic Development Authority (LEDA) and One Acadiana (1A) to identify undeveloped or vacant sites within future and existing employment centers to be marketed to employers.	DP		Mid	<i>Planning staff has been working closely with LEDA coordinating land use and zoning for industrial/commercial/vacant properties. Continued partnership to attract walkable development to the University Corridor and Four Corners.</i>
		1.03	1.3.2 Develop standards that require all new and rehabbed retail and employment areas to be safe and accessible for pedestrians, bicyclists, and transit users.	DP	Planning	Mid	<i>Downtown district enables awnings and galleries. In the urban zoning districts bike racks are required in proportion to the number of parking spaces.</i>

D ANALYST OVERLAY · FUTURE LAND USE MAP (FIG. 3.1)

APPROXIMATE · NOT AN LCG PRODUCT



METHOD AND LIMITS

PlanLafayette Fig. 3.1 (Ex. D-4) was enlarged, and LCG street centerlines were overlaid to locate the site. The small red circle marks the Johnston/Arnould area. Colored lines are street centerlines added for registration only. Orange is Transitional Mixed-Use along Johnston; the darker node is a Mixed-Use Center; the dashed ring is a growth area. The plan states its categories give “general guidance ... while being flexible enough to allow for specific zoning designations” (Ex. D-2). Treat this as an approximate reading.

EXHIBIT



Lafayette Development Code (amended May 2026), excerpts

SHOWS	Districts, use table, definitions, parking, rezoning, nonconformities.
SOURCE	LCG
PROVENANCE	https://www.lafayettela.gov/media/2u5npq3j/master-ldc-combined-may-2026.pdf — PDF pp. 1, 13-14, 21-22, 59-70, 72, 137-140, 202-204, 303-306, 309-310.
PAGES	E-1 to E-31



LAFAYETTE DEVELOPMENT CODE

Article 2. Districts

Summary: this Chapter establishes the zoning districts for the City of Lafayette, the regulations that apply to each district, and a comprehensive list of uses (the “Use Table”).

⇔ *Technical standards such as how building height and setbacks are measured, how buildings relate to utility easements, development in required setbacks, and development on substandard rights of way, are addressed in **Article 3**.*

89-6 Generally

- (a) To promote the public health, safety, morals, and general welfare of the community, the City of Lafayette is divided into the following districts:

District	Cross-Reference	PlanLafayette Future Land Use
“A” Agricultural	89-8	Rural / Agriculture. ⇔ <i>Buffer and building design requirements of Article 4 apply if the area is not zoned.</i>
“RS-1” and “RS-2” Residential Single-Family	89-9	Residential
“RM-1” and “RM-2” Residential Mixed	89-10	Mixed Residential
“MN-1,” “MN-2” and “MN-3” Mixed-Use Neighborhood	89-11	Transitional Mixed-Use
“MX-1” and “MX-2” Mixed-Use Center	89-12	Mixed-Use Center
“D” Downtown	89-13	Mixed-Use Center
“CM-1” and “CM-2” Commercial Mixed	89-14	Commercial / Office
“CH” Commercial Heavy	89-15	Commercial / Office
“IL” Industrial Light	89-16	Office / Industrial
“IH” Industrial Heavy	89-17	Office / Industrial
“PD” Planned Development	89-18	Any of the above
“PI-L” and “PI-H” Public/Institutional	89-19	Any of the above & Public Park

- (1) The RS, RM, MN and CM districts each have subdistricts (*e.g.*, RS-1, RS-2). The uses allowed in a district are consistent across subdistricts, whereas dimensional and development standards differ.
- (2) The MN, CM and CH districts include alternative development types, labeled “A” and “B.” **Development Type “A”** provides for urban-type development, with reduced landscaping and parking requirements but increased frontage buildout requirements. **Development Type “B”** provides for more conventional, suburban-type development, with greater parking, landscaping and green infrastructure requirements to accommodate vehicular access and to mitigate the impacts of paved surfaces and buildings. The

following criteria determine whether an application is required to use Development Type “A” or “B”:

Parking <i>(on-street on adjoining streets that provide direct access to the property)</i>	Any street includes on-street parking or has the capacity for on-street parking.
Speed limit <i>(adjoining streets that provide direct access to the property)</i>	≤ 35 mph
Street Classification <i>(adjoining streets that provide direct access to the property)</i>	All streets are classified as minor arterials or collectors, or are local streets.
Mix of Uses¹	There is at least one Residential, Commercial/Mixed-Use, and Public/Civic/Institutional use within a quarter mile of the property. These uses are those classified by the use table within the labeled Use Category (§Table 89-21-1).
Density²	There are residential uses other than dwelling, single-family detached within a quarter mile of the property.

¹When determining “Mix of Uses,” a quarter-mile is measured as the distance a person walks or drives from the nearest point of the subject property line to the nearest point of the second property line.

²When determining “Density,” a quarter-mile is measured as the radius from the centroid of the subject property.

Sites that meet all five (5) of the criteria above shall be required to use development type “A” unless otherwise determined by the Board of Zoning Adjustment. Sites that do not meet all five (5) of the criteria above may use either Development Type “A” or Development Type “B.”

- (b) Notwithstanding any setback established by this Article, buildings adjacent to substandard streets may be subject to additional setbacks (see Article 3, §89-38).
- (c) Private Roads and Driveways. A Private Road or driveway shall be accessory to the principal use of the parcel or lot upon which the same is located. Where a Private Road or driveway is the principal use of a parcel or lot, the use of such Private Road or driveway shall be concordant with the zoning district of the property upon which the Private Road or driveway is located. Accordingly, a Private Road or driveway located on property zoned RS shall not be trafficked except for traffic accessory to uses permitted in the RS district. Notwithstanding the forgoing, traffic, accessory to uses permitted in the RS district, shall be permitted on Private Roads and driveways located within the RM district; traffic, accessory to uses permitted in the RS and RM districts, shall be permitted on Private Roads and driveways located within MN, CM and CH;

89-11 “MN” Mixed-Use Neighborhood

Purpose: the “MN” district –

- implements the Transitional Mixed-Use future land use category of PlanLafayette,
- provides an opportunity to establish neighborhood retail, convenience, service, office, and institutional uses in the Residential and Mixed Residential categories,
- provides a transition between residential areas and more intense commercial corridors, and
- provides opportunities for pedestrian access between residential and commercial areas.

Each district has type “A” (urban) and type “B” (suburban) development types, as described and permitted in § 89-6.



(a) Permitted Uses. See § 89-21.

(b) Dimensional Standards.

		MN-1		MN-2		MN-3	
Development Type		A	B	A	B	A	B
Lot Requirements							
1	Lot size (<i>min</i>)	n/a	n/a	n/a	n/a	n/a	n/a
2	Density (<i>max</i>)	20	20	n/a	25	n/a	30
<i>* applies to mixed-use or residential uses only</i>							
3	Open space (<i>min</i>)	n/a	15%	n/a	10%	n/a	15%
Setbacks (<i>principal buildings</i>)							
4	Front / corner street (<i>min</i>)	n/a	n/a	n/a	n/a	n/a	n/a
5	Front / corner street (<i>max</i>)	20'	n/a	20'	n/a	15'	65'
6	Frontage buildout (<i>min</i>)	65%	n/a	75%	n/a	90%	65%
7	Side (<i>min</i>)	n/a	n/a	n/a	n/a	n/a	n/a
8	Rear-common property line or alley (<i>min</i>)	5'	5'	5'	5'	5'	5'
Height (↔ See 89-27)							
9	Bulk Plane (<i>from RS boundary</i>)*	n/a	2	n/a	3	n/a	3
10	Building Height (<i>max stories</i>)	3**	n/a**	4	n/a	5	n/a

*The Bulk Plane number above indicates the maximum stories for the first 50' from the front, side or rear lot line, then 1 additional story for each additional 50 feet from the setback line. This

requirement does not apply beyond 200’ from any lot line bordering the RS district.

**The max Building Height in MN-1 A or B for Apartment Hotels and Multi-family housing types on a lot that abuts an RS zoning district shall be 2 stories.

- (c) Whenever a setback greater than the maximum setback established by this Section is required under § 89-38(e), the setback requirements of § 89-38(e) shall supersede the maximum setback established in this Section. In that case, the setback required under § 89-38(e) shall be the maximum setback.
- (d) In the MN district, no sound shall be amplified outside of the confines of a building.
- (e) Drive-in and drive-through establishments are subject to Article 5, § 89-80.
- (f) For frontages on Minor Arterials, Collectors, or local streets: if the width of the front lot line is one hundred (100’) feet or less, the buildout requirement is reduced by ten (10%) percentage points.
- (g) For frontages on Major Arterials: the frontage buildout requirement is reduced to 40% for corner lots.
- (h) For a single-family detached dwelling, the minimum setbacks shall be subject to the same minimum setbacks as the “RM” Residential-Mixed zoning district.
- (i) Corner lot developments will use highest classified road, as determined by LCG, when determining frontage buildout and setback requirements.
- (j) A detached Single-Family Residence in the MN zoning district shall be subject to a minimum lot size of 3,000 square feet.

89-12 “MX” Mixed-Use Center

Purpose: the “MX” districts implement the Mixed-Use Center future land use category of Plan Lafayette for centers outside of Downtown. This includes a wide range of commercial, institutional and residential uses, and development design and intensity that supports walkable streets and transit. MX districts are part of approved mixed-use centers (MUCs) (see § 89-28). The MX district is divided into subdistricts based upon the development context, and the location of a lot on an “A” or “B” Street.

- ⇔ *See Article 3, § 89-28 (Mixed-Use Center Design Standards) for processes and standards for designating mixed-use centers and master plan elements such as MX subdistricts and “A” and “B” streets.*
- ⇔ *See Article 3, § 89-29 (Mixed-Use Building Standards) for building design standards that are referenced in this section. These include minimum buildout, entryways, façade design, and architectural features.*

(a) Permitted Uses. See § 89-21.

(b) Dimensional Standards

89-20 Annexed Territory

(a) Generally

- (1) All territory that is annexed to the City of Lafayette is automatically assigned the “A” Agricultural classification until existing land uses are determined and a new zoning category is adopted.
- (2) In lieu of the “A” district, the applicant for annexation may provide an application for rezoning concurrent with any petition for annexation. If the proper notice is given, the zoning classification may be approved concurrent with final approval of the annexation, or after the annexation is complete.
- (3) **Time limitations.** Unless another district is applied at the time of annexation, the “A” district zoning classification will apply to that property until:
 - a. The LCG initiates and approves a rezoning to another zoning district as provided in Article 4.
 - b. The owner or owners of property automatically zoned “A” may file an application to rezone the property as provided in Article 4. The appropriate Zoning Commission will then proceed through normal zoning reclassification procedures.
 - c. Property automatically zoned “A” is considered on a priority basis and shall be scheduled at the earliest possible scheduled regular meeting of the appropriate Zoning Commission.

89-21 Use Table

- (a) This section establishes the uses that are permitted in each zoning district. Each use is defined in subsection (d), below.
- (b) The Use Table (Table 89-21-2) establishes the following categories of uses:

Table 89-21-1 Use Categories

Notation	Category	Description
P	By right	The use is permitted if it meets the standards established in the zoning district, and any other applicable standards of this Chapter.
C	Conditional Use	The use requires a conditional use permit approved by the appropriate Zoning Commissions (see § 89-54).
A	Accessory Use	A use customarily incidental and subordinate to the principal use or building and located on the same lot with the principal use or building.
	Not permitted	A blank cell indicates that the use is not allowed in the district. A property owner who wants to establish the use may apply for a rezoning to a district that does allow the use.

- (c) If a use is not defined in this Section, the Administrator may authorize the use if –
 - (1) The use is functionally the same as a listed use, or

- (2) The use has similar visual, traffic, environmental and similar impacts as an expressly listed use. The Administrator may refer to empirical studies or generally accepted planning or engineering sources in making this determination. The burden is on the applicant to establish that the use is similar to the expressly listed use, or
- (3) Other comparably sized jurisdictions have successfully integrated the use in one or more equivalent zoning districts.
- (4) The use is within the same industry classification as another permitted use. In making this determination, the Administrator may refer to the most recent edition of the *North American Industry Classification Manual* (Executive Office of the President, Office of Management and Budget, (“NAICS”). If the use is not defined in the NAICS, the Administrator may refer to the most recent addition of the American Planning Association, *Land-Based Classification Standards LBCS Tables*, or any other recognized and accepted publication in the industry.

Table 89-21-2 Use Table

Use Category	“ A” Agricultural	“ RS-1” Residential Single-Family	“ RS-2” Residential Single-Family	“ RM” Residential Mixed	“ MN” Mixed-Use Neighborhood	“ MX” Mixed-Use Center	“ D” Downtown	“ CM” Commercial Mixed	“ CH” Commercial Heavy	“ PL-L” Public/Institutional-Light	“ PL-H” Public/Institutional-Heavy	“ IL” Industrial Light	“ IH” Industrial Heavy
Residential													
Residences:													
Dwelling, single-family detached	P	P		P	P								
Accessory apartment	P	P		P	P	P	P	C	C				
Cottage Courts		C	P	P	P		C	P					
Dwelling, two-family (duplex)		C	P	P	P			P					
Multi-family				P	P	P	P	P	P				
Live/Work Dwelling				P	P	P	P	P					
Manufactured home													
Manufactured Housing Land Lease Community	P		C	C									
Apartment House				P	P	P	P	P					
Apartment Hotel					P	P	P	P	P				
Townhouse / Row house		C	P	P	P	P	P	P					
Group Living:													
Boarding House				P	P	P	P						
Community living				P	P	P	P	P	P				
Community home	P		P	P	P	P	P	P				P	
Life care or continuing care services					P	P	P	P	P				
Lodging													
Bed and breakfast			C	C	C	C	C	C					

Table 89-21-2 Use Table

Use Category	" A" Agricultural	" RS-1" Residential Single-Family	" RS-2" Residential Single-Family	" RM" Residential Mixed	" MN" Mixed-Use Neighborhood	" MX" Mixed-Use Center	" D" Downtown	" CM" Commercial Mixed	" CH" Commercial Heavy	" PL-L" Public/Institutional-Light	" PL-H" Public/Institutional-Heavy	" IL" Industrial Light	" IH" Industrial Heavy
Short-Term Rental *See LCG Code, Chapter 73-3	P*			P*	P*	P*	P*	P*	P*			P*	P*
Hotel (small)					P	P	P	P	P			P	P
Hotel / Motel						P	P	P	P			P	P
Recreational vehicle park	C								C	C	C		
Commercial / Mixed-Use													
Animal Services:													
Animal hospital (indoor)					P	P	P	P	P			P	P
Animal services, generally							P	P	P			P	
Financial Services:													
Automated teller machine, stand alone						P	P	P	P	P	P	P	P
Financial institutions					P	P	P	P	P	A	A	P	P
Food & Beverage Sales / Service:													
Bar / Lounge					C	P	C	C	P	C	C	P	
Food/Art market					P	P	P	P	P	A	A		
Food preparation					P	P	P	P	P	A	A		
Food service					C	P	P	P	P	A	A		
Mobile Food Establishment	A	A	A	A	A	A	A	A	A	A	A	A	A
Mobile Food Establishment Park					C	P	P	P	P			P	
Mobile vendor					P	P	P	P	P	A	A	P	
Restaurant					C	P	P	P	P	A	A	P	
Snack or beverage bars					P	P	P	P	P	A	A	P	
Mixed-Use:													
Mixed-use building					P	P	P	P	P	A	P		
Office, Business & Professional:													
Office					P	P	P	P	P	P	A	P	
Personal / Business services:													
Bail bond services							P	P	P			P	
Business support services						P	P	P	P	A	A	P	
Courier, messenger and delivery services						P	P		P	A	A	P	P
Day Labor Service							P		P			P	P
Funeral & interment services							P	P	P			P	
Crematorium									P			P	P
Linen/Uniform Supply							P	P	P	A	A	P	P
Maintenance & repair services							P	P	P			P	P
Personal services					P	P	P	P	P	A	A		

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Use Category	" A" Agricultural	" RS-1" Residential Single-Family	" RS-2" Residential Single-Family	" RM" Residential Mixed	" MN" Mixed-Use Neighborhood	" MX" Mixed-Use Center	" D" Downtown	" CM" Commercial Mixed	" CH" Commercial Heavy	" PI-L" Public/Institutional-Light	" PI-H" Public/Institutional-Heavy	" IL" Industrial Light	" IH" Industrial Heavy
Pick-up station (laundry and/or dry cleaning)					P	P	P	P	P				
Retail sales:													
Convenience store					P	P	P	P	P	C	C	P	
Convenience store (with fuel sales)							C	C	P		P	P	
Nonstore retailers						P	P	P	P			P	
Nursery/Horticulture/Farm Supply		C					P	P	P			P	
Retail, limited (A)					P	P	P	P	P	A	A	P	
Retail, limited (B)						P	P	P	P	A	A	P	
Retail, general						P	P		P	A	A	P	
Vehicles / Equipment:													
Auto and truck repair									P			P	P
Automobile or vehicle dealership						P	P		P			P	P
Building material sales & services								C	P			P	
Car Wash									P			P	P
Commercial and Industrial Machinery and Equipment Rental and Leasing									P			P	P
Gasoline or diesel fuel sales								C	P			P	P
Manufactured Home Dealers									P			P	P
Truck stop												P	P
Public/Civic/Institutional													
Day Care:													
Adult day care					C	P	P	P	P				
Child care facility, commercial				C	P	P	P	P	P	A	A	P	
Child care facility, residential	P	P		P	P	P	P	P					
Assembly:													
Cemetery/mausoleum/columbarium	P			P	P		P	P	P	P	P	P	P
Church or worship center	P	P		P	P	P	P	P	P	P	P	P	P
Exhibition, convention, or conference facility						P	P	P	P		P	P	
Banquet, reception, or event hall						P	P	P	P	P	P	P	
Club or lodge (private)				C	P	P	P	P	P	P	P		
Government / Non-Profit:													
Armory											P	P	P
Detention or penal institution							P				P	P	P
Vehicle / equipment maintenance facility										A	P	P	P
Public Safety Facility	P	P		P	P	P	P	P	P	P	P	P	P

Table 89-21-2 Use Table

Use Category	" A" Agricultural	" RS-1" Residential Single-Family	" RS-2" Residential Single-Family	" RM" Residential Mixed	" MN" Mixed-Use Neighborhood	" MX" Mixed-Use Center	" D" Downtown	" CM" Commercial Mixed	" CH" Commercial Heavy	" PI-L" Public/Institutional-Light	" PI-H" Public/Institutional-Heavy	" IL" Industrial Light	" IH" Industrial Heavy
Social assistance, welfare, and charitable services						P	P	P	P	P	P	P	
Postal services					P	P	P	P	P	P	P	P	P
Educational:													
College / technical school						P	P	P	P	C	P	P	
School (public or private)	P	P	P	P	P	P	P	P	P	P	P	P	P
Personal instructional services					P	P	P	P	P	A	P	P	
Medical:													
Hospital or sanitarium						P	P	P	P		P	P	
Medical office, clinic, or laboratory					P	P	P	P	P	A	A	P	P
Arts, Entertainment, & Recreation:													
Adult business									P			P	P
Civic Spaces		P	P	P	P	P	P	P	P	P	P	P	P
Cultural facility					P	P	P	P	P	P	P		
Entertainment facility					C	P	C	C	P	P	P		
Theater					C	P	P	P	P	P	P		
Health/fitness club					P	P	P	P	P	P	P	P	
Recreational Facility, Indoor					P	P	P	P	P	P	P	P	
Recreational Facility, Outdoor or Major	C						P		P	P	P		
Industrial / Production													
Manufacturing & Employment:													
Contractor	C											P	P
Data Processing, Hosting, and Related Services (including data centers)					P	P	P	P	P	A	P	P	P
Dirt pit, sand pit or similar excavation	C												
Industrial Services												P	P
Media Production							P	P	P	A	P	P	P
Mining & quarrying													
Manufacturing, Light						P	P	P	P			P	P
Manufacturing, General							C		C			P	P
Manufacturing, Intensive												P	P
Oil and gas company (drilling and exploration)												P	P
Research and development						P	P				P	P	P
Oil and mining support activities												P	P

Table 89-21-2 Use Table

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Stone cutting												P	P
Warehousing, Storage & Distribution:													
Building and landscaping materials supplier									P			P	P
Building maintenance services							P		P			P	P
Freight depot (railway and truck)												P	P
Fuel Distribution or Recycling													P
Machinery and heavy equipment sales and service									P			P	P
Self-service storage facility					C		P	C	P			P	P
Oil & gas storage												P	P
Outdoor storage									P			P	P
Vehicle towing and storage facility													
Wholesale distribution, warehousing and storage							P		P			P	P
Infrastructure													
Transportation / Parking:													
Airport												P	P
Ground passenger transportation (e.g. taxi, charter bus)							P		P		P	P	P
Heliport / miscellaneous air transportation					A	A	A	A	A		A	A	A
Parking facility							P	P	P	A	P	P	P
Railroad facilities												P	P
Railroad right-of-way	P	P	P	P	P	P	P	P	P	P	P	P	P
Passenger depot							P					P	P
Transit shelter		P	P	P	P	P	P	P	P	P	P	P	P
Utilities:													
Utility, Major	P	P	P	P				P	P		P	P	P
Utility, Minor	P	P	P	P			P	P	P	P	P	P	P
Communications facilities:													
Communications facility	P					P	P	P	P	A	P	P	P
Wireless communication tower or antenna	P					C	P	C	P	A	P	P	P
Weather or environmental monitoring station	P					P	P	P	P	A	P	P	P

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Waste-related:													
Hazardous waste disposal													
Hazardous waste transfer													
Junk yards													
Recycling plant													P
Remediation Services													P
Solid waste													
Agriculture													
Farming	P	P	P	P	P	P	P	P	P	P	P	P	P
Poultry and egg production	P											P	P
Community garden	P	P	P	P	P	P	P	P	P	P	P	P	P
Crop Agriculture	P	P	P	P	P	P	P	P	P	P	P	P	P
Community Supported Agriculture	P	P	P	P	P	P	P	P	P	P	P	P	P
Accessory													
Accessory use (generally)	A	A	A	A	A	A	A	A	A	A	A	A	A
Accessory commercial uses				C									
Accessory farm use	A	A	A	A	A	A	A	A	A	A	A	A	A
Accessory schools	A	A	A	A	A	A	A	A	A	A	A	A	A
Accessory retail and personal service, office, or recreational use	A	A	A	A	A	A	A	A	A	A	A	A	A
Caretaker or guard	A	A	A	A	A	A	A	A	A	A	A	A	A
Construction yard									A	A	A	A	A
Home occupation	A	A	A	A	A	A	A	A	A				
Model home complex / temporary real estate sales office	A	A	A	A	A	A	A	A	A				
Parking garage, private						A	A	A	A		A	A	A
Pharmacy, accessory				C	A	A	A	A	A		A	A	
Recreational facility, accessory		A	A	A	A	A	A	A	A	A	A	A	A
Sign	A	A	A	A	A	A	A	A	A	A	A	A	A
Storage	A			A	A	A	A	A	A	A	A	A	A
Electric Charging Stations					A	A	A	A	A	A	A	A	A
Miscellaneous													
Temporary Uses	A	A	A	A	A	A	A	A	A	A	A	A	A

(d) The uses listed in the Use Table (Table 89-21) above are defined as follows:

Residential	
Residences	
Dwelling, single-family detached	A detached building designed as a residence for one family.
Accessory apartment	A secondary, independent living facility located in, or on the same lot as, a single-family residence, or such other principal structure or use as approved by the Administrator. An accessory apartment may be rented to a household separate from that occupying the principal building on the lot.
Cottage Courts	A single lot that includes detached single family dwellings or duplexes arranged around a courtyard or open space.
Dwelling, two-family (duplex)	A single building designed as a residence for two families living separately on one lot. The units may be integrated horizontally, vertically (with one above the other), or back to back. No more than one duplex shall be allowed on a single lot.
Multi-family	A building designed as a residence for more than two families living separately, sometimes called apartments or flats. It includes any form of family occupancy, including traditional or non-traditional households, elderly housing, or retirement housing. The units may be integrated horizontally and vertically, or with 2 units stacked vertically and separated from adjacent units by a party wall (sometimes called "stacked flats"). Two or more duplexes on a single lot shall be considered Multi-family.
Live/Work Dwelling	A principally residential building that includes an office, studio, or other commercial use and a single dwelling unit occupied by the building owner. Compare: (1) Home Occupations (listed under "Accessory," below). A live-work unit allows a broader range of commercial and production-type uses and more non-residential floor area than a home occupation. In addition, a live-work unit may be designed as a townhouse or with a storefront or other commercial design configuration at the ground level, while a home occupation occurs in a building that is designed as a residence. (2) Mixed-use Building (listed under Commercial / Mixed-use – Mixed-use, below). A Mixed-use Building allows multiple businesses and residences in the same building, while a Live/Work Dwelling is generally limited to a single dwelling unit and a single business.
Manufactured home	A factory-built dwelling unit constructed to the standards and codes promulgated by the United States Department of Housing and Urban Development (HUD), under the National Manufactured Housing Construction and Safety Standards Act of 1974, 42 U.S.C. §5401 et seq., as amended ((See LRSA 51:911.22)).
Manufactured Housing Land Lease Community	A parcel or tract of land where the principal use is the rental, leasing or occupancy of space by two or more manufactured homes on a permanent or semi-permanent basis, and customary accessory buildings or uses such as clubhouses, laundries, or management and sales units.
Apartment House	A building that - (1) is a converted single-family detached dwelling, or with architectural features and massing that are compatible with single-family dwellings, and (2) that consists of at least 3 separate dwelling units. This use type is different from a boarding house in that the units are intended for occupancy as permanent residences, and each unit may have separate kitchens and bathroom facilities. This use type is sometimes called a "big house."
Apartment Hotel	A hotel in which at least 90 percent of the hotel accommodations are available for occupancy by permanent guests.
Townhouse / Row house	A single-family dwelling forming one of a group or series of two or more attached single-family dwellings, separated from one another by a property line, party walls without doors, windows, or other provisions for human passage or visibility through the walls from basement or cellar to roof, and having roofs which may extend from one of the dwelling units to another.
Group Living:	
Boarding House	A building other than a hotel where meals or lodging, or both, are provided for compensation by pre-arrangement for a definite period. Examples include dormitories, fraternities, sororities, or dorms. This use type does not include a hotel, motel, or multi-family building. A multifamily building or apartment house includes separate dwelling units occupied by a single household, while a boarding house includes separate households sharing kitchen facilities.
Community living	Establishments primarily engaged in providing one or more of the following housing services: (1) short term emergency shelter for victims of domestic violence, sexual assault, or child abuse; (2) temporary residential shelter for the homeless, runaway youths, and patients and families caught in medical crises; or (3) transitional housing for low-income individuals and families. <i>Note: while the industry (NAICS) category includes construction of low cost housing and housing repair activities, those features are not regulated by zoning, and the housing types would fall within another listed category.</i>
Community home	A facility certified, licensed, or monitored by the Department of Health and Hospitals to provide resident services and supervision to six or fewer handicapped persons. Such facility shall provide supervisory personnel in order to function as a single family unit but not to exceed two live-in persons. (Source: LRSA § 28:477) This use does not include persons handicapped by reason of current drug abuse or alcohol abuse, nor shall it apply to handicapped persons currently under sentence or on parole from any criminal violation or who have been found not guilty of a criminal charge by reason of insanity.
Life care or continuing care services	An institution, residence or facility that provides accommodation and personal assistance to residents who depend on the services of others by reason of age and physical or mental impairment, and that is licensed to provide skilled nursing care. This category includes nursing or convalescent homes, hospices, or assisted living facilities. A "nursing or convalescent home" is any part of a building where shelter, board, and nursing care for 3 or more persons of all ages not related to the operator, requiring that care because of infirmities of old age, illness, and/or disability of a physical or mental nature. "Assisted living" is a residence that primarily serves the elderly and provides rooms and meals, and may provide personal care and supervision of self-administered medication. They may provide other services, such as recreational activities, financial services and transportation. This use does not include an establishment which provides care only during the day, or a halfway house for recovering alcohol and drug abusers.

Live/Work Dwelling	A principally residential building that includes an office, studio, or other commercial use and a single dwelling unit occupied by the building owner. 6-Compare: (1) Home Occupations (listed under "Accessory," below). A live-work unit allows a broader range of commercial and production-type uses and more non-residential floor area than a home occupation. In addition, a live-work unit may be designed as a townhouse or with a storefront or other commercial design configuration at the ground level, while a home occupation occurs in a building that is designed as a residence. (2) Mixed-use Building (listed under Commercial / Mixed-Use – Mixed-Use, below). A Mixed-use Building allows multiple buildings and residences in the same building, while a Live/Work Dwelling is generally limited to a single dwelling unit and a single business.
Lodging	
Bed and breakfast	An owner- or operator-occupied house, or part of a house, that offers no more than 9 guest bedrooms for overnight paid occupancy of up to 30 consecutive nights, and where breakfast is provided to guests.
Short-Term Rental	The provision of a Dwelling or Dwelling Unit that offers one or more guest rooms, and that is suitable and utilized solely for temporary residential occupancy for a period of fewer than 30 consecutive days, in exchange for compensation.
Hotel (small)	A Hotel that does not contain more than 50 guest rooms and does not exceed three stories in height.
Hotel / Motel	A building containing rooms intended or designed to be used or which are used, rented, or hired out to be occupied, or which are occupied for sleeping purposes by guests and transients and where only a general kitchen and dining room are provided within the building or in an accessory building.
Recreational vehicle park	A parcel or tract of land where Spaces are offered for rent and/or rented for Recreational Vehicles which may include Common Area. This use does not include a Manufactured Housing Land Lease Community.
Commercial / Mixed-Use	
Animal Services:	
Animal hospital (indoor)	Any part of a building designed or used to care for or observe animals under medical treatment, supervised by a licensed veterinarian. The treatment of animals occurs entirely inside the principal building and not in ancillary or accessory buildings. This use does not include outside kennels.
Animal services, generally	Any part of a building designed or used to care for, board, groom, observe, or treat animals, supervised by a licensed veterinarian. This use may include overnight boarding or outdoor confinement or exercise areas. Includes a dog pound.
Financial Services:	
Automated teller machine, stand alone	An automated teller machine that is at a location separate from the controlling financial institution.
Financial institutions	A business where the primary occupation is financial services such as banking, savings and loans, loan offices, and check cashing and currency exchange outlets. It does not include financial services that typically occur in an office or storefront, such as investment companies, loan companies, credit and mortgage, insurance services, or brokerage firms), which are classified under "Office," below.
Pawn shop	A business that loans money on the security of pledges, deposits or other secured transactions in personal property (other than vehicles or other transportation devices).
Food & Beverage Sales / Service:	
Bar / Lounge	An establishment where the main source of revenue is the sale of alcoholic beverages which are customarily consumed on the premises. This includes taverns, brewpubs, microbreweries, neighborhood taverns/bars/pubs, or micro distilleries where food and drink are served on the premises.
Food/Art market	A structure or place where agricultural produce, art or hand-made craft is brought for the purpose of retail sales from vehicles, temporary stands, or stalls. These include more than one seller per parcel of land. Examples include farmers markets, seafood markets, mobile markets, art markets, maker markets, and craft fairs.
Food preparation	A business that prepares food and beverages for off-site consumption, including delivery services. Examples include catering shops, bakeries with on-site retail sales, and the small-scale production of specialty foods (such as sweets). This classification excludes food production of an industrial character.
Food service	An establishment for retail sales of food and beverages for off-site preparation and consumption. Examples include grocers/supermarkets, specialty food stores, fruit and/or vegetable stands, butcher shops, delicatessens, dairy product sales, food cooperatives, or convenience markets. This category also includes large-scale stores that sell food items and beverages in bulk.
Mobile Food Establishment	A vehicle-mounted Food Establishment (as defined by LCG Code of Ordinances, Chapter 70, Section 70-86) designed to be readily movable which includes a motorized or towed self-contained food service operation truck or towed self-contained trailer unit designed to be readily movable. A Mobile Food Establishment shall not mean a stand, booth or cart.
Mobile Food Establishment Park	A lot of record which is occupied or intended or designed or improved for occupancy by not less than two nor more than ten Mobile Food Establishments for the purpose of offering food and/or drink for sale to the public as the principal use of the lot of record in compliance with §89-95-4.
Mobile vendor	Any person, including any employee or agent of another, who sells or offers to sell, barter or trade from a vending vehicle, trailer or cart. Mobile vendors do not include Mobile Food Establishments.
Restaurant	A structure where food and drink are prepared, served, and consumed. Examples include microbreweries, micro distilleries, sit-down restaurants, cafes, delis, ice cream parlors, specialty food and/or outside dining patios and sitting areas. May include take-out, drive-in, sit-down service, or the sale and consumption of alcohol. The zoning district regulations indicate whether a drive-thru facility for food service is allowed.

Snack or beverage bars	Establishments primarily engaged in (1) preparing and/or serving a specialty snack, such as ice cream, coffee and/or pastries, frozen yogurt, cookies, or popcorn, or (2) serving nonalcoholic beverages, such as coffee, juices, or sodas for consumption on or near the premises.
Mixed-Use:	
Mixed-use building	A building with any of the following floor space configurations: (1) an office, as defined below, located above the ground floor, where the ground floor is occupied by any use permitted by right in the applicable zoning district, or any use permitted as a conditional use in the applicable zoning district, provided that, with respect to such conditional use, a conditional use permit has been issued by the appropriate agency; or (2) any use permitted by right in the applicable zoning district, or any use permitted as a conditional use in the applicable zoning district, provided that, with respect to such conditional use, a conditional use permit has been issued by the appropriate agency, and residential dwelling units above the ground floor or behind the non-residential floor area. The floor space above the ground floor may be occupied by non-residential floor area in addition to residential dwelling units.
Office, Business & Professional:	
Office	A building principally occupied by professional, semi-professional, business, government/municipal, philanthropic institutions, or client-oriented services. Offices do not include retail or wholesale activities which require the receiving, stocking, storing, displaying, manufacturing, selling, or renting of merchandise or equipment, except where specifically permitted as an accessory use. Offices include the administrative, clerical or public contact offices of a government agency. All services are rendered within the principal building, and no outside areas are used to perform services. Examples of businesses include law firms, publishers, business services, sales, marketing, interior decorators, and studios for professional work or teaching.
Personal / Business services:	
Bail bond services	An office that engages in the sale or issuance of bail bonds or other financial transfers for the purpose of securing the release from jail of an accused defendant pending trial.
Business support services	Includes blueprinting, printing, graphics, photostating, copying, packaging, labelling, and similar services. "Printing" and "graphics" mean business engaged in the custom design and/or reproduction of written or graphic materials. Typical processes include computerized design and printing, photocopying, and facsimile sending and receiving.
Courier, messenger and delivery services	Establishments primarily engaged in providing air, surface, or combined mode courier services, express delivery services of parcels, or local messenger and delivery services of small items, with local pick-up and delivery. Examples include air courier services, express delivery services; local delivery services for letters, documents, or small parcels; grocery delivery services (i.e., independent service from grocery store), or restaurant meals delivery services.
Day Labor Service	Any building or premises that serves as a staging point or gathering place for persons who are seeking immediate employment in daily labor activities and who accept or are assigned employment in accordance with whatever employment is available on that particular day. For purposes of this definition, "day labor" means manual labor, such as construction cleanup, garbage pickup and removal, demolition, convention setup and takedown, landscaping, planting, and digging.
Funeral services	Any place or premises devoted to or used in the care and preparation for burial of the body of a deceased person or maintained or held out to the public by advertising or otherwise as the office or place for the practice of funeral directing (source: RS 37:831). For example funeral homes.. (Note: cemeteries are classified under Public/Civic/Institutional - Assembly, below).
Crematorium	The building or portion of a building that houses the chamber for cremation and the holding facility.
Linen/Uniform Supply	Establishments that supply laundered items, such as table and bed linens; towels; diapers; and uniforms, gowns, or coats of the type used by doctors, nurses, barbers, beauticians, and waitresses.
Maintenance & repair services	An establishment providing repair services for personal and household goods, such as household appliances, computers, radio, television, audio or video equipment, office machines, furniture and leather goods, and metal sharpening. This classification excludes building maintenance services and maintenance and repair of automobiles and other vehicles and equipment.
Personal services	A business which provides a service to the general public. This includes, but is not limited to, barber shops, beauty shops/salons, laundries (including self-service), dry cleaners, tailors, seamstresses or dressmakers, taxidermist, pet groomers, photographers, wedding planning, wedding chapels, dating services, nail salons, massage establishments, tattoo parlors, and shoe shining or repair. This does not include social escort, bail bond, or other services listed separately.
Pick-up station (laundry and/or dry cleaning)	Establishments that accept from the public clothes or other materials to be laundered or dry-cleaned, and for which a charge is made. The laundering or dry-cleaning work is done by a laundry or dry cleaning establishment that is not on the premises of the pickup station.
Retail sales:	
Convenience store	Establishments that retail a limited line of goods that generally includes milk, bread, soda, alcohol and package liquor, and snacks, but not fuel sales for vehicles.
Convenience store (with fuel sales)	Establishments that retail a limited line of goods that generally includes milk, bread, soda, alcohol and package liquor, snacks, and fuel sales or electric charging stations for personal/passenger vehicles and trucks, not to include those vehicles commonly known as "18-wheelers", "tractor-trailers", etc.
Nonstore retailers	Establishments that retail merchandise through online, mass media, telephone, mail, or similar methods (infomercials, direct-response advertising, paper and electronic catalogs, door-to-door solicitation, in-home demonstration, selling from portable stalls, vending machines, and similar methods). Examples include mail-order houses, vending machine operators, home delivery sales, door-to-door sales, party plan sales, electronic shopping, and sales through portable stalls (e.g., street vendors).
Nursery/Horticulture/Farm Supply	A place for the propagation or sale of small trees, shrubs, garden supplies, and plants. This classification includes the sale of seed and feed, landscape materials, soils, and rental of landscaping equipment.

Retail, limited (A)	An establishment engaged in the sale and/or rental of goods such as apparel and accessories/uniforms, bicycles, cameras and photographic supplies, candy and confections, electronics, entertainment media (such as videos, compact discs, DVDs, or computer games), floral goods, gifts and novelties, hardware, health and personal care (such as pharmacies, cosmetics and optical or surgical supplies), hobby, home décor, jewelry, luggage and leather goods, music, news, media (newsstands), office supplies, pets, picture frames, shoes, sporting goods, stationary, tobacco, toys, used merchandise/antiques, arts and crafts, or similar items. This includes artist studios/galleries that both create and sell visual artwork. Each Retail, Limited (A) use on a Lot shall be limited to six thousand (6,000) gross square feet per lot.
Retail, limited (B)	An establishment engaged in the sale and/or rental of all goods permitted in Retail, limited (A) with not limitation on gross square feet per lot, and, additionally, the sale and/or rental of goods such as beer or liquor (package), firearms, and furniture.
Retail, general	An establishment engaged in sale and/or rental of all goods, permitted in Retail, limited (B), and, additionally, appliances, auto parts/tires, general merchandise, heating and plumbing equipment, and pawn shops. This use classification shall also include the sale and/or rental of goods at establishments such as department stores, warehouse clubs, variety stores (see §89-151), superstores, swap meets and flea markets, auctions, and consumer goods rental/general rental centers.
<i>Vehicles / Equipment:</i>	
Auto and truck repair	An area used for major mechanical and body work, straightening of body parts, body repairs, battery rebuilding, painting, welding, short term (less than 72 hours) storage of automobiles not in operating condition, outdoor work on vehicles, or other work involving noise, glare, fumes, smoke, or other characteristics to an extent greater than normally found in auto service stations. Includes general maintenance activities including but not limited to replacement of filters, fluids, light bulbs, belts, fuses, and tire; emissions testing; and similar activities. Includes emissions testing services that test the emissions of automobiles or other vehicles to determine compliance with state or federal emissions requirements.
Automobile or vehicle dealership	A facility for the sale or rental of automobiles, motorcycles, trucks, tractors, construction or agricultural equipment, motor homes and RV
Building material sales & services	Retailing, wholesaling or rental of building supplies or construction equipment. Examples include lumberyards, hardware / home improvement sales and services, paint, tool and equipment sales or rental establishments.
Car Wash	A building or part of a building with facilities for the simultaneous washing of automobiles. It does not include the additional activities permitted in "auto and truck repair".
Commercial and Industrial Machinery and Equipment Rental and Leasing	Establishments primarily engaged in renting or leasing machinery and equipment for use in business or industrial operations. These establishments typically cater to a business clientele and do not generally operate a retail-like or store-front facility. Examples include the sale or leasing of farm equipment and supplies, heavy equipment, office furniture or equipment, machinery tools (construction equipment sales and service), or off-highway transportation equipment.
Gasoline or diesel fuel sales	An area used exclusively for retail sales of fuels, oils, and/or CNG for personal/passenger vehicles and trucks, not to include those vehicles commonly known as "18-wheelers", "tractor-trailers", etc.. This use may have storage tanks and pumps, vehicle service and repair facilities conducted inside the building, electric charging stations or an accessory car wash.
Manufactured Home Dealers	Establishments primarily engaged in retailing new and/or used manufactured homes (i.e., mobile homes), parts, and equipment.
Truck stop	A structure or land intended to be used for the sale of fuel for trucks and usually incidental service or repair of trucks. This may include a group of facilities consisting of those uses and attendant eating, sleeping, or truck parking facilities. As used in this definition, the term "truck" includes any vehicle whose maximum gross weight is more than 10,000 pounds.
<i>Public/Civic/Institutional</i>	
<i>Day Care:</i>	
Adult day care	A licensed establishment operated and maintained to provide care or supervision during the day, such as social activities, minor health care assessments, meals, and recreation, for five or more persons 18 years of age or older. The facility is not used as a residence. The definition does not include halfway houses for recovering alcohol and drug abusers.
Child care facility, commercial	A facility that is licensed as such by the State of Louisiana and provides non-medical care to children, normally for periods less than 24 hours. It serves more than six children and/or is operated by a person who is not a resident of the site.
Child care facility, residential	A facility that is licensed as such by the State of Louisiana and provides for non-medical care to children, normally for periods less than 24 hours. It serves six children or less, and the operator is a resident of the site.
<i>Assembly:</i>	
Cemetery/mausoleum/columbarium	A burial ground, place of interment, or premise for the storage of deceased humans or pets.
Church or worship center	A place of religious worship and instruction. Accessory uses requiring independent approval include (1) an associated private school, and (2) child care.
Exhibition, convention, or conference facility	A facility with exhibition halls and/or conference rooms used for assemblies or meetings of individuals or representatives of a group sharing common interests. This does not include clubs, lodges, community meeting facilities, or other meeting facilities of private or non-profit groups that are primarily used by group members.
Banquet, reception or event hall	Any building(s) and its premises used for the exclusive purpose of hosting social functions, ceremonies, gatherings, parties or other events (See §89-95-3)

Club or lodge (private)	A non-profit association of persons which owns, rents, or leases a building, or portion thereof; the use of such premises being restricted to members and guests. This includes a fraternal organization.
<i>Government / Non-Profit:</i>	
Armory	A building or group of buildings used primarily for housing and training troops or for storing military property, supplies, or records.
Detention or penal institution	A facility where persons are detained pending adjudication or confined under criminal sentences. Examples include community correctional facilities, correctional facilities or juvenile detention facilities.
Vehicle / equipment maintenance facility	A facility providing maintenance and repair services for vehicles and equipment and areas for storage of equipment and supplies. This classification includes construction yards, equipment service centers, transit vehicle storage and servicing, and similar facilities.
Public Safety Facility	A facility for public safety and emergency services, such as police, fire protection, police and fire training facilities, and ambulance and emergency services, administrative facilities for emergency medical care, and blood and organ banks. This includes accessory transportation services and vehicle maintenance.
Social assistance, welfare, and charitable services	Establishments that provide social assistance services directly to clients such as children, elderly persons, disabled persons, homeless persons, or veterans. Social assistance may include food, medical relief, counseling or training. Examples include adoption agencies, youth centers (except recreational only), child guidance organizations, youth self-help organizations, foster care placement services, community action services agencies, marriage counseling services (except by offices of mental health practitioners), crisis intervention centers, multipurpose social services centers, family social services agencies, self-help organizations (except for disabled persons, the elderly, persons diagnosed with intellectual and/or, developmental disabilities), family welfare services, suicide crisis centers, hotline centers, telephone counseling services, community food services (includes collection, preparation, and delivery of food, clothing and blankets for needy persons).
Postal services	Establishments that provide mail services, including delivering items (such as letters and small parcels that can be handled by one person without using special equipment. Sorting and transportation activities, where necessary, are generally mechanized.
<i>Educational:</i>	
College / technical school	A "college" is a post-secondary educational institution authorized to award associate, baccalaureate, or higher degrees, or a seminary. A "technical school" is a specialized institution of learning which offers secondary or post-secondary instruction in business, trade, vocational, or other technical subject matter.
School (public or private)	An institution of learning which offers instruction in the several branches of learning required to be taught in the public schools of the state.
Personal instructional services	The provision of instructional services such as tutoring and exam preparation, language, photography, fine arts, crafts, dance or music studios, exercise studios, art studios, driving schools, employment training, diet centers, and beauty schools. This includes incidental retail sales, or light assembly and offices relating to training or instruction.
<i>Medical:</i>	
Hospital or sanitarium	A "hospital" is a place devoted primarily to the maintenance and operation of facilities for the diagnosis, treatment, or care for at least 24 hours in any week of 3 or more non-related individuals suffering from illness, disease, injury, or deformity, except homes for the aged or nursing or convalescent homes. A "sanitarium" is an institution for the recuperation and treatment of victims of physical or mental disorders.
Medical office, clinic, or laboratory	Examples include medical offices, laboratories, or facilities for medical, optical, orthotic, prosthetic, psychiatric, physiotherapy, surgical, or dental laboratory services, photographic, analytical, or testing services. A clinic is a building designed for or used by any combination of physicians, surgeons, dentists, psychiatrists, physiotherapists, or practitioners in related specialties, and who do not offer in-patient care.
<i>Arts, Entertainment, & Recreation:</i>	
Adult business	See Section 18-3 of the Code of Ordinances.
Civic Spaces	A park, playground, natural area, or open space that is open to the general public or on a non-profit basis. Examples include tennis clubs, central squares, neighborhood parks, recreational facilities, picnic facilities, public recreation areas, and accessory food concessions.
Cultural facility	An institution engaged primarily in the performing arts or in the display or preservation of objects of interest in the arts or sciences that are open to the public on a regular basis. Examples include performing arts centers for theater, dance and events, museums, historical sites, art galleries, artist/artisan studio or shop, libraries/reading rooms, zoos, aquariums and observatories.
Entertainment facility	An establishment where the primary source of revenue is derived from live or recorded performances shown or played for the amusement of an audience. Examples include music clubs and dance halls.
Health/fitness club	An establishment that offers exercise or weight control programs whether or not the business provides any other service. Examples include gymnasiums, martial arts schools, gymnastics schools, weight control establishments/reducing salons, health clubs, health spas, swimming pools, handball facilities, racquetball or tennis club facilities, tanning facilities, fitness facilities, and yoga or workout studios.
Recreational Facility, Indoor	Buildings or structures principally devoted to recreational activities or nongambling games, leisure and recreation services to the public or to members. Examples include the following uses when they are conducted indoor: ice or roller skating rinks, bingo parlors, billiard parlors, bowling centers, pool rooms, miniature golf courses, amusement arcades, tennis clubs, swimming pools, non-commercial community centers, play courts, shooting facilities, batting cages, go-cart or dirt-bike courses, skateboard areas, and water slides or water parks.
Recreational Facility, Outdoor or Major	Large, generally outdoor facilities, such as: outdoor roller or ice-skating rinks, sports stadiums and arenas; amusement and theme parks; racetracks; swimming or wave pools; entertainment complexes; amphitheaters; drive-in theaters; archery or shooting ranges; riding academies; miniature golf; golf courses, driving ranges, and country clubs; marinas; and similar facilities.
Theater	A facility with fixed seats for the viewing of movies or live presentations of musicians or other performing artists.

Freight depot (railway and truck)	Distribution facilities upon which storage and warehousing of cargo is incidental to the primary function of freight shipment, and not to include any display of goods for either retail sale or wholesale. Includes both railway and truck freight transfers.
Fuel Distribution or Recycling	A facility dedicated to: (1) wholesale or commercial fuel storage and distribution, including petroleum, biodiesel, propane, butane, natural gas, or other similar fuels, to vehicles, machinery, or heavy equipment, or (2) the collection, storage, and processing of waste oil product for conversion into useable fuel products such as biodiesel, and may include storage and sales of resulting useable fuels. This does not include auto service stations.
Machinery and heavy equipment sales and service	The retail sales and accessory repair of construction, agriculture, excavation, and similar machinery and equipment, including tractor-trailers.
Self-service storage facility	A building or group of buildings in a controlled access compound that contains varying sizes of individual, compartmentalized, controlled access stalls or lockers for the storage of customers' residential and/or commercial goods.
Oil & gas storage	A tank farm or outdoor facility to store oil and gas. Includes bulk plant (petroleum).
Outdoor storage	Materials, goods, vehicles, or equipment kept or placed outside an enclosed structure for twenty-four (24) hours or more. Includes pipe storage and sand and gravel storage yards.
Vehicle towing and storage facility	Establishments primarily engaged in towing light or heavy motor vehicles, along with incidental services such as storage and emergency road repair services.
Wholesale distribution, warehousing and storage	The storage of goods, and the sale of goods to other firms for resale, including activities involving significant storage and movement of products or equipment. Examples include warehouse or produce/fruit/food storage and wholesale structures, carting, express crating, hauling, cold storage, feed locker plants, dry goods wholesale, hardware storage, and wholesale, paper supplies, shoes, sporting goods, professional and commercial equipment and supplies merchant wholesalers (such as restaurant supply sales), and otherwise preparing goods for transportation. This may include fulfillment centers that combine storage with call centers.
Infrastructure	
<i>Transportation / Parking:</i>	
Airport	Any area of land or water which is used or intended for the landing and taking off of aircraft, and any appurtenant areas which are used or intended for use for airport buildings or other airport facilities or rights-of-way, including all necessary runways, taxiways, aircraft storage and tie-down areas, hangers, public terminal buildings and parking, helicopter pads, support activities such as airport operations and air traffic control, and other necessary buildings and open spaces. Includes dusting services.
Ground passenger transportation (e.g. taxi, charter bus)	Establishments that provide passenger transportation by bus, charter bus, automobile, limousine, van, or shuttle. Some services (such as taxi) are not operated over regular routes and on regular schedules. Examples include charter bus, special needs transportation, taxicab owner/operators, taxicab fleet operators, or taxicab organizations. This does not apply to publicly operated bus or mass transit systems. Includes fleet services that store, maintain, repair, fuel, and service two or more vehicles owned by a single commercial or public entity.
Heliport / miscellaneous air transportation	Facilities intended solely for takeoff and landing of helicopters, or for miscellaneous transportation vehicles for scenic purposes such as balloons.
Parking facility	A parking lot or a parking garage offering parking to the public and is the principal use of the premises. "Parking lot" is an off-street, ground-level, and open area for the temporary placement of operable motor vehicles. A "parking garage" is a multi-level structure for the temporary placement of operable motor vehicles. Automobile fuels and oils are not sold and motor vehicles are not equipped, repaired, hired, or sold in a parking facility
Railroad facilities	A facility for freight pick-up or distribution by rail. This may include specialized services for railroad transportation including servicing, routine repairing (except factory conversion, overhaul or rebuilding of rolling stock), and maintaining rail cars; loading and unloading rail cars; and independent terminals.
Railroad right-of-way	A strip of land with tracks and auxiliary facilities for track operation, but not including freight depots or stations, loading platforms, train shed, warehouses, car or locomotive shops, or car yards.
Passenger depot	Facilities for passenger transportation operations, and holding facilities, which includes rail stations, bus terminals, urban and regional transit stations and scenic and sightseeing facilities, but does not include airports and heliports. This includes accessory parking facilities. This does not include transit shelters, which are permitted in all districts.
Transit shelter	A roofed structure with at least three (3) walls located on or adjacent to the right-of-way of a street, and which is designed and used primarily for the protection and convenience of bus passengers.
<i>Utilities:</i>	
Utility, Major	A building or other structure for water supply (including water distillation) or wastewater treatment or the production of electricity, steam, air conditioning, hot water or chilled water for consumption by the general public.
Utility, Minor	All lines and facilities related to the provision, distribution, collection, transmission, or disposal of water, storm water, communications, electricity, transportation, gas, steam, and similar public services, and may include storage for vehicles and equipment necessary to provide those services. This includes facilities that are necessary to support legally established uses and involve only minor structures such as electrical distribution lines, water or sewer pumping stations, water storage facilities, telephone exchanges, switch boxes, transformer boxes, cap banks, and underground water and sewer lines. This does not include "communications facility" or "wireless communication tower" as defined below, which refer to the point of transmission rather than distribution systems such as cable networks.
<i>Communications facilities:</i>	
Communications facility	Broadcasting and other communication services accomplished through electronic mechanisms. Examples include radio, television or recording studios, switching centers and cable transmitting stations.
Wireless communication tower or antenna	Antenna support structures for mobile and land based telecommunication facilities, such as whip antennas, panel antennas, microwave dishes and receive-only satellite dishes, cell enhancers and related equipment for wireless

(City Code 1965, § 19-7)

(a) Applicability

- (1)** This section applies to the City and the unincorporated Parish.
- (2)** This section applies to the parking of vehicles accessory to any use.
- (3)** Where the requirements of this section conflict with the provisions of 89-13, Downtown, the provisions of 89-13, and related appendices, shall apply.

(4) Administrative Modification

- a.** How do I start the process?

A written request for modification from strict compliance with the requirements of this Section is filed with the Administrator.

- b.** How are decisions made?

If the Administrator finds that the standards in this Section apply, he/she may vary, modify, or waive the requirements of this Section so that substantial justice may be done and the public interest secured.

- c.** What are the standards for approval?

- i.** The Administrator may approve a modification if the applicant demonstrates that there are practical difficulties or unnecessary hardships in compliance with the strict letter of this Section. If these standards apply, the Administrator may vary or modify the requirements of this Section so that the spirit of this Section shall be observed, public safety and welfare secured, and substantial justice done.
 - ii.** The modification shall not have the effect of nullifying the intent and purpose of the requirements of this Section, or of the comprehensive plan.
- d.** The modification shall be the minimum needed to provide the relief the applicant is requesting, and not conflict with the zoning regulations.
- e.** The Administrator may require conditions that will, in his/her judgment, secure substantially the objectives of the standards and regulations affected.
- f.** How is a decision appealed?

Appeals of a decision by the Administrator by an aggrieved party shall be taken to the appropriate Planning and Zoning Commission or BOZA, as determined by the provisions of 89-68 and 89-69.

(b) Accessibility

Parking areas that include parking spaces required by this section must be accessible to a public or private street right-of-way or approved permanent access servitude.

⇒ See § 89-26 for ingress and egress requirements.

(c) Residential Zoning District Separation

The property owner shall install a continuous fence between the parking lot and any “RS” or “RM” zoning district. The fence shall be 6 feet in height and constructed of permanent, durable material.

(d) Location

- (1) The property used for parking required by this section must be located on or within a contiguous lot or parcel containing the principal use, except as provided below.
- (2) A required parking lot (including any parking space) separated by 1 or more parcels, an alley, servitude, or street from the property containing the principal use, is considered contiguous if it is within:
 - a. 300 feet, or
 - b. 1,000 feet where the property including the principal use and the parking areas are connected by a continuous system of sidewalks (including any street intersection) or pedestrian pathways.
- (3) In the MX district and for Development Type “A” in the MN, CM, and CH districts:
 - a. With the exception of a parking for single-family detached and two-family (duplex) uses, parking shall be located at the rear or side of a building. Parking areas located at the side shall be screened from sidewalks by rigid, opaque materials between three (3') and four (4) feet in height. Decorative metal in combination with vegetative landscaping can be used in place of rigid materials. Chain-link fences are not permitted. Vegetative landscaping may exceed four (4') in height, but shall achieve and maintain at least three (3') feet opaque height within one (1) year of installation.
 - b. Parking shall be accessed by an alley or rear lane, when available. However, there shall be no parking in an alley or lane.
 - c. Parking facilities adjacent to or opposite a street or intersection shall be screened.
- (4) In the MN district, parking adjacent to the principal use or contiguous as defined by 89-39(d)(2) must not be in excess of the parking requirements for its use type, as required by Table 89-39-2.
- (5) In the MN district, if parking is provided, such shall be designed and constructed to meet the standards contained in 89-39(h).

(e) Joint Parking

- (1) The off-street parking facilities required by two or more uses may be combined and used jointly.
- (2) The joint spaces shall be located –
 - a. On the same building site, or

- b. Within 1,320 feet of the building or area that includes each use.
- (3) The off-street parking facilities shall be adequate in area to provide the sum total of the facilities required for all of the uses.
- (4) Two or more owners or operators of buildings or uses requiring off-street parking or loading facilities may collectively use such facilities if the total minimum and maximum number of such parking or loading spaces conform with this section when computed separately for each use or building type.
- (5) An off-street parking area required for any building or use may be used as part of an off-street parking area required for another building or use where peak use periods do not overlap, as provided below. The required parking spaces are reduced in accordance as follows:
 - a. Determine the minimum parking requirements in accordance with Table 89-39-1 for each land use as if it were a separate use,
 - b. Multiply each amount by the corresponding percentages for each of the five time periods set forth in Columns (B) through (F) of Table 89-39-1 below,
 - c. Calculate the total for each time period (Column),
 - d. Select the Column with the highest total. This is the required number of spaces.

Table 89-39-1 Shared Parking Reduction

(A) Land Use	Weekday		Weekend		
	(B) Daytime (9 a.m. – 4 p.m.)	(C) Evening (6 p.m. – midnight)	(D) Daytime (9 a.m. – 4 p.m.)	(E) Evening (6 p.m. – midnight)	(F) Nighttime (midnight 6 a.m.)
Office/Industrial	100%	10%	10%	5%	5%
Retail	60%	90%	100%	70%	5%
Hotel	75%	100%	75%	100%	75%
Restaurant	50%	100%	100%	100%	10%
Entertainment/ Commercial	40%	100%	80%	100%	10%

- (6) If an office use and a retail use share parking and the office space comprises at least 35% of the space and at least 2,000 square feet, the parking required **for the retail use** is reduced to the lesser of –
 - a. 80% percent of the parking spaces otherwise required, or
 - b. 1 parking space per 500 square feet.
- (7) If a residential use shares parking with a retail use other than lodging uses, eating and drinking establishments or entertainment uses, the parking required for the residential use is reduced by 30 percent or the minimum parking required for the retail and service use, whichever is less.
- (8) If an office and a residential use share off-street parking, the parking requirement for the **residential** use is reduced to the lesser of –
 - a. 50 percent of the parking normally required for the residential use, or
 - b. 1 space per 1,000 square feet.

(f) Leases

Required parking may be leased if –

- (1) It is located as provided in subsection (d) above, and
- (2) The required parking spaces are leased for a period of time equal to or longer than the lease of the use they are provided for. If the associated use is owned by the operator, the lease of the parking area must be maintained as long as the business is operating, and
- (3) A copy of the new lease must be filed with the Administrator prior to expiration of the current lease.

(g) Required Parking

- (1) **Applicability.** This subsection applies to all development in the unincorporated area of the Parish and the city of Lafayette. It does not apply to the “MN,” “MX,” or “D” zoning districts, except where specifically indicated below. Required parking is reduced for “A” Development Types in the “CM” and “CH” districts as provided in Article 2.

⇒ §§ 89-14 (CM) and 89-15 (CH)

(2) Type of Parking Required

- a. The schedule in Table 89-39-2 below establishes the motor vehicle parking spaces required for any use.
- b. Ten permanent bicycle parking spaces may be provided in lieu of 1 parking space. A maximum of 20 bicycle parking spaces may be provided to count toward this reduction.
- c. Parking lots or garages must provide at least 1 bicycle parking space for every 10 motor vehicle parking spaces in the “MN,” “MX,” and “D” zoning districts.

(3) Calculations

- a. Adjacent on-street parking is counted toward the minimum parking requirements.
- b. When a determination of the number of minimum required off-street parking spaces or the permitted maximum number of off-street parking spaces results in a requirement of a fractional space, the fraction counts as 1 space.
- c. If the number of spaces is based on square feet, the square footage is the gross floor area of all habitable building spaces on the lot or parcel. This does not include any parking garage.
- d. When computing required minimum off-street parking spaces, the total number of required spaces are calculated separately for each use, except as indicated below.
- e. Where applicable, up to two provisions of subsection (4) below may be applied in order to reduce the minimum off-street parking requirement.

(4) Parking Space Reductions

- a. The appropriate Council, by passage of an ordinance or resolution, or
- b. Recommendation of the LCG administration, or
- c. The appropriate Planning and Zoning Commission, by adopting a motion, or
- d. Petition by the owner of the affected property filed with the DPD.

(2) A property owner-initiated rezoning petition shall be duly signed and acknowledged by the owner, or authorized agents of over 50% of the land area of land for which a rezoning is requested. However, that where any lot located in the proposed rezoning area is owned in indivision, all co-owners must sign the petition for that lot to be included in the 50% area provision.

(c) How do I know if my application is complete?

See § 89-48.

(d) What kind of public notice is required?

The following notice is required for a rezoning hearing (References: LRSA 33:4724 [zoning amendments]):

Type	When provided
Publication	- At least 3 times if published in the official journal. - At least 10 days between the first publication and the hearing.
Signs	- In addition to the information required by 89-49, signs shall state- - The sign(s) must be posted in one or more public street rights-of-way nearest to the proposed rezoning in a visible location on or before the first date of publication before the Zoning Commission meeting. - At least 1 sign is required for every 1,000 linear feet of property frontage. - The sign shall be blue in color with white lettering. - The sign shall include – - The statement “THIS SITE IS PROPOSED FOR REZONING.” - The assigned project number - Applicant’s name, telephone and email. Names shall include all principals of any applicant/developer entity. - Date, time and location of hearing with respect to the proposed rezoning. - Any additional requirement(s) as outlined in the application packet
Mail	- The DPD will mail notice at least 10 days before the public hearing. - Notice is provided to all of the immediate adjacent property owners of record and the owners of property immediately adjacent to that property pre the latest tax assessor’s tax rolls. Property directly across the Public Road from the reclassification site is treated as adjacent property. Property across the Vermilion River is noticed if it is the immediate first adjacent property.
	Where a comprehensive rezoning revision of more than ten (10) parcels is to be considered, the sign and mailing requirements shall not apply if notice is provided by publication as set forth above and at LRSA 33:4724.

(e) How are decisions made?

(1) **Meeting Schedule.** The appropriate Planning and Zoning Commission will publish a schedule of meeting dates for rezoning petitions. Action will be taken on petitions that are filed at least 40 days prior to the date of a scheduled hearing.

(2) Planning and Zoning Commission Report and Recommendation

- a. The appropriate Planning and Zoning Commission may hold a public hearing on the proposed amendment after the required notice is provided.
- b. The appropriate Planning and Zoning Commission shall submit a report with its recommendations relative to the rezoning and its reasons for making the recommendation. The report shall be filed with the appropriate Council within 45 days after the date of the public hearing held to consider the amendment.

(3) Council Action

- a. If the appropriate Planning and Zoning Commission fails to submit a timely report and recommendation, the appropriate Council may take action on the rezoning without the report and recommendation. Otherwise, the appropriate Council shall not take action to rezone, and the rezoning is not effective, until the Council receives the appropriate Planning and Zoning Commission's final report and recommendation.
- b. After receiving the appropriate Planning and Zoning Commission's recommendation (or after the time period for a report and recommendation expires), the appropriate Council will adopt, adopt with revisions, or deny the rezoning.
- c. A Council decision to approve a rezoning shall occur within 90 days from the date upon which the appropriate Planning and Zoning Commission files its report and recommendation to the appropriate Council was filed or the time to file the report and recommendation expires, unless a motion is made to extend this time period or the rules of deferral as prescribed by the appropriate Council are followed.

(4) Conditional rezoning. The rezoning decision may –

- a. Limit the property to specified uses that are allowed in the zoning district;
- b. Attach appropriate conditions to mitigate the impacts of the proposed development such as, restrictions relative to the site plan and any future modifications, setback requirements, and other restrictions appropriate to mitigate the impacts of the development; or
- c. In the case of a comprehensive rezoning revision of more than ten (10) parcels, allow, as a matter of right, a conditional use that is permitted within the zoning district.

(f) What are the standards for approval?

- (1) A rezoning is a **legislative** decision that is committed to the appropriate Planning and Zoning Commission or the appropriate Council's(s') discretion.
- (2) The agencies will consider whether the amendment is reasonable, including:
 - a. Whether the proposed rezoning is consistent with the comprehensive plan.
 - b. Whether there was a mistake in the original zoning map or text.

- c. Whether the proposed amendment is compatible with the current development trends, if any, in the vicinity of the subject property.
- d. Whether the proposed amendment promotes the public health, safety, morals, and general welfare.
- e. Whether the proposed amendment is compatible with surrounding land uses.
- f. Any other factors relevant to a rezoning application under Louisiana law.

(g) How is a decision appealed?

Appeal of any Council action shall be made to the 15th Judicial District Court for the Parish of Lafayette within thirty (30) days of the date of the Council action.

(h) After a decision is made, is there a limit on subsequent applications?

- (1) This subsection applies to a rezoning petition that –
 - a. Is finally acted upon by the appropriate Council, or
 - b. Receives no action by the appropriate Council, within 90 days, or
 - c. Is officially advertised for public hearing before the appropriate Planning and Zoning Commission or Council but is subsequently withdrawn.
- (2) If subsection (h)(1) applies, the appropriate Zoning Commission and/or Council shall not consider any further petition requesting or proposing the same or more intensive zoning district for the same property within a period of 2 calendar years. Notwithstanding the foregoing, the appropriate Zoning Commission and/or Council may consider any further petition requesting or proposing the same or more intensive zoning district for the same property within a period of 2 calendar years if recommended by the Administrator. This 2-year period begins on the date of the final legal action on the petition or the date of the expiration of the 90-day period in subsection (1) b above, or the date of withdrawal of the officially advertised petition.
- (3) This provision does not apply to a comprehensive zoning revision of an area larger than 20 acres.

(i) What are my next steps?

- (1) If a **building or buildings exist** and there is **no proposed new construction**, the applicant shall submit to the appropriate Planning and Zoning Commission an application stating the proposed use of the property.
 - a. The appropriate Planning and Zoning Commission may recommend a time limit within which the applicant shall apply for a certificate of occupancy in conformity with the proposed use. The time limit shall be no more than 6 months from the final decision.
 - b. If applicant ceases to use the property for the specific purpose for which the application is made and the cessation of use continues for a consecutive 1-year period, the property shall, without

Article 6. Nonconformities

✎ *Purpose: Applying new regulations to existing development can create situations where existing lot dimensions, development density or intensity, land uses, buildings, structures, landscaping, parking areas, signs, or other conditions do not strictly comply with the new requirements. This Article protects and regulates nonconforming uses, buildings, structures, and lots (referred to collectively as “nonconformities”), and specifies the circumstances and conditions under which those nonconformities may continue. The City and the Parish find that nonconformities that adversely affect the orderly development and value of other property in the neighborhood or district should not continue unless restricted. At the same time, reinvestment in some properties that do not strictly comply with current regulations can maintain existing neighborhood assets and economic growth, and is allowed with appropriate conditions. For existing lots or development (including uses, buildings, structures, and signs) that are “legally nonconforming,” this Article sets out fair rules for whether, when, and how the regulations of this LDC apply.*

89-96 Applicability

(a) Generally. This article applies to –

- (1) A lawful nonconformity that exists as of the effective date of this Chapter, and
- (2) Any nonconformity created by an amendment to this Chapter, such as a change to an area’s zoning district classification.

(b) Interpretation. Nonconformities are inconsistent with the objectives of this Chapter, are viewed narrowly and have all doubts resolved against the continuation or expansion of the nonconformity in order to preserve the property rights of adjacent property owners.

(c) Determination

- (1) An applicant shall assert the existence of a nonconformity at the time an application under Article 4 is filed, or at the Administrator’s request. The failure to assert a nonconformity at the time of application or within the time period for appealing a determination by the Administrator as to the existence of a nonconformity waives the applicant’s right to assert it at a later point in time, unless an additional nonconformity is created after that time.
- (2) The Administrator shall determine the existence of the nonconforming use based on information provided by the applicant or property owner. The applicant or property owner has the burden of proving the existence of a nonconformity, and shall produce acceptable evidence attesting to the legal nonconforming status such as documents, rent receipts, affidavits, documentation of utility services, or other information deemed necessary in a particular case.

(d) Unlawful Uses. This Article does not authorize or legitimize uses, buildings, structures, parcels, or signs that were used, erected or maintained in violation of any previous zoning, subdivision or building regulation or otherwise not legally established or constructed. Those uses, buildings, structures, or signs are not “legally” nonconforming, but instead remain unlawful and subject to all requirements of this Chapter (including enforcement provisions) and any other applicable law.

89-97 Types of Nonconformities

There are 5 types of nonconformities addressed by this Article:

Nonconforming Use	See § 89-98
Nonconforming Lot	See § 89-99
Nonconforming Structure	See § 89-100
Nonconforming Site Improvement	See § 89-101
Projects in Process	See § 89-102

89-98 Nonconforming Use

(a) Applicability. This section applies to any nonconforming use. A “nonconforming use” means a lawfully established use that is not permitted in the zoning district. This applies where:

- the use is no longer allowed in the district, or
- the zoning district classification changes (either by applying a new classification to the area, or extending another zoning district to the area), and the new district does not allow the use.

(b) Establishment and Scope.

- (1) This section applies only to uses established without conditions.
- (2) The existence of a nonconforming use on part of a lot or tract does not establish a nonconforming use on the entire lot or tract.

(c) Displacement. No nonconforming use shall be extended to displace a conforming use.

(d) Change of Use

- (1) Once changed to a conforming use, no building or land shall revert to a nonconforming use. Once changed to a less intensive use, no building or land shall revert to a more intensive use. Notwithstanding the foregoing, in the “D” (Downtown) zoning district, any structure originally constructed and used as a “Dwelling, Single Family Detached” or “Dwelling, Two-Family (Duplex)” (as those terms are defined in this Chapter) and thereafter used as a non-residential use, may revert to its previous residential use notwithstanding the fact that such structure had been converted to a non-residential use.
- (2) If no structural alterations are made, a nonconforming use of a building may change to another nonconforming use of the same or less intensive classification.

(e) Relocation

- (1) For purposes of this subsection, “relocate” or “relocation” means to move a nonconforming use to occupy an area of land or a building that was not occupied on the effective date of this Chapter or any amendment that created the nonconformity.
- (2) Nonconforming uses shall not relocate, except as provided in subsection (3) below.
- (3) BOZA may approve the relocation of a nonconforming use, subject to the following:
 - a. The relocation shall either –
 1. Reduce the extent or intensity of the nonconformity, or

2. Extinguish another nonconforming use of at least the same extent or intensity.
- b. The relocation shall not occupy any open space or landscaped area that is required by this Chapter;
- c. The relocation shall comply with the dimensional regulations, including setback and height regulations, of the zoning district in which the nonconforming use is located;
- d. The relocation shall not occupy any land beyond the boundaries of the property or lot upon which the nonconformity existed as of the effective date of this Chapter; and
- e. The relocation shall not displace any existing conforming use in the same building or on the same parcel.

(f) Extension or Expansion

- (1) **Applicability.** This subsection applies to any extension or expansion of a nonconforming use, defined as follows:

Expansion (or “ <i>expand</i> ”)	An increase in the land area covered by the nonconforming use, except as provided in the definition of “extension” below.
Extension (or “ <i>extend</i> ”)	An increase in square footage or volume of a nonconforming use. The following are not considered an extension or expansion of a nonconforming use if they do not increase the square footage or volume of the use: • Attachment of signs that comply with requirements of this Chapter at the time of attachment, • Awnings, racks, balconies, or other projections from the building or structure that houses the use, • Display materials, • Lights, or • Similar extensions. For purposes of this definition – • “square footage” means the structure’s gross floor area as determined by the building code, and • “volume” means the volume of the structure that houses the use measured from the exterior faces of all exterior walls.

- (2) **Where Allowed.** BOZA may approve an extension or expansion of a nonconforming use if the extension or expansion does not involve or create a nonconforming structure or nonconforming site improvement, or it is required by a federal, state, or local law or a final court order.
- (3) **Dwelling, Single Family Detached.** The Administrator may approve an extension or expansion of a nonconforming “Dwelling, Single Family Detached” use (§ 89-21(d)) for which a building permit was issued prior to the Effective Date of this Chapter, provided that the extension or expansion does not encroach upon the minimum setbacks as required in a RS-1 zoning district or otherwise create any site improvements that would be nonconforming in a RS-1 zoning district.

(g) Resuming Use of Vacant Buildings or Parcels**(1) Applicability**

- a. This subsection applies to any nonconforming use that becomes vacant. For purposes of this subsection, “vacant” means that a building or land is not occupied or used in whole or in part, by a bona fide use or business.
- b. The intent to use a building or parcel for any nonconforming use is not considered in interpreting and construing the word "vacant" as used in subsection “a.” above.
- c. The owner of the building or land claiming retention of the nonconforming use has the burden of proof to establish the existence and retention of a nonconforming use by clear and convincing evidence.

(2) Generally. A building or parcel on which a nonconforming use is located may only be used if it complies with all applicable requirements of the zoning district and this Chapter after it remains **vacant** for a continuous period of **12 calendar months**; provided, however that a building or parcel located in the “D” Zoning District on which a Bar/Lounge use is located, and for which no Conditional Use Permit has been issued, may only be used if it complies with all applicable requirements of the “D” zoning district and this Chapter after it remains **vacant** for a continuous period of **6 calendar months**.

(3) Leases:

- a. **Generally.** If the lessee of any building or place where a nonconforming use is established under a bona fide lease ceases to occupy or use the building for nonconforming purposes before the lease expires, the building or land is not considered vacant until the owner of the buildings or land regains legal control of its occupancy and use. This exemption does not apply if the lessor, for any reason, is entitled legally to regain possession and does not attempt to do so by legal means.
- b. **Proof of lease.** To prove the existence of a lease, the owner must provide the Administrator a copy of the lease before a certificate of occupancy is approved for the subject site. If an unwritten lease exists, the applicant must file a notarized affidavit on a form provided by the Administrator with the Administrator before a certificate of occupancy is approved for the subject site.

(4) Bankruptcy. If a building or place used for nonconforming purposes is part of an order of bankruptcy, it is not considered vacant until it is sold or its possession is returned to the owner by order of court or otherwise in the bankruptcy proceedings.

(5) Foreclosure. Any building or land used for nonconforming commercial or industrial purposes that is subject to a recorded mortgage is not considered vacant after foreclosure proceedings are instituted until the mortgagee or purchaser, at a foreclosure sale, takes possession and ownership is established by court procedure or until the mortgagee gains possession of the property by a recorded legal transfer.

89-101 Nonconforming Site Improvements

(a) **Applicability.** A “nonconforming site improvement” means a lawfully established development that does not conform to the building design, infrastructure, landscaping, parking, site design, or other regulations of Article 2, 3 or 5 that would otherwise apply. Examples of nonconforming site improvements include:

- Landscaping (or lack of landscaping) that does not conform to the landscape area, location, or planting requirements.
- Parking spaces, drive aisles, and loading areas that do not conform to the requirements of Article 3 in terms of their number or dimensions.

(b) **Generally**

On lots with nonconforming site improvements, no additions to, or repairs or alterations of any structure or site improvement are allowed unless:

- (1) The nonconforming site improvements are brought into complete conformity with the regulations applicable to the area or zoning district, or
- (2) The Administrator approves the activity as provided in subsection (c) below.

(c) **Approved Nonconforming Site Improvements**

Administrator may approve additions, repairs or alterations to any structure or site improvement on a lot with a nonconforming site improvement if:

- (1) The nonconforming site improvement(s) will be the only nonconforming site improvements pertaining to the property.
- (2) Compliance with the site improvement requirements applicable to the zoning district in which the property is located is not reasonably possible. Mere financial hardship does not constitute grounds for finding that compliance with the site improvement requirements is not reasonably possible.
- (3) The property can be developed as proposed without any significant adverse impact on surrounding properties or the public health or safety.
- (4) The owner has committed to other site design measures to reduce the negative impacts associated with the nonconformity.

89-102 Projects in Process

(a) **Applications in Progress**

- (1) This subsection applies to any **Application in Progress**, defined as applications for zoning, building permit, or subdivision plat approval that were filed before this Chapter, or an amendment to this Chapter that affects the application, became effective.
- (2) **Application in Progress.** Any application shall be governed by the regulations in effect at the time the application was filed. Notwithstanding the forgoing, applications filed and pending prior to either the Effective Date of this Chapter, or any amendments thereto, may be governed by the latest edition of this Chapter upon election by the applicant.

- (3) **Effect on Existing Building Permits.** Nothing in this LDC requires a change in plans, construction, or designated use of any building or structure for which a building permit was lawfully issued prior to the Effective Date of this Chapter, or any amendment thereto, if construction was commenced and completed within the time period required by the building code. If the building code does not establish a time period for construction, construction must be commenced within 180 days and completed within 2 years after issuance of the building permit.
- (4) The development approval process usually requires a series of steps, and applications are subject to any conditions provided in an earlier step in the approval process as set out in Article 4. An approved application normally does not create a legal nonconformity or vested rights. However, in consideration of existing, good faith investments in project approvals, LCG will continue to process existing applications as follows:

Table 89-102-1 Conditions on Existing Approvals

Type of Application	Conditions or Continuation
1 Annexation Boundary Adjustment Rezoning or Annexation Zoning Assignment Subdivision, Sketch Plan Text Amendment	An approved application is not considered legally nonconforming unless that applicant has obtained vested rights under Louisiana law, or to the extent provided in an enforceable development agreement (see LRSA Title 33, Chapter 14, Part G).
2 Subdivision, Preliminary Plat Subdivision, Final Plat Acceptance of improvements	- Subdivision plat may proceed in accordance with subdivision regulations in effect at time of approval - At time of building permit, all other regulations of this Chapter apply except for minimum lot size
3 Appeal-Planning and Zoning Commission decision Conditional Use Permit Variance (Zoning)	- All development consistent with the decision is subject to the regulations in effect at the time of the appeal if a building permit or certificate of occupancy (if no building permit is required) is issued within 1 year of the final decision, and development timely proceeds pursuant to the building permit or certificate of occupancy. If the decision involves a preliminary or final plat, the 1-year period described above applies to the next stage of the platting process, or - If development does not timely proceed as set out above, the rules in row 1 above apply.

(b) Buildings Under Construction

A building legally under construction that does not comply with this Chapter becomes nonconforming when this Chapter or an amendment becomes effective.

89-103 Destruction

- (a) **Applicability.** This section applies to any nonconforming use or structure that is destroyed by vandalism, fire, storms, or other acts of God or the public enemy.
- (b) **Continuation.** The nonconforming use or structure may be restored if the restoration is accomplished with –
- (1) no increase in building volume , and
 - (2) no increase in floor area over the building existing immediately prior to the damage.
- (c) **Registration**
- (1) The property owner shall file with the Administrator a registration indicating how the use or structure was destroyed and their intent to restore within 1 year of the destruction.

EXHIBIT

F

Planning annual reports 2022, 2023, 2024, excerpts

SHOWS	Administrative rezoning program and criteria.
SOURCE	LCG Planning Division
PROVENANCE	https://media-002-us.cdn.govstack.com/lafayettela-us/media/getjrvji/annual-report-2022.pdf · .../4ytjy0va/2023-annual-report.pdf · .../n0gi0ddk/2024-annual-report.pdf — pp. 1-2 of each.
PAGES	F-1 to F-6

2021-2022 Annual Report

PlanLafayette is now eight years old and has seen significant momentum and implementation of key action items. A major plan amendment was undertaken in 2021. Review of the action items was completed at this time so as a result of this work annual reports were suspended.

To ensure the plan remains relevant and useful to the community, the City and Parish Planning Commissions and the Community Development and Planning Department, on behalf of the City-Parish Council and Mayor-President, will monitor plan implementation progress annually.

The following is the 2021-2022 Annual Report prepared by the Community Development and Planning Department with assistance from staff across Lafayette Consolidated Government.

PlanLafayette has more than 450 action items. In addition to the number of items, all LCG departments and dozens of external agencies are involved with the implementation. As of the time of this report, 299 action items have either been completed or work has begun. The major amendment removed 10 completed action items for PlanLafayette. The staff has organized this report by summarizing ongoing activities by projects and/or themes. This report is accompanied by a spreadsheet with activity comments on all 464 action items.

Each theme is generally described with the following information:

- Initiative name and summary
- Plan challenges addressed
- Action item reference (from the plan)
- Current tasks

Final Report Delivered to the City Planning Commission

Sept 19, 2022

Final Report Delivered to the Parish Planning Commission

Oct 10, 2022

Projects:

The Annual Report structure focuses on five themes. The matrix of action items for PlanLafayette has been reviewed for the purposes of this annual report and is submitted as part of this report. This year's five highlights are:

- Lafayette Development Code/Administrative Adjudication Bureau
- Refining Government
- Neighborhood Revitalization/ECI Efforts
- Corridor Planning
- Bike and Pedestrian Planning

Amendments:

There are no proposed amendments in this year's annual report.

Lafayette Development Code (LDC)

Adopted by the City-Parish Council on May 5, 2015 with an effective date of December 7, 2015, the UDC consolidated land development regulations, integrated standards and procedures, and streamlined the review process needed for new development. PlanLafayette served as the guidebook for creating regulations and making decisions for the city and parish. To effectuate plan implementation, the UDC was prepared immediately following the adoption of PlanLafayette. The UDC has been amended numerous times since adoption—with each batch of amendments focused on the smooth administration of the code in a way that protects property while also creating a development-friendly environment. A major amendment, creating the Lafayette Development Code (LDC), was completed under the Guillory Administration in December of 2020. Staff met with key stakeholders, interest groups and held public meetings to address outstanding issues in the former UDC.

Challenges addressed in the plan:

- Major roadway corridors are flanked by segregated, single-use commercial development creating unappealing edges to residential neighborhoods without offering substantive choices for amenities or services.
- Housing inventory that consists primarily of single-family homes. Greater diversity of housing choices is desirable to meet the needs of all types of households, especially those with very low incomes, single-person households, retirees, and young adults and families.

Over the last several years, the staff has utilized the tools in the LDC to address the following action items in PlanLafayette:

- 1.1.1 Review zoning classifications for consistency with the FLUM (Future Land Use Map).
- 1.1.3 Revise the zoning ordinance to allow and encourage mixed land uses and incentivize pedestrian and transit friendly development.
- 1.1.4 Revise the zoning ordinance to include design standards for new development that address quality, street frontage, building entrances, utility placement, and scale.
- 3.13.1 Establish regulatory and design guidelines for infill/redevelopment housing developments that ensure compatibility with surrounding properties.
- 10.1.6 Create incentives and develop Low Impact Development criteria for residential and commercial developments.

Planning staff has continued administrative rezonings (860 parcels have been administratively rezoned since the beginning of 2019) that address areas where uses are not consistent with the current zoning due to the elimination of cumulative zoning, and/or hard edges exist between heavy commercial zoning and single-family residential, and/or employing more neighborhood friendly, mixed-use zoning districts, and/or providing for more housing choice, and/or reducing the amount of heavy commercial and industrial zoned land. As a result of this review, staff has continued a consistent administrative rezoning procedure in an effort to more closely align the zoning map with appropriate and likely future development in those areas.

Administrative Adjudication Bureau (AAB)

Enforcing property standards and building codes has been difficult in the past. LCG had few tools to compel compliance. Letters would be sent out to property owners but compliance was tough because often it was hard to prosecute through civil court. In addition, there were no fines in place or ability to collect fines. The Administrative Adjudication Bureau was established in June of 2021 to adjudicate cases brought forward by LCG with a quasi-judicial process that requires that LCG make a sound case for prosecution. At the time of this publication, the AAB has heard 67 cases regarding code/zoning compliance, 20 cases regarding property standards, and 13 junk vehicle cases. One challenge acknowledged in PlanLafayette is the deteriorating infrastructure, vacant and blighted properties, and poorly maintained streetscape and housing in some older and historic neighborhoods.

2023 Annual Report

PlanLafayette is now nine years old and has seen significant momentum and implementation of key action items. A major plan amendment was undertaken in 2021.

To ensure the plan remains relevant and useful to the community, the City and Parish Planning Commissions and the Community Development and Planning Department, on behalf of the City and Parish Councils and Mayor-President, will monitor plan implementation progress annually. The preparation of annual reports was recommended in the PlanLafayette comprehensive plan document.

The following is the 2023 Annual Report prepared by the Community Development and Planning Department with assistance from staff across Lafayette Consolidated Government.

PlanLafayette has 463 action items. In addition to the number of items, all LCG departments and dozens of external agencies are involved with the implementation. At the time of this report, 322 action items have either been completed or work has begun. The major amendment removed 10 completed action items for PlanLafayette. Staff has organized this report by summarizing ongoing activities by projects and/or themes. This report is accompanied by a spreadsheet with activity comments on all 463 action items. Please note that generally the comments are cumulative or static from previous annual reports.

Each theme is generally described with the following information:

- Initiative name and summary
- Plan challenges addressed
- Action item reference (from the plan)
- Current tasks

Final Report Delivered to the Parish Planning Commission

January 8, 2024

Final Report Delivered to the City Planning Commission

January 22, 2024

Projects:

The 2023 Annual Report structure focuses on five themes. The matrix of action items for PlanLafayette has been reviewed for the purposes of this annual report and is submitted as part of this report. This year's five highlights are:

- Lafayette Development Code/Administrative Adjudication Bureau
- Refining Government
- Neighborhood Revitalization
- Corridor Planning
- Bike and Pedestrian Planning
- Environmental Initiatives
- LCG Departmental Initiatives

Amendments:

There are no proposed amendments in this year's annual report.

Lafayette Development Code (LDC)

Adopted by the City-Parish Council on May 5, 2015 the then UDC consolidated land development regulations, integrated standards and procedures, and streamlined the review process needed for new development. PlanLafayette served as the guidebook for creating regulations and making decisions for the city and parish. To effectuate plan implementation, the UDC was prepared immediately following the adoption of PlanLafayette. The UDC has been amended numerous times since adoption—with each batch of amendments focused on the smooth administration of the code in a way that protects property while also creating a development-friendly environment. In 2020, a major amendment, creating the Lafayette Development Code (LDC), was completed. Staff met with key stakeholders, interest groups and held public meetings to address outstanding issues in the former UDC.

Challenges addressed in the plan:

- Major roadway corridors are flanked by segregated, single-use commercial development creating unappealing edges to residential neighborhoods without offering substantive choices for amenities or services.
- Housing inventory that consists primarily of single-family homes. Greater diversity of housing choices is desirable to meet the needs of all types of households, especially those with very low incomes, single-person households, retirees, and young adults and families.

Action items addressed:

- 1.1.1 Review zoning classifications for consistency with the FLUM (Future Land Use Map).
- 1.1.3 Revise the zoning ordinance to allow and encourage mixed land uses and incentivize pedestrian and transit friendly development.
- 1.1.4 Revise the zoning ordinance to include design standards for new development that address quality, street frontage, building entrances, utility placement, and scale.
- 3.13.1 Establish regulatory and design guidelines for infill/redevelopment housing developments that ensure compatibility with surrounding properties.
- 10.1.6 Create incentives and develop Low Impact Development criteria for residential and commercial developments.

Planning staff has continued administrative rezonings (upwards of 170 parcels have been administratively rezoned in 2023) that address areas where uses are not consistent with the current zoning due to the elimination of cumulative zoning, and/or hard edges exist between heavy commercial zoning and single-family residential, and/or employing more neighborhood friendly, mixed-use zoning districts, and/or providing for more housing choice, and/or reducing the amount of heavy commercial and industrial zoned land. As a result of this review, staff has continued a consistent administrative rezoning procedure in an effort to more closely align the zoning map with appropriate and likely future development in those areas. Key initiatives in 2023 included rezoning Bertrand Dr. as it connects the north UL campus to Moncus park to plan for more walkable uses and site layout in the future, the rezoning of all LCG parks and recreation centers and LPSS's schools to Public Institutional zoning to define clear regulations and more flexibility for operation. Finally, in order to increase housing choice, staff has begun to increase the amount of Residential Mixed zoning and has begun an Infill/Housing Choice Subcommittee as an initiative to address obstacles to infill development and different housing types.

Administrative Adjudication Bureau (AAB)

Enforcing property standards and building codes has been difficult in the past. LCG had few tools to compel compliance. Letters would be sent out to property owners but ensuring compliance was difficult because often it was hard to prosecute through civil court. In addition, there were no fines in place or ability to collect fines. The Administrative Adjudication Bureau was established in 2021 to adjudicate cases brought forward by LCG with a quasi-judicial process that requires that LCG make a sound case for prosecution.



2024 Annual Report

PlanLafayette is now 10 years old and has seen significant momentum and implementation of key action items. A major plan amendment was undertaken in 2021.

To ensure the plan remains relevant and useful to the community, the City and Parish Planning Commissions and the Community Development and Planning Department, on behalf of the City and Parish Councils and Mayor-President, will monitor plan implementation progress annually. The preparation of annual reports was recommended in the PlanLafayette comprehensive plan document.

The following is the 2024 Annual Report prepared by the Community Development and Planning Department with assistance from staff across Lafayette Consolidated Government.

PlanLafayette has 463 action items. In addition to the number of items, all LCG departments and dozens of external agencies are involved with the implementation. At the time of this report, 322 action items have either been completed or work has begun. The major amendment removed 10 completed action items for PlanLafayette. Staff has organized this report by summarizing ongoing activities by projects and/or themes.

Each theme is generally described with the following information:

- Initiative name and summary
- Plan challenges addressed
- Action item reference (from the plan)
- Current tasks

Final Report Delivered to the City Planning Commission

January 27, 2025

Final Report Delivered to the Parish Planning Commission

February 10, 2025

Projects:

The 2024 Annual Report structure focuses on six themes. This year's six highlights are:

- Lafayette Development Code/Housing Choice and Infill Initiative
- Neighborhood Revitalization
- Corridor Planning
- Bike and Pedestrian Planning
- Arts and Culture Initiatives
- LCG Departmental Initiatives

Amendments:

There are no proposed amendments in this year's annual report.

Lafayette Development Code (LDC)

Adopted by the then City-Parish Council on May 5, 2015 the UDC, now LDC, consolidated land development regulations, integrated standards and procedures, and streamlined the review process needed for new development. PlanLafayette served as the guidebook for creating regulations and making decisions for the city and parish. To effectuate plan implementation, the LDC was prepared immediately following the adoption of PlanLafayette. The LDC has been amended numerous times since adoption—with each batch of amendments focusing on the smooth administration of the code in a way that protects property while also creating a development-friendly environment.

Challenges addressed in the plan:

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- Housing inventory that consists primarily of single-family homes. Greater diversity of housing choices is desirable to meet the needs of all types of households, especially those with very low incomes, single-person households, retirees, and young adults and families.

Action items addressed:

- 1.1.1 Review zoning classifications for consistency with the FLUM (Future Land Use Map).
- 1.1.3 Revise the zoning ordinance to allow and encourage mixed land uses and incentivize pedestrian and transit friendly development.
- 1.1.4 Revise the zoning ordinance to include design standards for new development that address quality, street frontage, building entrances, utility placement, and scale.
- 3.13.1 Establish regulatory and design guidelines for infill/redevelopment housing developments that ensure compatibility with surrounding properties.
- 10.1.6 Create incentives and develop Low Impact Development criteria for residential and commercial developments.

Planning staff has continued administrative rezonings. An upwards of 76 parcels have been administratively rezoned in 2024 that address areas where uses are not consistent with the current zoning due to the elimination of cumulative zoning, and/or hard edges exist between heavy commercial zoning and single-family residential, and/or employing more neighborhood friendly, mixed-use zoning districts, and/or providing for more housing choice, and/or reducing the amount of heavy commercial and industrial zoned land. As a result of this review, staff has continued a consistent administrative rezoning procedure in an effort to more closely align the zoning map with appropriate and likely future development in those areas.

Key initiatives in 2024, included the continuation of rezoning Congress St. as it passes Downtown, to plan for more walkable uses, more housing choice and density, and to plan for the Congress St. Streetscape Project. The other notable administrative rezoning was in Freetown Port-Rico where staff recommended rezoning to a mixed residential zoning in order to address an area of industrial zoning, common in older parts of town near the railroad tracks. The existing land use was residential and continuing the existing land use was impossible in an industrial zoning district. The recommended zoning also plans for more density and housing choice. Finally, staff successfully downzoned a part of Simcoe St. as an effort to plan for appropriate uses and protect existing uses near the federally historic designated neighborhood of Sterling Grove.

Staff has continued its work to increase housing choice by implementing more Residential Mixed zoning. Through the continued facilitation of the Infill/Housing Choice Subcommittee, an initiative to address obstacles to infill development and different housing types, the committee's first step was the recommendation of some LDC amendments. The amendments included increasing the size of allowable accessory dwelling units, increased density in the Mixed Neighborhood (MN) zoning district, and expanded the housing types allowed in Residential Single Family 2 (RS-2). This created another transitional zoning that

EXHIBIT



City Council agenda — CO-055-2022 (Johnston St. CH → MN-1)

SHOWS	Corridor precedent, with a CUP carve-out.
SOURCE	LCG Council
PROVENANCE	https://apps.lafayetteela.gov/obcouncil/api/Document/2167179/ — pp. 1-2.
PAGES	G-1 to G-2



See agenda documents at:
<http://www.lafayettela.gov/obcouncil/default.aspx>
REGULAR MEETING
LAFAYETTE CITY COUNCIL
705 W. University Avenue, Ted A. Ardoin
City-Parish Council Auditorium
TUESDAY, JULY 19, 2022
5:30 p.m.

LAFAYETTE CITY COUNCIL

Nanette S. Cook
Chair
District 4

Glenn Lazard
Vice-Chair
District 5

Patrick "Pat" Lewis
District 1

Andy Naquin
District 2

Liz Hebert
District 3

Veronica L. Williams
Clerk of the Council

AGENDA

1. Call to order
2. Invocation and Pledge of Allegiance
3. **COUNCIL ANNOUNCEMENTS**
4. **EXECUTIVE/MAYOR-PRESIDENT'S REPORT**

JOINT RESOLUTIONS

5. [JR-023-2022](#) A joint resolution of the Lafayette City Council and the Lafayette Parish Council authorizing a Non-Warranty Cash Sale of the property identified at 244 Josephine Street (Assessment Number 6010999) to an adjoining landowner pursuant to La. R.S. 47:2202(B) for the price of the sale's anticipated costs. (Community Development and Planning)
6. [JR-024-2022](#) A joint resolution of the Lafayette City Council and the Lafayette Parish Council authorizing a Non-Warranty Cash Sale of the property at 402 West Bachert Street (Assessment Number 6060165) to an adjoining landowner pursuant to La. R.S. 47:2202(B) for the price of the sale's anticipated costs. (Community Development and Planning)
7. [JR-025-2022](#) A joint resolution of the Lafayette City Council and the Lafayette Parish Council authorizing a Non-Warranty Cash Sale of the property at 435 Marigold Loop (Assessment Number 6031315) to an adjoining landowner pursuant to La. R.S. 47:2202(B) for the price of the sale's anticipated costs. (Community Development and Planning)
8. [JR-026-2022](#) A joint resolution of the Lafayette City Council and the Lafayette Parish Council authorizing a Non-Warranty Cash Sale of the property at 1102 Tenth Street (Assessment Number 6041179) to an adjoining landowner pursuant to La. R.S. 47:2202(B) for the price of the sale's anticipated costs. (Community Development and Planning)

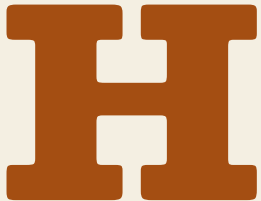
REPORTS AND/OR DISCUSSION ITEMS

9. LUS Utility Bill Discussion (Liz Hebert)
10. Heymann Park Improvements (Glenn Lazard)

ORDINANCES FOR FINAL ADOPTION

11. [CO-055-2022](#) An ordinance of the Lafayette City Council amending the Lafayette Development Code so as to reclassify Case No. ZON2022-0016 Johnston Street, Garfield Street to General Mouton Avenue Administrative Rezoning, located generally north of General Mouton Avenue, east of Johnston Street, and south of Garfield Street; the particular parcels being rezoned from CH (Commercial-Heavy) to MN-1 (Mixed-Use Neighborhood) and CM-2 (Commercial Mixed) with a CUP (Conditional Use Permit) for a bar/lounge for 215 East Convent Street, 815 and 817 Johnston Street. (Community Development and Planning)
12. [CO-102-2022](#) An ordinance of the Lafayette City Council amending the Lafayette Development Code so as to reclassify Case No. ZON2022-0021 125 Easy Street Rezoning, located generally north of Eraste Landry Road, west of Easy Street, and south of Ambassador Caffery Parkway; the particular parcel being rezoned from IL (Industrial-Light) to RM-1 (Residential Mixed). (Community Development and Planning)
13. [CO-103-2022](#) An ordinance of the Lafayette City Council amending the Lafayette Development Code so as to reclassify Case No. ZON2022-0022 129 Youngsville Highway Rezoning, located generally north of William Drive, east of Youngsville Highway, and south of West Pinhook Road; the particular parcel being rezoned from IL (Industrial-Light) to CH (Commercial-Heavy). (Community Development and Planning)
14. [CO-104-2022](#) An ordinance of the Lafayette City Council amending the Lafayette Development Code and the official map of the City of Lafayette, providing for the annexation of additional land into the corporate limits of the City of Lafayette, Louisiana, Case No. ZON2022-0023 1600 Block La Neuville Road Annexation, located generally north of Greenpoint Commons, west of Ambassador Caffery Parkway, and south of La Neuville Road; and assigning a zoning classification of RS-2 (Residential Single-Family) (District 4). (Community Development and Planning)
15. [CO-105-2022](#) An ordinance of the Lafayette City Council amending the Lafayette Development Code so as to reclassify Case No. ZON2022-0024 620 SE Evangeline Thruway Rezoning, located generally north of Tenth Street, west of SE Evangeline Thruway, and south of Louisiana Avenue; the particular parcels being rezoned from CH (Commercial-Heavy) to MN-2 (Mixed-Use Neighborhood). (Community Development and Planning)
16. [CO-106-2022](#) An ordinance of the Lafayette City Council amending the FY 21/22 operating and capital budget of the Lafayette City-Parish Consolidated Government by reclassifying City ARPA projects in Fund 650 American Rescue Plan/21-City Fund to align with final ARPA rules. (Finance)
17. [CO-107-2022](#) An ordinance of the Lafayette City Council amending the FY 21/22 capital budget of the Lafayette City-Parish Consolidated Government by transferring \$130,000 from the HazMat Response Unit RPL project to the Airpacks project to replace 15 airpacks and 30 air cylinders within the Lafayette Fire Department to continue replacing existing units that are reaching their life expectancy. (Fire)
18. [CO-108-2022](#) An ordinance of the Lafayette City Council amending the FY 21/22 operating and capital budget of the Lafayette City-Parish Consolidated Government by increasing the Use of Fund Balance in Fund 401 (Sales Tax Cap Improv-City Fund) in the amount of \$700,000.00 and appropriating within the Public Works Department, Capital Improvements Division for the Digby Avenue Detention project. (Public Works)
19. [CO-109-2022](#) An ordinance of the Lafayette City Council amending the FY 21/22 operating budget of the Lafayette City-Parish Consolidated Government by recognizing recreation registration fees in the amount of \$11,433 and appropriating \$6,000 in the Official Fees Account and \$5,433 in the Contractual Services Account within the Parks, Arts, Recreation and Culture Department, Athletic Programs Division. (Parks, Arts, Recreation and Culture)
20. [CO-110-2022](#) An ordinance of the Lafayette City Council amending the FY 21/22 capital budget of the Lafayette City-Parish Consolidated Government by transferring \$11,428 from the Athletic Field Supplies/Impr project to the ¾ Truck/Ext Cab RPL-4 Account within the Parks, Arts, Recreation and Culture Department. (Parks, Arts, Recreation and Culture)

EXHIBIT



Johnston–Louisiana Corridor project page; Oct. 21, 2025 release

SHOWS	Phase One code review; scope; schedule.
SOURCE	LCG (printed Sept. 24, 2026)
PROVENANCE	https://www.lafayettela.gov/project-pages/johnston-louisiana-corridor · https://www.lafayettela.gov/news/posts/johnston-street-revitalization-moves-forward-in-lafayette/ (printed Sept. 24, 2026).
PAGES	H-1 to H-11

Lafayette Consolidated Government

***Investing in infrastructure. Building for growth.*****Planning the Future of the Johnston–Louisiana Corridor**

Today, Lafayette stands at the center of one of Louisiana’s strongest growth corridors, with opportunities we haven’t seen in decades. **That growth makes investment in Johnston Street and Louisiana Avenue not just overdue, but essential.**

The Johnston Street–Louisiana Avenue Corridor is the heart of Lafayette. From Lafayette’s earliest days, this corridor has been part of the community’s growth and daily life. More than a roadway, it has shaped our commerce, culture, and way of life.

Congestion, aging infrastructure, drainage challenges, outdated utilities, safety concerns, and stagnant commercial property values are challenges we must deal with. A comprehensive approach can create the conditions for reinvestment, stronger businesses, and safer, more accessible travel for everyone — whether driving, walking, or biking.

Together, we will transform one of Lafayette’s most important corridors into a safer, more connected, resilient, and vibrant place to live, work, do business, and invest — while preparing for the growth ahead.



<https://media-002-us.cdn.govstack.com/lafayettela-us/media/gtkoxoz0/johnston-st-traffic-image-2.webp>

**Let's Chat**

By investing in infrastructure, safety, and multimodal upgrades, the corridor will be:

Safer for vehicles, pedestrians, bikes, and all users

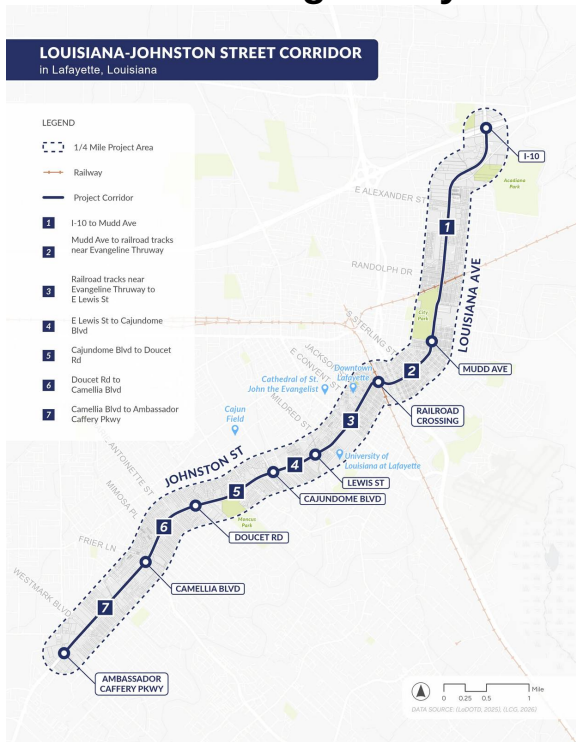
Better connected and more functional

Less prone to flooding and more environmentally sustainable

Better prepared for investment and economic development

More resilient and reliable utilities as we continue to grow

Enhanced as a gateway for the city of Lafayette



https://media-002-us.cdn.govstack.com/lafayettela-us/media/e31h3g3x/jola_project_corridor_map.jpg

Project Area

The project spans 8.5 miles from Louisiana Avenue at I-10 to Johnston Street at Ambassador. To support planning and public input, the corridor has been divided into seven study segments.

Project Timeline

Transforming the Louisiana-Johnston Corridor is a long-term investment in Lafayette's future. The corridor transformation is expected to take approximately 10 years, Lafayette Consolidated Government (LCG) has divided the corridor into seven segments, with construction rolling out in phases based on critical infrastructure needs, community priorities and traffic management.

- **2025:** DOTD Roadway Transfer and Planning
- **2026:** Study, Planning, Public Input, and Design
- **2027:** Planning, Public Input, and Design Refinements
- **2028:** Phased Construction Begins (Anticipated)

Every person who lives, works, studies, or visits Lafayette experiences Johnston Street and Louisiana Avenue some way. This project gives us the opportunity to improve how people move through our city while creating a corridor that reflects who we are today and where we're headed.



Lafayette Parish Mayor-President, Monique B. Boulet



Example view of Johnston Street featuring modernized shared walking/biking paths and improved accessibility.

Frequently Asked Questions

How is the project being funded? ([#collapse aae72a54-6943-45a3-a8ea-6cd9ff989fe3 1](#))

Strong partnerships are making this project possible. Working closely with the City Council, our state legislative delegation, and our congressional delegation, Lafayette has already secured more than \$50 million in funding to advance the Johnston–Louisiana Corridor Project, including funding to move the downtown Segment 3 toward construction.

How will Lafayette's existing municipal development and zoning standards affect the design for the improved Corridor? ([#collapse aae72a54-6943-45a3-a8ea-6cd9ff989fe3 2](#))

Development and zoning standards are an important tool for protecting the use, quality, character, and long-term value of our community. They help ensure that growth happens in a thoughtful way while protecting the people, businesses, properties, and neighborhoods that make Lafayette unique. As part of Phase One, LCG will review the existing codes and regulations along the corridor to make sure they support the vision for Johnston Street and Louisiana Avenue. Where updates are needed, we will consider changes that strengthen the corridor while protecting the interests of the people who live, work, own property, and invest here. We will work to ensure the code is an asset, not an obstacle, as we plan for the corridor's future. Our goal is to protect what makes this corridor special while creating the flexibility and opportunity needed for it to thrive.

I own a home, business, or property along the Johnston-Louisiana Corridor. How can I provide input? ([#collapse aae72a54-6943-45a3-a8ea-6cd9ff989fe3 3](#))

Your voice will help shape the future of the Louisiana-Johnston Corridor. It is a big undertaking, and it will take all of us working together. The City is committed to listening and planning together with the businesses, property owners and residents, and communities along the corridor. Throughout Phase One, we'll gather input through surveys, public meetings, corridor walkabouts and stakeholder interviews. If you own property or operate a business along the corridor, we need your voice and your support.

Please complete the Property and Business Owner Survey (<https://engagestantec.com/johnston-st-and-louisiana-ave-corridor-plan/take-our-survey-local-businesses>), attend upcoming engagement events, and sign up for project updates.

What does Phase One Scope of Work include? ([#collapse aae72a54-6943-45a3-a8ea-6cd9ff989fe3 4](#))

During Phase One, LCG and its partners will develop a corridor-wide planning and implementation framework while our engineering teams are surveying, mapping and gathering information about existing conditions.

Planned activities for 2026–2027 include:

- Public input and engagement opportunities
- Detailed analysis of existing conditions
- Corridor alternatives development
- Development of a path toward shovel-ready plans for implementation

With community feedback and technical analysis, the goal is to create actionable plans that can move forward beginning in 2028.

What improvements are being considered? ([#collapse aae72a54-6943-45a3-a8ea-6cd9ff989fe3 5](#))

Improvements being considered include better lighting, native landscaping, gateway and plaza streetscape enhancements, and expanded multimodal transportation options.

When will road closures and traffic delays begin? ([#collapse aae72a54-6943-45a3-a8ea-6cd9ff989fe3 6](#))

Phase One is about preparing for construction. The team will focus on studying existing road conditions, engaging with the community, completing design and utility work, and preparing the corridor for construction through 2027. Residents may see temporary traffic impacts as crews gather information. Any disruptions will be carefully scheduled and kept as brief as possible to minimize impacts on commuters, businesses, and local traffic. The team will work diligently to minimize right-of-way delays. Major construction is not expected to begin until late 2028.

Why is construction being completed in phases? ([#collapse aae72a54-6943-45a3-a8ea-6cd9ff989fe3 7](#))

The corridor is divided into seven segments that will be planned and constructed in phases over approximately 10 years. A segmented and multi-phased approach is essential to keep a project of this size and magnitude moving forward while strategically managing traffic, minimizing disruption to businesses, residents, and commuters, and providing the ability to address the most critical needs along Louisiana-Johnston first.

Why is the Johnston-Louisiana Corridor project important to Lafayette? ([#collapse aae72a54-6943-45a3-a8ea-6cd9ff989fe3 8](#))

The Johnston Street and Louisiana Avenue corridor is more than a road. It is a transportation and economic lifeline for Lafayette. The 8.5-mile corridor stretches from Interstate 10 at Louisiana Avenue to Ambassador Caffery, connecting businesses, schools, neighborhoods, places of worship, movie theaters, and culinary destinations. It is also home to our Ragin' Cajuns at the University of Louisiana at Lafayette, beautiful Moncus Park, and the historic J. and L. Hebert Municipal Golf Course. As our city grows and welcomes new opportunities, now is the time to invest in and modernize this vital corridor at the heart of Acadiana — and the city we call home.

Will this project require a tax increase? ([#collapse aae72a54-6943-45a3-a8ea-6cd9ff989fe3 9](#))

No. A new tax is not needed under our current funding approach. We will continue to build on our strong partnerships at the local, state, and federal levels and pursue available resources as the project advances. If we stay on track with those partnerships and Lafayette's growth continues as expected, we believe the corridor can move forward without a new tax. A new tax is not on the table.

Contact Us

Lafayette Consolidated Government

705 West University Avenue
Lafayette, LA 70506

General Info/Questions Call: (337) 291-8200 or 311
info@lafayettela.gov (<mailto:info@lafayettela.gov>)

Regular Business Hours:

Monday - Friday 8AM - 12PM and 1PM -5PM



<https://media-002-us.cdn.govstack.com/lafayettela-us/media/o5bjbxpm/lcg-full-white-transparent.png>

Address

Lafayette Consolidated Government

705 West University Avenue
Lafayette, LA 70506

Contact

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<https://www.lafayettela.gov/sitemap/> Report a Concern <https://www.311lafayette.services/en-US>

Contact Us <https://www.lafayettela.gov/contacts-directory/> Public Records Request

<https://www.lafayettela.gov/your-government/public-records-request/> Council Agenda (Upcoming)

<http://apps.lafayettela.gov/OBCouncil/ViewDocument.aspx?docID=2231983> Watch Public Meetings

<https://www.lafayettela.gov/your-government/city-and-parish-councils/watch-public-meetings/> Made

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Lafayette Consolidated Government

Johnston Street Revitalization Moves Forward in Lafayette

Oct 21, 2025

- City & Parish News (</news/city-parish-news/>)

MAYOR-PRESIDENT BOULET ADVANCES JOHNSTON STREET AND LOUISIANA AVENUE REVITALIZATION INITIATIVE

Lafayette, LA – Mayor-President Monique B. Boulet announced continued progress on Lafayette Consolidated Government’s Johnston Street and Louisiana Avenue Revitalization Initiative, following the selection of four engineering firms to lead design and engineering along the corridor.

The multi-phase project represents one of the Boulet administration’s top infrastructure priorities—a comprehensive plan to modernize one of Lafayette’s busiest and most economically important corridors.

Since taking office in early 2024, **Mayor-President Boulet has worked to move this long-discussed project from concept to action**, building on years of study and public conversation. With engineering teams now on board, the project is entering its next phase—improving drainage and utilities, developing designs, and engaging the community throughout the process.

“Johnston Street has been a cornerstone of Lafayette’s history, and it’s time to revitalize it as we continue to grow and mature,” said Mayor-President Monique B. Boulet. “As our city evolves, we have an opportunity to breathe new life into this area. This project is about more than updating a roadway—it’s about reinstalling pride in our community and creating a corridor that reflects who we are and where we’re going.”

Reimagining a Vital Corridor

Stretching through the heart of Lafayette, Johnston Street and Louisiana Avenue connect key destinations including Downtown Lafayette, the University of Louisiana at Lafayette, and Moncus Park. Despite its importance, the **corridor has faced persistent challenges** with traffic congestion, outdated utilities, limited pedestrian and bicycle access, and in many areas, no modern drainage at all.

The Revitalization Initiative aims to change that—modernizing infrastructure, expanding drainage capacity, improving mobility, and creating a more attractive, functional corridor that supports long-term investment.

Key Features

- **Comprehensive drainage improvements**, introducing modern stormwater infrastructure where none currently exists
- **Upgraded utilities**, including undergrounding telecommunications and replacing aging infrastructure to reduce visual clutter
- **Safer, more efficient intersections and traffic flow**
- **Improved connectivity** with sidewalks, bike lanes, and multi-use paths
- **Placemaking** through native landscaping and design improvements



Building Momentum

This progress follows more than a year of groundwork to position the project for success. In May 2025, the **Lafayette City Council** approved City Ordinance #CO-037-2025, **transferring ownership** of U.S. 167 (Johnston Street) **from the Louisiana Department of Transportation and Development (DOTD)** to LCG—a major step that put the corridor’s future under local control.

A **public drainage meeting in September** helped shape early design priorities for Downtown, Midtown, and Freetown areas where stormwater systems are lacking. And on October 10, LCG’s **Professional Services Review Committee recommended four engineering firms** to guide the 8.5-mile redesign, beginning with the Evangeline Thruway to Doucet Road segment.

Nearly **\$28.5 million from local, state, and federal sources** is already available to support design and early improvements, with additional funding expected through grants, state approvals, and future allocations in LCG’s Capital Improvement Program Budget.

What’s Next

The selected firms will work collaboratively to advance design and engineering, addressing transportation, drainage, land use, and environmental sustainability. Public input will continue to play a key role throughout the process, ensuring that residents and businesses help shape the corridor’s future.

Community members can learn more and subscribe to receive updates via the project page at lafayettela.gov/johnston [.\(https://lafayettela.civilspace.io/en/projects/johnston-st-and-louisiana-ave-infrastructure-improvements\)](https://lafayettela.civilspace.io/en/projects/johnston-st-and-louisiana-ave-infrastructure-improvements) .

“This corridor connects our people, our neighborhoods, and our commerce,” Boulet added. “It’s been discussed for years — but now, the work is underway. The improvements we make here will shape how Lafayette moves, grows, and thrives for decades to come.”

###

Back to News Search [.\(Inews/\)](#)

Contact Us

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Monday - Friday 8AM - 12PM and 1PM -5PM



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EXHIBIT



Command Platform property record extracts; parking reconciliation memo

SHOWS	Property facts; recorded instruments; Lot 7 flags; parking counts.
SOURCE	Belle / Cypress Command
PROVENANCE	Command Platform repository (otb-command): CLAUDE.md; docs/harvest/ac-archive-2026-08-29/recorded_agreements.json, lots.json, parcels.json; docs/parking-reconciliation-memo.md.
PAGES	I-1 to I-4

I COMMAND PLATFORM RECORDS · EXTRACT · CLAUDE.MD, PROPERTY FACTS SECTION

PROPERTY FACTS

Verbatim extract of the property record maintained for On The Boulevard (Command Platform, file CLAUDE.md, "Property facts"). Internal working notes; reproduced without edits.

```
## Property facts (audit-grade - do not contradict)
- GLA 62,883 SF · 27 demised units · 2 buildings · 4.84 ac · zoned CH.
- **Parking variance Entry 99-11797: 324 provided / 344 required.** Floor space
  "limited to available parking spaces." Central constraint for every leasing,
  licensing, or stall-removal decision. Zoning also requires 20% green area.
- Streets: Arnould Blvd (80' R/W concrete, address frontage, E), Johnston St /
  US 167 (±100', S), Patricia St (50', N), Marie Antoinette St (40', W - long
  building back/service frontage). Authoritative spelling: **Arnould** (street).
  TITLE CHECK CLOSED 2026-06-27 (operator-confirmed): the street is **Arnould
  Blvd**; the recorded **subdivision** of record is **"Arnold Heights Subd. Ext.
  No. 1"**- a distinct legal proper noun, NOT a misspelling. Keep both; do not
  "correct" the subdivision name to Arnould.
- Long building 101-133: backs Marie Antoinette (rear face 18.73' off the R/W
  per plat - NOT 10'), 101 at Johnston end, storefronts face the main field.
  Short building 135-149 along Patricia; the 37.4' M.A.-end section splits at
  mid-depth into two ~square 1,580 SF units - 135A (C. Wolf, breezeway side)
  and 135B (Belle office, Patricia side), both fronting M.A.;
  149 (Jason's Deli, anchor) at the Patricia x Arnould corner.
- Parking (plat-verified REV 9): Main Field (fills first) → **Lot 8** (19 spaces
  = 10+5+4, pocket at Patricia x Marie Antoinette corner, butts 135A/B) →
  **Lot 7** (remote, Lot 7 Block M, 110 Marie Antoinette St, parcel 6009649,
  ±14,375 SF, 32 spaces = 6+8+10+8, directly across Marie Antoinette from Lot 8; under mature oaks -
  invisible in aerials, operator-confirmed 2026-09-06, do not re-question from imagery).
  Also: rear M.A. parallel row 18 · Johnston strip 10 · JD Bank easement 13.
  **Plat striping totals 314 vs variance "324 provided" - Δ -10 unreconciled**
  (docs/parking-reconciliation-memo.md; cite 324 legally, plan ops on 314).
  CANDIDATE RESOLUTION 2026-09-05 (REV 13): the architect CAD stripes an unlabeled
  10-stall head-in row on the Johnston frontage south of the pylon sign → 314 + 10
  = 324. Pending ground confirmation; do not retire the 314 ops figure yet.
- **Access (A-1 REV 13, docs/site-access-inventory-2026-09.md):** 8 Belle curb
  cuts - Arnould Driveway A (31' throat, two-way, the only full-movement cut:
  55' median opening) and Driveway B (40', two-way, shared with JD Bank);
  Johnston drive (30', two-way, immediately south of the bank notch); Patricia x3
  (149 service drive 37', 135B/137 rear pad 23', Lot 8 21'); Marie Antoinette x2
  (Lot 8 25', breezeway apron 10' pedestrian). Rear M.A. row = 5 curbed bays
  straight off the street. All aisles two-way per plat arrows. JD Bank parcel is
  reached through Driveway B + the Johnston drive (reciprocal servitude Entry
  2004-00057697 - exhibit not yet pulled; servitude area NOT drawn).
- Assessor parcels (Belle): 6026783, 6026784, 6026785, 6026788, 6009649 (remote).
- Easements: Our Savior's Church $350/mo, 25-yr - **§3a liquor waiver survives
  termination** (restaurants OK within 175 ft; liquor line drawn on plat).
  JD Bank $250/mo to Belle + 13 spaces, expires 12/30/2034. JD Bank corner parcel
  is SOLD - never render it as Belle property; boundary shows a "NOT A PART" notch.
```

I RECORDED INSTRUMENTS REGISTER AND LOT 7 FLAGS

COMMAND PLATFORM · RECORDED_AGREEMENTS, LOTS, PARCELS

ENTRY NO.	INSTRUMENT	TITLE EXC.	STATUS IN RECORD
(2019 executed)	Access & Parking Easement — Our Savior's Church (\$350/mo, 25-yr, supersedes 2015 agmt; incl. liquor waiver §3a)	—	Active — on file
(2020 executed)	Reciprocal Access & Parking Easement — JD Bank (\$250/mo to Belle, exp 2034, supersedes 2004 Whitney agmt; Belle gains 13 bank spaces)	—	Active — on file
03-060864	Cross Easement and Servitude Agreement	27	Applies
2004- 00057697	Reciprocal Access & Parking Easement — Belle ↔ Whitney National Bank	28	SUPERSEDED by 2020 JD Bank agreement
98-18247	Zoning Variance (Parking) — original	23	Applies; revised by #24
99-11797	Zoning Variance (Parking) — revised	24	Applies — current variance of record
99-041054	Zoning (Signage)	25	Applies
97-012420	Title exception #20	20	Applies
286167	Title exception #11 (Church property plat reference)	11	Applies
445327	Title exception #13	13	Applies
577566	10' City of Lafayette Electric Easement (#14)	14	Applies
77-000785	15' Temporary Drainage Easement	—	Expired
77-0783	15' Temporary Drainage Easement (Marie Antoinette side)	—	Expired

LOT RECORD · REMOTE PARKING — LOT 7, BLOCK M (PARCEL 2)

Across Marie Antoinette Street. Legally Lot 7, Block M, Arnould Heights Subdivision Ext. No. 1. ~14,375 sf. Serves as REQUIRED ACCESSORY PARKING for Parcel 1's retail building — verify zoning before granting any exclusive license use.

PARCEL RECORD · PARCEL 2 — MARIE ANTOINETTE ST (REMOTE PARKING) · FLAG

Counted toward zoning parking minimum. Variance Entry No. 99-11797 records 324 provided / 344 required. If cross-parking licenses reduce available stalls, the variance could be jeopardized. License agreements must be non-exclusive overflow use only — no assigned stalls.

Legal: Lot 7, Block M, Arnould Heights Subdivision Extension No. 1 · ~14,375 SF · owner of record Belle Realty of Lafayette, LLC

The JD Bank and Our Savior's Church agreements carry no recording entry number in the register. Our Savior's Church, a party to a parking agreement with the center, owns parcels named in the 2022 proposal (Ex. A).

I PARKING COUNT RECONCILIATION MEMO

COMMAND PLATFORM · JUNE 10, 2026, UPDATED SEPT. 5, 2026

MEMO — Parking Count Reconciliation (Δ -10)

On The Boulevard Shopping Center · 101-149 Arnould Blvd, Lafayette, LA 70506 Prepared: June 10, 2026 · OTB Property Command, geometry REV 11 **Status:** OPEN — CANDIDATE RESOLUTION FOUND 2026-09-05 (see update below); ground/aerial confirmation pending

UPDATE 2026-09-05 — CANDIDATE RESOLUTION FROM THE ARCHITECT CAD (GEOMETRY REV 13)

While tracing ingress/egress from cad/Boulev_CLEAN.dxf for the A-1 access layer, the CAD's PARKING layer showed an **11-line head-in row (10 stalls at 9.0' pitch) nosing the Johnston R/W south of the pylon-sign pocket** (CAD x 1073-1093, y 189.0-279.5 → plat a 651-669.5, b -172...-271). It carries **no "N SPACES" label** on the plat, so the raster tally of labels below never counted it. The plat's own "Johnston strip 10" is the labeled 8 in the notch aisle + 2 at the sign pocket — a different row.

314 labeled + 10 unlabeled = 324 = the variance's "324 provided" exactly.

This favors candidate explanation 4 (a labeling gap on the plat, not a count error in the variance). Recorded in src/data/geometry.json → parking.cadUnlabeled / totalStriped; the row is drawn on A-1 and labeled "UNLABELED ON PLAT · CAD-STRIPED".

Imagery check 2026-09-06 (Google Earth captures supplied by the operator): the oblique and 2D views show cars parked head-in on the Johnston frontage directly south of unit 101, exactly where the CAD stripes the row, in a count consistent with 10. Still a candidate until the stripes are counted on the ground, but the row exists and is in use.

Remaining to close: confirm the 10 stalls are striped on the ground today (walk or next drone pass), then flip CLAUDE.md to "324 striped = variance" and retire the 314 ops figure. Until then the interim guidance below still holds.

ISSUE

The recorded plat's own striping labels (Montagnet & Domingue, last rev. 7/19/2019) total **314 spaces** across all zones. Variance **Entry 99-11797** states **324 provided / 344 required**, and conditions floor space as "limited to available parking spaces." The 10-space gap is unexplained.

This matters because the variance figure is the legal ceiling that every lease, license, and stall-removal decision is assessed against. If actual striping is 314, the effective cushion against the 344 requirement is thinner than the variance suggests; if the variance counted zones differently, we should know which definition controls.

ZONE-BY-ZONE (PLAT LABELS, RASTER-VERIFIED AT 200 DPI)

#	ZONE	COUNT	SOURCE DETAIL
1	Main field — two angled double-loaded bands (9.00' × 23.70' stalls)	100	36+36 west segments, 14+14 east segments
2	Arnould frontage head-in row	38	modules 7 + 11 + 11 + 9; none at Jason's frontage
3	Storefront row (long building)	56	one perpendicular head-in row (REV 12; NOT angled), labeled "56 SPACES" twice
4	Lot 6 west-field zone	28	16 island module + 12 at short-bldg walkway
5	Lot 8 pocket (Patricia × M.A.)	19	10 + 5 + 4
6	Rear M.A. parallel row	18	4+4+4+4+2; gap at electric easement 577566
7	Johnston strip (Lot 1)	10	8 head-in + 2 at pylon sign

#	ZONE	COUNT	SOURCE DETAIL
8	Lot 7 Block M remote (110 Marie Antoinette)	32	6 + 8 + 10 + 8
9	JD Bank parcel (reciprocal easement)	13	6 + 7 — matches the easement's 13 exactly
TOTAL		314	vs variance 324 → Δ -10

CANDIDATE EXPLANATIONS (RANKED BY LIKELIHOOD)

1. **Vintage mismatch.** The variance is 1999; the plat striping shown is the 7/19/2019 revision. A re-stripe between 1999 and 2019 (e.g., adding the handicap loading pad in Lot 6, the electric-easement gap in the rear row, or island additions in the field) could have removed ~10 stalls after the variance count was fixed.
2. **Different inclusion rules.** The 1999 count may have included zones the plat doesn't label as striped spaces — e.g., the 75.12' Arnould apron module, the breezeway apron, or unstriped overflow on Lot 7 (gravel lot; 1999 layout may have been counted at a higher yield than the 32 striped today).
3. **Handicap conversion.** ADA restriping typically consumes ~1 stall per van-accessible pair. Three handicap symbols appear in Lot 6 alone; a post-1999 ADA pass could account for several spaces.
4. **Count error in one document.** Either the variance application's tally or the plat's zone labels could simply be wrong; the plat labels internally reconcile (e.g., JD Bank 6+7 = the easement's 13), which favors the plat.

WHAT TO PULL (ACTION LIST)

- [] **Variance file, Entry 99-11797** — Lafayette Consolidated Government, Planning, Zoning & Codes. Request the site plan exhibit attached to the 1999 application — its stall layout is the authoritative "324."
- [] Any **re-stripe / parking-lot permits** for 101–149 Arnould Blvd, 1999–2019 (and ADA upgrade permits).
- [] **Current aerial count** (parish GIS or recent ortho) — what is actually striped today vs both documents.
- [] JD Bank easement instrument — confirm whether its 13 spaces were inside or outside the 1999 "324 provided."
- [] Lot 7 (remote) — confirm whether the 1999 count included it, and at what yield (today's plat stripes 32).

INTERIM GUIDANCE (UNTIL RESOLVED)

- Continue citing **324 / 344 per Entry 99-11797** in legal and leasing contexts — it is the recorded figure.
- For *operational* capacity planning (events, church overflow, construction staging), use the **314 striped** figure — it is what exists on the ground per the latest plat.
- Any proposal that removes stalls (outdoor seating, dumpster relocation, drive-thru queue) should be tested against the **larger deficit**: 344 required – 314 striped = **30-stall effective shortfall**, not 20.

Sources: recorded plat (Montagnet & Domingue, Inc., 5/20/1994, last rev. 7/19/2019), raster-traced at 200 dpi — evidence crops in reference/park-, zone audit in src/data/geometry.json → parking.*

EXHIBIT

J

Rent schedule and MN-1 classification worksheet

SHOWS	Section 5 figures.
SOURCE	Command Platform, Sept. 10, 2026
PROVENANCE	Command Platform repository: <code>src/data/units.json</code> ; <code>docs/sot-2026-07/units.csv</code> ; <code>docs/sot-supersession-2026-09-11.md</code> .
PAGES	J-1 to J-2

J RENT SCHEDULE AND MN-1 CLASSIFICATION WORKSHEET

SCHEDULE AS OF SEPT. 10, 2026

SUITE	TENANT / LEGAL ENTITY	USE	SF	\$/MO	LEASE END	LIKELY LDC USE	CH	MN-1	LDC
101-103	The Pink Paisley The Pink Paisley, LLC	Women's fashion boutique	9,931	\$16,008.90	2027-02-28	Retail, limited (A) — over the 6,000 SF cap	Permitted	NONCONFORMING	E-9, E-16
105	Painted Bayou Painted Bayou, LLC	Art & specialty gifts	2,222	\$3,231.16	2029-03-31	Retail, limited (A)	Permitted	PERMITTED	E-9, E-16
107	Great American Cookies / Hershey's Lafayette Cookies and Cream, LLC	Dessert café	1,743	\$2,541.88	2027-03-31	Snack/beverage bar (P) or Restaurant (C)	Permitted	CLASSIFICATION	E-8, E-14, E-15
109	JC Kate Boutique J.C. Kate Boutique LLC	Women's apparel	2,546	\$3,808.39	2028-09-30	Retail, limited (A)	Permitted	PERMITTED	E-9, E-16
111	BERNINA Lafayette (Lola Pink) Lola Pink Fabrics, LLC	Sewing & fabric retail	1,690	\$2,605.42	2027-01-31	Retail, limited (A)	Permitted	PERMITTED	E-9, E-16
113	Graze Acadiana Graze Acadiana, LLC	Charcuterie café & catering	2,606	\$4,017.58	2027-06-30	Restaurant / Food service	Permitted	CONDITIONAL	E-8, E-14
115-117	The Clothing Loft Exchange The Clothing Loft Exchange, LLC	Fashion consignment	4,340	\$6,654.68	2026-09-30	Retail, limited (A) (used merchandise)	Permitted	PERMITTED	E-9, E-16
117½	Victoria Nails Victoria Nails, LLC	Nail salon	1,769	\$2,800.92	2029-02-28	Personal services	Permitted	PERMITTED	E-8, E-15
119	OUPAC Financial Daco Investments, LLC	Consumer lending & tax prep	1,982	\$2,890.42	—	Office (loan company) or Financial institution — both P	Permitted	PERMITTED	E-8, E-14, E-15
119½	Cat Clinic of Lafayette Cat Clinic of Lafayette, L.L.C.	Feline veterinary clinic	1,974	\$3,035.03	2029-02-28	Animal hospital (indoor)	Permitted	PERMITTED	E-8, E-14
121	Magnolia Salon Robertson Family Holdings, LLC	Hair salon	1,709	\$2,527.90	2031-12-31	Personal services	Permitted	PERMITTED	E-8, E-15
123	The Tux Shoppe The Tux Shoppe, LLC	Formalwear rental	3,563	\$5,492.96	2029-12-31	Retail, limited (A) (apparel rental)	Permitted	PERMITTED	E-9, E-16
125-127	Jordan Amanda by Shoetique Jordan Amanda, LLC	Fashion & footwear	4,273	\$6,587.54	2028-04-30	Retail, limited (A)	Permitted	PERMITTED	E-9, E-16
129	HotWorx Lexi Investments 2, LLC	Infrared fitness studio	1,789	\$2,832.58	2029-08-31	Health/fitness club	Permitted	PERMITTED	E-10, E-17
131	Vacant	Inline shop	1,907	—	—	Future use limited to MN list	Permitted	VACANT	
133	Vacant	Inline shop	1,272	—	—	Future use limited to MN list	Permitted	VACANT	
135A	C. Wolf Barber Shop C. Wolf Barber & Shop LLC	Barber	1,580	\$2,040.83	2031-05-31	Personal services	Permitted	PERMITTED	E-8, E-15
135B	Belle Realty (owner office) Belle Realty Property Management	Management office	1,580	—	—	Office	Permitted	PERMITTED	E-8, E-15

137	Greek Expressions Parish Lettering, LLC	Apparel & custom merchandise	2,053	\$3,165.04	2030-10-31	Retail, limited (A)	Permitted	PERMITTED	E-9, E-16
139/141	Fast Pass Tag & Title Fastpass Tag & Title, LLC	Vehicle registration & title	3,834	\$5,910.76	2029-07-31	Office (P) or Business support services (not permitted)	Permitted	CLASSIFICATION	E-8, E-15
143	1st Franklin Financial 1st Franklin Financial Corporation	Consumer finance	1,917	\$3,354.75	2031-01-31	Office (loan company) or Financial institution — both P	Permitted	PERMITTED	E-8, E-14, E-15
145	Upstream Rehabilitation Upstream Partners	Physical therapy	1,917	\$798.75	—	Medical office/clinic	Permitted	PERMITTED	E-10, E-17
149	Jason's Deli (anchor) Deli Management, Inc.	Full-service restaurant	4,613	\$7,765.22	2030-10-31	Restaurant	Permitted	CONDITIONAL	E-8, E-14
Total			62,810	\$88,070.71					

SUMMARY BY MN-1 STATUS

STATUS	SUITES	SF	\$/MO	SHARE
Nonconforming	1	9,931	\$16,008.90	18.2%
Permitted	16	36,904	\$51,826.37	58.8%
Classification	2	5,577	\$8,452.64	9.6%
Conditional	2	7,219	\$11,782.80	13.4%
Vacant	2	3,179	\$0.00	—

RETAIL, LIMITED (A) AGGREGATE (PER-LOT READING)

Retail (A) suites	8
Retail (A) SF	30,618
Retail (A) rent	\$47,554.09/mo
Share of scheduled rent	54.0%
Cap per LDC § 89-21(d)	6,000 SF

Rent source: Command Platform schedule (\$88,070.71/month as of Sept. 10, 2026): July 16, 2026 signed rent roll, superseded by the Sept. 9-10, 2026 lease review (operator ruling Sept. 11, 2026) for suites 105, 109, 117½, 119, 119½, 121, 139, 141, 143, 145). 139/141 at the adopted combined allocation (\$5,910.76); a tenant-signed renewal at \$6,150.38 is pending landlord signature. 145 is in abatement through Dec. 2026; owner-mapped step to \$3,035.25 from Jan. 2027 (supersession memo, Sept. 11, 2026). Demised area 62,810 SF (plat headline 62,883 SF). CH column: every listed use is permitted by right in CH (Ex. E-8 to E-10). Classification is the analyst’s reading of the LDC definitions (Ex. E-14 to E-17); two calls are flagged for the Administrator.

EXHIBIT

K

Owner's 2022 packet: LDC Article 2 (edition supplied in 2022) and LCG procedures summary

SHOWS	Code in force at the time of the 2022 notice.
SOURCE	Owner's copy
PROVENANCE	Owner's packet (uploaded "Combined Issue" PDF), pp. 4-34.
PAGES	K-1 to K-31

Article 2. Districts

Summary: this Chapter establishes the zoning districts for the City of Lafayette, the regulations that apply to each district, and a comprehensive list of uses (the “Use Table”).

⇔ *Technical standards such as how building height and setbacks are measured, how buildings relate to utility easements, development in required setbacks, and development on substandard rights of way, are addressed in **Article 3**.*

89-6 Generally

- (a) To promote the public health, safety, morals, and general welfare of the community, the City of Lafayette is divided into the following districts:

District	Cross-Reference	PlanLafayette Future Land Use
“A” Agricultural	89-8	Rural / Agriculture. ⇔ <i>Buffer and building design requirements of Article 4 apply if the area is not zoned.</i>
“RS-1” and “RS-2” Residential Single-Family	89-9	Residential
“RM-1” and “RM-2” Residential Mixed	89-10	Mixed Residential
“MN-1,” “MN-2” and “MN-3” Mixed-Use Neighborhood	89-11	Transitional Mixed-Use
“MX-1” and “MX-2” Mixed-Use Center	89-12	Mixed-Use Center
“D” Downtown	89-13	Mixed-Use Center
“CM-1” and “CM-2” Commercial Mixed	89-14	Commercial / Office
“CH” Commercial Heavy	89-15	Commercial / Office
“IL” Industrial Light	89-16	Office / Industrial
“IH” Industrial Heavy	89-17	Office / Industrial
“PD” Planned Development	89-18	Any of the above
“PI-L” and “PI-H” Public/Institutional	89-19	Any of the above & Public Park

- (1) The RS, RM, MN and CM districts each have subdistricts (*e.g.*, RS-1, RS-2). The uses allowed in a district are consistent across subdistricts, whereas dimensional and development standards differ.
- (2) The MN, CM and CH districts include alternative development types, labeled “A” and “B.” **Development Type “A”** provides for urban-type development, with reduced landscaping and parking requirements but increased frontage buildout requirements. **Development Type “B”** provides for more conventional, suburban-type development, with greater parking, landscaping and green infrastructure requirements to accommodate vehicular access and to mitigate the impacts of paved surfaces and buildings. The

following criteria determine whether an application is required to use Development Type “A” or “B”:

Parking <i>(on-street on adjoining streets that provide direct access to the property)</i>	Any street includes on-street parking or has the capacity for on-street parking.
Speed limit <i>(adjoining streets that provide direct access to the property)</i>	≤ 35 mph
Street Classification <i>(adjoining streets that provide direct access to the property)</i>	All streets are classified as minor arterials or collectors, or are local streets.
Mix of Uses¹	There is at least one Residential, Commercial/Mixed-Use, and Public/Civic/Institutional use within a quarter mile of the property. These uses are those classified by the use table within the labeled Use Category (§Table 89-21-1).
Density²	There are residential uses other than dwelling, single-family detached within a quarter mile of the property.

¹When determining “Mix of Uses,” a quarter-mile is measured as the distance a person walks or drives from the nearest point of the subject property line to the nearest point of the second property line.

²When determining “Density,” a quarter-mile is measured as the radius from the centroid of the subject property.

Sites that meet all five (5) of the criteria above shall be required to use development type “A” unless otherwise determined by the Board of Zoning Adjustment. Sites that do not meet all five (5) of the criteria above may use either Development Type “A” or Development Type “B.”

- (b) Notwithstanding any setback established by this Article, buildings adjacent to substandard streets may be subject to additional setbacks (see Article 3, §89-38).
- (c) Private Roads and Driveways. A Private Road or driveway shall be accessory to the principal use of the parcel or lot upon which the same is located. Where a Private Road or driveway is the principal use of a parcel or lot, the use of such Private Road or driveway shall be concordant with the zoning district of the property upon which the Private Road or driveway is located. Accordingly, a Private Road or driveway located on property zoned RS shall not be trafficked except for traffic accessory to uses permitted in the RS district. Notwithstanding the forgoing, traffic, accessory to uses permitted in the RS district, shall be permitted on Private Roads and driveways located within the RM district; traffic, accessory to uses permitted in the RS and RM districts, shall be permitted on Private Roads and driveways located within MN, CM and CH;

and traffic, accessory to uses permitted in CH and PI districts, shall be permitted on Private Roads and driveways located with IL and IH districts.

89-7 Zoning Map

- (a) The boundaries of the zoning districts are shown on a separate instrument referred to as the zoning map of the Lafayette Consolidated Government (LCG). The Official Zoning Map is maintained as an electronic map layer by the LCG Geographic Information Systems (GIS) application maintained by Development and Planning Department (“DPD”). The official copy of the electronic version of the Official Zoning Map shall be recorded onto permanent media to ensure the electronic information is protected.
- (b) The map, together with all of its notations, references, and other information, is a part of this Chapter and has the same force and effect as if fully set forth or described in the text.

89-8 “A” Agricultural

Purpose: the “A” Agricultural district implements the Rural/ Agriculture future land use category of PlanLafayette by creating a district for land that is principally agricultural or natural in character. The area has low residential densities, and commercial areas are small in scale and either buffered from residential uses or integrated with a conservation design development. This district is applied on a voluntary basis at the request of a property owner, or as part of an area plan. Property owners have the option to build on a lot by lot basis, or to use a conservation subdivision option. Unzoned unincorporated areas that are not subject to the “A” district are subject to the landscaping, buffering and screening standards in Article 3.



- (a) **Permitted Uses.** See § 89-21.

- (b) **Dimensional Standards**

		Option 1	Option 2
	Lot Requirements		
1	Lot size (<i>min</i>)	20 acres	n/a
2	Lot coverage (<i>max</i>)	2%	n/a
3	Lot frontage (<i>min</i>)	100'	50'

Setbacks (principal buildings)			
4	Front / corner street	30'	20'
5	Side	10'	5'
6	Rear	40'	20'

Bulk Plane (⇔ See 89-27)	
7	From RS district boundary

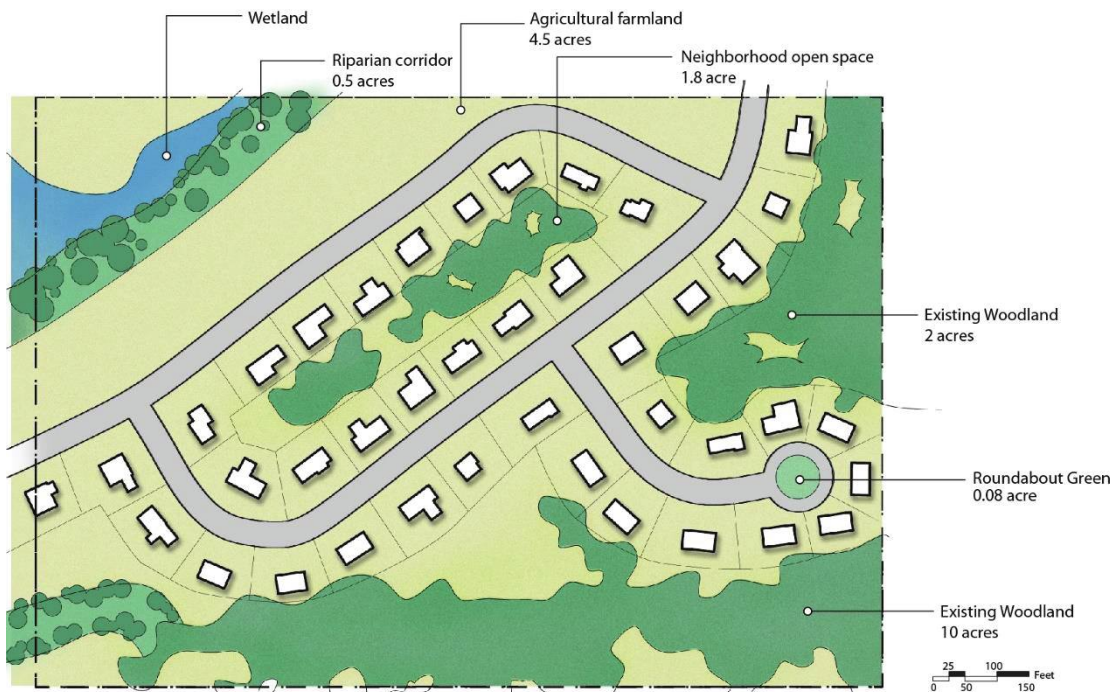
3 stories for the first 200' from the front, side or rear setback line or boundary of a conservation development (see subsection (c)). This requirement does not apply beyond 200' from the setback or development boundary line.

Notes:

- (1) **Option 1** refers to development on an individual lot, except as provided below. **Option 2** refers to conservation design.
- (2) Lot size, coverage and frontage do not apply to Public/Civic/Institutional uses.

(c) Conservation Design

Purpose: a conservation subdivision is a development option that preserves agricultural land, natural resources, and rural character. The standards provide for low development impacts, while providing design flexibility and eliminating standards that would require unnecessary consumption of land. The site characteristics conserve important site features such as open space networks and contiguous woodland habitats adjacent to other existing open space tracts. The site design should encourage connectivity between environmental characteristics of adjacent properties and provide a continuous open space network between the proposed development layout and the adjacent properties. Intermodal trails which provide a link to adjacent properties as an enhancement of recreational opportunities are encouraged. Because the development standards are flexible, development costs per lot are significantly lower than conventional options, and lot yield is typically higher. Conservation street designs are provided in Article 3 of this Chapter.



(1) **Lot Yield.** The number of lots that may be developed under a Conservation Design approach are based on –

- a. A maximum density of **1 dwelling unit per 5 acres**. To maintain design flexibility and to maximize open space and rural character, minimum lot size requirements do not apply, and
- b. The conservation areas provided (see subsection (2), below).

(2) **Conservation Areas**

- a. **Amount.** As a baseline, at least **60%** of the site shall be preserved as conservation areas. This percentage establishes a baseline requirement that is adjusted based on the quality and value of the conservation space, based on conservation units (see below).

1. Determine the number of conservation units within the conservation areas as follows:

Type of Conservation Area <i>(defined in Article 3)</i>	Conservation Units
Woodland	1.15
Floodplain or Wetland (not within a riparian corridor)	1.0
Agriculture land	1.0
Riparian Corridor	1.25
Other	0.9
Areas of up to 5 acres that are not part of contiguous conservation areas	0.65

2. Determine the **conserved portion of the development** as follows:

$$C = S * (0.6 \times U), \text{ where}$$

C = conserved portion of the development

S = site area (prior to subdivision)

U = conservation units

- b. **Excluded Areas.** The following areas do not qualify as conservation units:

1. Stormwater detention areas or artificial water bodies;
2. Septic recovery areas, except as provided in subsection 89-8(c)(2)(d); or
3. Lawns or planted areas located on private lots.

- c. **Agricultural Land.**

1. Farm structures shall be retained whenever possible.
2. The subdivision or development layout shall retain existing farm operations within the conservation area.

- d. **Stormwater Management and Septic Areas.**

1. Septic recovery areas and stormwater management facilities may be counted as part of a conservation area if –

- A. The area is maintained by the homeowners' association; and
- B. The applicant demonstrates, by a report submitted by a registered professional engineer, that:
 - i. there is no adverse impact to the character of that area of land, such as –
 - ii. increased runoff, or
 - iii. impairment of water quality, or
 - iv. a decrease in existing tree cover, and
 - v. the developed area of the site is inadequate to accommodate these facilities.
- 2. Dry ponds with associated steep slopes, dams, mowed areas, fencing or unsightly overflow structures do not count toward the required conservation area.
- 3. Farm ponds, bioretention ponds, naturally contoured ponds and wet ponds with wetland edges and no visible structures may count as part of a conservation area.
- 4. Septic recovery areas may count as part of a conservation area if -
 - A. They are maintained by the homeowners' association, and
 - B. designed so that they are visually integrated with the existing landscape.

Examples:



Bioretention area included in common open space (counts toward conservation area)



Typical dry pond (does not count toward conservation area)

(3) Preservation of Conservation Areas. See § 89-40(e).

(4) Continuity of Conservation Areas.

- a. Fragmentation of the conservation area into small, irregularly shaped conservation parcels and lots is prohibited.
- b. Naturally contiguous conservation areas shall not be divided for the sole purposes of obtaining allowable density.
- c. Conservation areas shall connect with existing and potential conservation areas on abutting sites to encourage corridors of compatible site characteristics, unless it is found to be impractical due to topography, spacing or existing natural barriers.

89-9 “RS” Residential Single-Family

Purpose: the “RS” districts implement the Residential future land use category of PlanLafayette by providing for predominantly detached, single family neighborhoods. The dimensional standards accommodate a variety of densities and lot sizes.



(a) **Permitted Uses.** See §89-21.

(b) **Dimensional Standards**

Lot Requirements		RS-1	RS-2
1	Lot size (<i>min</i>)	6,000 sf	4,000 sf
2	Open space (<i>min</i>)	20%	15%
3	Lot Frontage (<i>min</i>)	30'	n/a
Setbacks (<i>principal buildings</i>)			
4	Front street (<i>min</i>)*	20'	5'
5	Side (<i>min</i>)	5'	3'
6	Rear (<i>min, common lot line</i>)	10'	10'
7	Rear-alley (<i>min</i>)	3'	3'
Bulk Plane (↔ See 89-27)			
8	From RS district boundary or another RS zoned lot or parcel	3 stories for the first 50' from the front, side or rear lot line, then 1 additional story for each additional 50 feet from the setback line. This requirement does not apply beyond 200' from any lot line.	

↔ Refer to Article 3 for rules and measurement of building height, lots, and setbacks.

* For corner lots, see §89-38(c)(6)(g)

- (1) Required front, side, and rear setbacks must be planted in grass or other planting except for required ingress and egress.
- (2) For buildings adjacent to substandard streets, an additional setback may apply (see Article 3, § 89-38).
- (3) Non-residential uses in the RS district are subject to the same standards as residential uses, except as provided in Article 5.
- (4) For any subdivision of 3 or more lots zoned RS-2 with lot widths less than 40 feet, an alley will be required and access must be provided by that alley. Lot widths greater than or equal to 40 feet can be serviced by alleys and/or driveways. Notwithstanding the foregoing, in the discretion of the Administrator, the use of driveways is permissible as an alternate to the alley requirement where feasible and aesthetically appropriate.
- (5) For wedge-shaped lots or lots fronting on a cul-de-sac, the minimum lot frontage in RS-1 shall be 25'.

89-10 “RM” Residential Mixed

Purpose: the “RM” districts implement the Mixed Residential and Residential future land use categories of PlanLafayette by providing for a wide range of housing types, from single-family detached units to apartments. The dimensional standards accommodate a variety of densities and lot sizes.



(a) **Permitted Uses.** See §89-21.

(b) Dimensional Standards

Lot Requirements		RM-1	RM-2
1	Lot size (<i>min</i>)	n/a	n/a
2	Open space (<i>min</i>)	20%	15%
Setbacks (<i>principal buildings</i>)			
3	Front / corner street (<i>min</i>)	5'	5'
4	Side (<i>min</i>)	n/a	n/a
5	Rear (<i>min-common lot line</i>)	10'	10'
6	Rear-alley (<i>min</i>)	3'	3'
Bulk Plane (↔ See 89-27)			
7	From RS district boundary	3 stories for the first 50' from the front, side or rear lot line, then 1 additional story for each additional 50 feet from the setback line. This requirement does not apply beyond 200' from any lot line bordering the RS district.	

(1) Maximum Density for attached or zero lot line (dwelling units per gross acre) is as follows:

District	Density (max)
RM-1	25
RM-2	42

- (2) Notwithstanding that there is no minimum lot size in the RM zoning district, a detached Single-Family Residence in the RM-1 zoning district shall be subject to a minimum lot size of 4,500 square feet, and a detached Single-Family Residence in the RM-2 zoning district shall be subject to the same minimum lot size and alley requirements as the RS-2 zoning district.
- (3) Building entrances shall face the street or an interior courtyard, except for interior units that are screened from the street by street facing buildings. The rear of buildings shall not face the street.

89-11 “MN” Mixed-Use Neighborhood

Purpose: the “MN” district –

- *implements the Transitional Mixed-Use future land use category of PlanLafayette,*
- *provides an opportunity to establish neighborhood retail, convenience, service, office, and institutional uses in the Residential and Mixed Residential categories,*
- *provides a transition between residential areas and more intense commercial corridors, and*
- *provides opportunities for pedestrian access between residential and commercial areas.*

Each district has type “A” (urban) and type “B” (suburban) development types, as described and permitted in § 89-6.



(a) Permitted Uses. See § 89-21.

(b) Dimensional Standards.

		MN-1		MN-2		MN-3	
Development Type		A	B	A	B	A	B
Lot Requirements							
1	Lot size (<i>min</i>)	n/a	n/a	n/a	n/a	n/a	n/a
2	Density (<i>max</i>)	17	17	n/a	25	n/a	30
<i>* applies to mixed-use or residential uses only</i>							
3	Open space (<i>min</i>)	n/a	15%	n/a	10%	n/a	15%
Setbacks (<i>principal buildings</i>)							
4	Front / corner street (<i>min</i>)	n/a	n/a	n/a	n/a	n/a	n/a
5	Front / corner street (<i>max</i>)	20'	n/a	20'	n/a	15'	65'
6	Frontage buildout (<i>min</i>)	65%	n/a	75%	n/a	90%	65%
7	Side (<i>min</i>)	n/a	n/a	n/a	n/a	n/a	n/a
8	Rear-common property line or alley (<i>min</i>)	5'	5'	5'	5'	5'	5'
Height (↔ See 89-27)							
9	Bulk Plane (<i>from RS boundary</i>)*	n/a	2	n/a	3	n/a	3
10	Building Height (<i>max stories</i>)	3**	n/a**	4	n/a	5	n/a

*The Bulk Plane number above indicates the maximum stories for the first 50' from the front, side or rear lot line, then 1 additional story for each additional 50 feet from the setback line. This requirement does not apply beyond 200' from any lot line bordering the RS district.

**The max Building Height in MN-1 A or B for Apartment Hotels and Multi-family housing types on a lot that abuts an RS zoning district shall be 2 stories.

- (c) Whenever a setback greater than the maximum setback established by this Section is required under § 89-38(e), the setback requirements of § 89-38(e) shall supersede the maximum setback established in this Section. In that case, the setback required under § 89-38(e) shall be the maximum setback.
- (d) In the MN district, no sound shall be amplified outside of the confines of a building.
- (e) Drive-in and drive-through establishments are subject to Article 5, § 89-80.
- (f) For frontages on Minor Arterials, Collectors, or local streets: if the width of the front lot line is one hundred (100') feet or less, the buildout requirement is reduced by ten (10%) percentage points.
- (g) For frontages on Major Arterials: the frontage buildout requirement is reduced to 40% for corner lots.
- (h) For a single-family detached dwelling, the minimum setbacks shall be subject to the same minimum setbacks as the “RM” Residential-Mixed zoning district.
- (i) Corner lot developments will use highest classified road, as determined by LCG, when determining frontage buildout and setback requirements.
- (j) A detached Single-Family Residence in the MN zoning district shall be subject to a minimum lot size of 3,000 square feet.

89-12 “MX” Mixed-Use Center

Purpose: the “MX” districts implement the Mixed-Use Center future land use category of PlanLafayette for centers outside of Downtown. This includes a wide range of commercial, institutional and residential uses, and development design and intensity that supports walkable streets and transit. MX districts are part of approved mixed-use centers (MUCs) (see § 89-28). The MX district is divided into subdistricts based upon the development context, and the location of a lot on an “A” or “B” Street.

- ⇔ See Article 3, § 89-28 (Mixed-Use Center Design Standards) for processes and standards for designating mixed-use centers and master plan elements such as MX subdistricts and “A” and “B” streets.
- ⇔ See Article 3, § 89-29 (Mixed-Use Building Standards) for building design standards that are referenced in this section. These include minimum buildout, entryways, façade design, and architectural features.

(a) **Permitted Uses.** See § 89-21.

(b) Dimensional Standards

- (1) **Generally.** This section establishes dimensional standards for each MX district. These standards are keyed to the standards defined in § 89 – 28 Article 3, § 89-29. For development that is subject to a Master Site Plan and a development agreement, the LCG may designate the applicable dimensional standards in the development agreement.
- (2) **MX-1.** MX-1 provides a high level of density, intensity and design to reflect the more urban character of Mixed-Use Centers in the LCG’s established neighborhoods.

Setbacks (principal buildings)		
1	Front / corner street (min)	n/a
2	Front / corner street (max)	15’
3	Frontage buildout (min)	90%
4	Side (min)	n/a
5	Rear-alley or common lot line (min)	n/a
Bulk Plane (⇔ See 89-27)		
6	From RS district boundary	3 stories for the first 12’ from the front or rear setback line, then 1 additional story for each additional 12 feet from the setback line. This requirement does not apply beyond 60’ from the setback line.

- (3) **MX-2.** MX-2 provides an opportunity for mixed-use development in the edges of the City, or for projects that annex to the City, at a lower scale and intensity than MX-1.

Setbacks (principal buildings)		
1	Front / corner street (min)	n/a
2	Front / corner street (max)	25’
3	Frontage buildout (min)	70%
4	Side (min)	n/a
5	Rear-alley or common lot line (min)	n/a

Bulk Plane (↔ *See 89-27*)

- | | | |
|---|---------------------------|--|
| 6 | From RS district boundary | 3 stories for the first 20' from the front or rear setback line, then 1 additional story for each additional 20 feet from the setback line. This requirement does not apply beyond 100' from the setback line. |
|---|---------------------------|--|

89-20 Annexed Territory

(a) Generally

- (1) All territory that is annexed to the City of Lafayette is automatically assigned the “A” Agricultural classification until existing land uses are determined and a new zoning category is adopted.
- (2) In lieu of the “A” district, the applicant for annexation may provide an application for rezoning concurrent with any petition for annexation. If the proper notice is given, the zoning classification may be approved concurrent with final approval of the annexation, or after the annexation is complete.
- (3) **Time limitations.** Unless another district is applied at the time of annexation, the “A” district zoning classification will apply to that property until:
 - a. The LCG initiates and approves a rezoning to another zoning district as provided in Article 4.
 - b. The owner or owners of property automatically zoned “A” may file an application to rezone the property as provided in Article 4. The appropriate Zoning Commission will then proceed through normal zoning reclassification procedures.
 - c. Property automatically zoned “A” is considered on a priority basis and shall be scheduled at the earliest possible scheduled regular meeting of the appropriate Zoning Commission.

89-21 Use Table

- (a) This section establishes the uses that are permitted in each zoning district. Each use is defined in subsection (d), below.
- (b) The Use Table (Table 89-21-2) establishes the following categories of uses:

Table 89-21-1 Use Categories

Notation	Category	Description
P	By right	The use is permitted if it meets the standards established in the zoning district, and any other applicable standards of this Chapter.
C	Conditional Use	The use requires a conditional use permit approved by the appropriate Zoning Commissions (see § 89-54).
A	Accessory Use	A use customarily incidental and subordinate to the principal use or building and located on the same lot with the principal use or building.
	Not permitted	A blank cell indicates that the use is not allowed in the district. A property owner who wants to establish the use may apply for a rezoning to a district that does allow the use.

- (c) If a use is not defined in this Section, the Administrator may authorize the use if –
 - (1) The use is functionally the same as a listed use, or

- (2) The use has similar visual, traffic, environmental and similar impacts as an expressly listed use. The Administrator may refer to empirical studies or generally accepted planning or engineering sources in making this determination. The burden is on the applicant to establish that the use is similar to the expressly listed use, or
- (3) Other comparably sized jurisdictions have successfully integrated the use in one or more equivalent zoning districts.
- (4) The use is within the same industry classification as another permitted use. In making this determination, the Administrator may refer to the most recent edition of the *North American Industry Classification Manual* (Executive Office of the President, Office of Management and Budget, (“NAICS”). If the use is not defined in the NAICS, the Administrator may refer to the most recent addition of the American Planning Association, *Land-Based Classification Standards LBCS Tables*, or any other recognized and accepted publication in the industry.

Table 89-21-2 Use Table

Use Category	“A” Agricultural	“RS” Residential Single-Family	“RM” Residential Mixed	“MN” Mixed-Use Neighborhood	“MX” Mixed-Use Center	“D” Downtown	“CM” Commercial Mixed	“CH” Commercial Heavy	“PI-L” Public/Institutional-Light	“PI-H” Public/Institutional-Heavy	“IL” Industrial Light	“IH” Industrial Heavy
Residential												
Residences:												
Dwelling, single-family detached	P	P	P	P								
Accessory apartment	P	P	P	P	P	P	C					
Cottage Courts		C	P	P		C	P					
Dwelling, two-family (duplex)		C	P	P			P					
Multi-family			P	P	P	P	P	P				
Live/Work Dwelling			P	P	P	P	P					
Manufactured home												
Manufactured Housing Land Lease Community	P	C	C									
Apartment House			P	P	P	P	P					
Apartment Hotel				P	P	P	P	P				
Townhouse / Row house		C	P	P	P	P	P					
Group Living:												
Boarding House			P	P	P	P						
Community living			P	P	P	P	P	P				
Community home	P	P	P	P	P	P	P				P	
Life care or continuing care services				P	P	P	P	P				
Lodging												
Bed and breakfast		C	C	C	C	C	C					
Hotel (small)				P	P	P	P	P			P	P

Table 89-21-2 Use Table

Use Category	"A" Agricultural	"RS" Residential Single-Family	"RM" Residential Mixed	"MN" Mixed-Use Neighborhood	"MX" Mixed-Use Center	"D" Downtown	"CM" Commercial Mixed	"CH" Commercial Heavy	"PL-L" Public/Institutional-Light	"PL-H" Public/Institutional-Heavy	"IL" Industrial Light	"IH" Industrial Heavy
Hotel / Motel					P	P	P	P			P	P
Recreational vehicle park	C											
Commercial / Mixed-Use												
Animal Services:												
Animal hospital (indoor)				P	P	P	P	P			P	P
Animal services, generally						P	P	P			P	
Financial Services:												
Automated teller machine, stand alone					P	P	P	P	P	P	P	P
Financial institutions				P	P	P	P	P	A	A	P	P
Food & Beverage Sales / Service:												
Bar / Lounge				C	P	C	C	P	C	C	P	
Food/Art market				P	P	P	P	P	A	A		
Food preparation				P	P	P	P	P	A	A		
Food service				C	P	P	P	P	A	A		
Mobile Food Establishment	A	A	A	A	A	A	A	A	A	A	A	A
Mobile vendor				P	P	P	P	P	A	A	P	
Restaurant				C	P	P	P	P	A	A	P	
Snack or beverage bars				P	P	P	P	P	A	A	P	
Mixed-Use:												
Mixed-use building				P	P	P	P	P	A	P		
Office, Business & Professional:												
Office				P	P	P	P	P	P	A	P	
Personal / Business services:												
Bail bond services						P	P	P			P	
Business support services					P	P	P	P	A	A	P	
Courier, messenger and delivery services					P	P		P	A	A	P	P
Day Labor Service						P		P			P	P
Funeral & interment services						P	P	P			P	
Crematorium								P			P	P
Linen/Uniform Supply						P	P	P	A	A	P	P
Maintenance & repair services						P	P	P			P	P
Personal services				P	P	P	P	P	A	A		
Pick-up station (laundry and/or dry cleaning)				P	P	P	P	P				
Retail sales:												
Convenience store				P	P	P	P	P	C	C	P	

Table 89-21-2 Use Table

Use Category	"A" Agricultural	"RS" Residential Single-Family	"RM" Residential Mixed	"MN" Mixed-Use Neighborhood	"MX" Mixed-Use Center	"D" Downtown	"CM" Commercial Mixed	"CH" Commercial Heavy	"PI-L" Public/Institutional-Light	"PI-H" Public/Institutional-Heavy	"IL" Industrial Light	"IH" Industrial Heavy
Convenience store (with gasoline sales)						P	P	P			P	
Nonstore retailers					P	P	P	P			P	
Nursery/Horticulture/Farm Supply		C				P	P	P			P	
Retail, limited (A)				P	P	P	P	P	A	A	P	
Retail, limited (B)					P	P	P	P	A	A	P	
Retail, general					P	P		P	A	A	P	
Vehicles / Equipment:												
Auto and truck repair								P			P	P
Automobile or vehicle dealership					P	P		P			P	P
Building material sales & services							C	P			P	
Car Wash								P			P	P
Commercial and Industrial Machinery and Equipment Rental and Leasing								P			P	P
Gasoline or diesel fuel sales							P	P			P	P
Manufactured Home Dealers								P			P	P
Truck stop											P	P
Public/Civic/Institutional												
Day Care:												
Adult day care				C	P	P	P	P				
Child care facility, commercial			C	P	P	P	P	P	A	A	P	
Child care facility, residential	P	P	P	P	P	P	P					
Assembly:												
Cemetery/mausoleum/columbarium	P		P	P		P	P	P	P	P	P	P
Church or worship center	P	P	P	P	P	P	P	P	P	P		
Exhibition, convention, or conference facility					P	P	P	P		P	P	
Banquet, reception, or event hall					P	P	P	P	P	P	P	
Club or lodge (private)			C	P	P	P	P	P	P	P		
Government / Non-Profit:												
Armory										P	P	P
Detention or penal institution						P				P	P	P
Vehicle / equipment maintenance facility									A	P	P	P
Public Safety Facility	P	P	P	P	P	P	P	P	P	P	P	P
Social assistance, welfare, and charitable services					P	P	P	P	P	P	P	
Postal services				P	P	P	P	P	P	P	P	P

Table 89-21-2 Use Table

Use Category	"A" Agricultural	"RS" Residential Single-Family	"RM" Residential Mixed	"MN" Mixed-Use Neighborhood	"MX" Mixed-Use Center	"D" Downtown	"CM" Commercial Mixed	"CH" Commercial Heavy	"PL-L" Public/Institutional-Light	"PL-H" Public/Institutional-Heavy	"IL" Industrial Light	"IH" Industrial Heavy
Educational:												
College / technical school					P	P	P	P	C	P	P	
School (public or private)	P	P	P	P	P	P	P	P	P	P	P	P
Personal instructional services				P	P	P	P	P	A	P	P	
Medical:												
Hospital or sanitarium					P	P	P	P		P	P	
Medical office, clinic, or laboratory				P	P	P	P	P	A	A	P	P
Arts, Entertainment, & Recreation:												
Adult business								P			P	P
Civic Spaces		P	P	P	P	P	P	P	P	P	P	P
Cultural facility				P	P	P	P	P	P	P		
Entertainment facility				C	P	C	C	P	P	P		
Theater				C	P	P	P	P	P	P		
Health/fitness club				P	P	P	P	P	P	P	P	
Recreational Facility, Indoor				P	P	P	P	P	P	P		
Recreational Facility, Outdoor or Major	C					P		P	P	P		
Industrial / Production												
Manufacturing & Employment:												
Contractor	C										P	P
Data Processing, Hosting, and Related Services (including data centers)				P	P	P	P	P	A	P	P	P
Dirt pit, sand pit or similar excavation	C											
Industrial Services											P	P
Media Production						P	P	P	A	P	P	P
Mining & quarrying												
Manufacturing, Light					P	P	P	P			P	P
Manufacturing, General						C		C			P	P
Manufacturing, Intensive											P	P
Oil and gas company (drilling and exploration)											P	P
Research and development					P	P				P	P	P
Oil and mining support activities											P	P
Stone cutting											P	P

Table 89-21-2 Use Table

Use Category	"A" Agricultural	"RS" Residential Single-Family	"RM" Residential Mixed	"MN" Mixed-Use Neighborhood	"MX" Mixed-Use Center	"D" Downtown	"CM" Commercial Mixed	"CH" Commercial Heavy	"PI-L" Public/Institutional-Light	"PI-H" Public/Institutional-Heavy	"IL" Industrial Light	"IH" Industrial Heavy
Warehousing, Storage & Distribution:												
Building and landscaping materials supplier								P			P	P
Building maintenance services						P		P			P	P
Freight depot (railway and truck)											P	P
Fuel Distribution or Recycling												P
Machinery and heavy equipment sales and service								P			P	P
Self-service storage facility				C		P	C	P			P	P
Oil & gas storage											P	P
Outdoor storage								P			P	P
Vehicle towing and storage facility												
Wholesale distribution, warehousing and storage						P		P			P	P
Infrastructure												
Transportation / Parking:												
Airport											P	P
Ground passenger transportation (e.g. taxi, charter bus)						P		P		P	P	P
Heliport / miscellaneous air transportation				A	A	A	A	A		A	A	A
Parking facility						P	P	P	A	P	P	P
Railroad facilities											P	P
Railroad right-of-way	P	P	P	P	P	P	P	P	P	P	P	P
Passenger depot						P					P	P
Transit shelter		P	P	P	P	P	P	P	P	P	P	P
Utilities:												
Utility, Major	P	P	P	P			P	P			P	P
Utility, Minor	P	P	P	P		P	P	P			P	P
Communications facilities:												
Communications facility	P				P	P	P	P	A	P	P	P
Wireless communication tower or antenna	P				C	P	C	P	A	P	P	P
Weather or environmental monitoring station	P				P	P	P	P	A	P	P	P
Waste-related:												
Hazardous waste disposal												
Hazardous waste transfer												

Table 89-21-2 Use Table

Use Category	"A" Agricultural	"RS" Residential Single-Family	"RM" Residential Mixed	"MN" Mixed-Use Neighborhood	"MX" Mixed-Use Center	"D" Downtown	"CM" Commercial Mixed	"CH" Commercial Heavy	"PI-L" Public/Institutional-Light	"PI-H" Public/Institutional-Heavy	"IL" Industrial Light	"IH" Industrial Heavy
Junk yards												
Recycling plant												P
Remediation Services												P
Solid waste												
Agriculture												
Farming	P	P	P	P	P	P	P	P	P	P	P	P
Poultry and egg production	P										P	P
Community garden	P	P	P	P	P	P	P	P	P	P	P	P
Crop Agriculture	P	P	P	P	P	P	P	P	P	P	P	P
Community Supported Agriculture	P	P	P	P	P	P	P	P	P	P	P	P
Accessory												
Accessory use (generally)	A	A	A	A	A	A	A	A	A	A	A	A
Accessory commercial uses			C									
Accessory farm use	A	A	A	A	A	A	A	A	A	A	A	A
Accessory schools	A	A	A	A	A	A	A	A	A	A	A	A
Accessory retail and personal service, office, or recreational use	A	A	A	A	A	A	A	A	A	A	A	A
Caretaker or guard	A	A	A	A	A	A	A	A	A	A	A	A
Construction yard								A	A	A	A	A
Home occupation	A	A	A	A	A	A	A	A				
Model home complex / temporary real estate sales office	A	A	A	A	A	A	A	A				
Parking garage, private					A	A	A	A		A	A	A
Pharmacy, accessory			C	A	A	A	A	A		A	A	
Recreational facility, accessory		A	A	A	A	A	A	A	A	A	A	A
Sign	A	A	A	A	A	A	A	A	A	A	A	A
Storage	A		A	A	A	A	A	A	A	A	A	A
Electric Charging Stations				A	A	A	A	A	A	A	A	A
Miscellaneous												
Temporary Uses	A	A	A	A	A	A	A	A	A	A	A	A

(d) The uses listed in the Use Table (Table 89-21) above are defined as follows:

Residential	
Residences	
Dwelling, single-family detached	A detached building designed as a residence for one family.
Accessory apartment	A secondary, independent living facility located in, or on the same lot as, a single-family residence. An accessory apartment may be rented to a household separate from that occupying the principal building on the lot.
Cottage Courts	A single lot that includes detached single family dwellings or duplexes arranged around a courtyard or open space.
Dwelling, two-family (duplex)	A single building designed as a residence for two families living separately on one lot. The units may be integrated horizontally, vertically (with one above the other), or back to back. No more than one duplex shall be allowed on a single lot.
Multi-family	A building designed as a residence for more than two families living separately, sometimes called apartments or flats. It includes any form of family occupancy, including traditional or non-traditional households, elderly housing, or retirement housing. The units may be integrated horizontally and vertically, or with 2 units stacked vertically and separated from adjacent units by a party wall (sometimes called "stacked flats"). Two or more duplexes on a single lot shall be considered Multi-family.
Live/Work Dwelling	A principally residential building that includes an office, studio, or other commercial use and a single dwelling unit occupied by the building owner. Compare: (1) Home Occupations (listed under "Accessory," below). A live-work unit allows a broader range of commercial and production-type uses and more non-residential floor area than a home occupation. In addition, a live-work unit may be designed as a townhouse or with a storefront or other commercial design configuration at the ground level, while a home occupation occurs in a building that is designed as a residence. (2) Mixed-use Building (listed under Commercial / Mixed-use – Mixed-use, below). A Mixed-use Building allows multiple businesses and residences in the same building, while a Live/Work Dwelling is generally limited to a single dwelling unit and a single business.
Manufactured home	A factory-built dwelling unit constructed to the standards and codes promulgated by the United States Department of Housing and Urban Development (HUD), under the National Manufactured Housing Construction and Safety Standards Act of 1974, 42 U.S.C. §5401 et seq., as amended ((See LRSA 51:911.22).
Manufactured Housing Land Lease Community	A parcel or tract of land where the principal use is the rental, leasing or occupancy of space by two or more manufactured homes on a permanent or semi-permanent basis, and customary accessory buildings or uses such as clubhouses, laundries, or management and sales units.
Apartment House	A building that - (1) is a converted single-family detached dwelling, or with architectural features and massing that are compatible with single-family dwellings, and (2) that consists of at least 3 separate dwelling units. This use type is different from a boarding house in that the units are intended for occupancy as permanent residences, and each unit may have separate kitchens and bathroom facilities. This use type is sometimes called a "big house."
Apartment Hotel	A hotel in which at least 90 percent of the hotel accommodations are available for occupancy by permanent guests.
Townhouse / Row house	A single-family dwelling forming one of a group or series of two or more attached single-family dwellings, separated from one another by a property line, party walls without doors, windows, or other provisions for human passage or visibility through the walls from basement or cellar to roof, and having roofs which may extend from one of the dwelling units to another.
Group Living:	
Boarding House	A building other than a hotel where meals or lodging, or both, are provided for compensation by pre-arrangement for a definite period. Examples include dormitories, fraternities, sororities, or dorms. This use type does not include a hotel, motel, or multi-family building. A multifamily building or apartment house includes separate dwelling units occupied by a single household, while a boarding house includes separate households sharing kitchen facilities.
Community living	Establishments primarily engaged in providing one or more of the following housing services: (1) short term emergency shelter for victims of domestic violence, sexual assault, or child abuse; (2) temporary residential shelter for the homeless, runaway youths, and patients and families caught in medical crises; or (3) transitional housing for low-income individuals and families. <i>Note: while the industry (NAICS) category includes construction of low cost housing and housing repair activities, those features are not regulated by zoning, and the housing types would fall within another listed category.</i>
Community home	A facility certified, licensed, or monitored by the Department of Health and Hospitals to provide resident services and supervision to six or fewer handicapped persons. Such facility shall provide supervisory personnel in order to function as a single family unit but not to exceed two live-in persons. (Source: LRSA § 28:477) This use does not include persons handicapped by reason of current drug abuse or alcohol abuse, nor shall it apply to handicapped persons currently under sentence or on parole from any criminal violation or who have been found not guilty of a criminal charge by reason of insanity.
Life care or continuing care services	An institution, residence or facility that provides accommodation and personal assistance to residents who depend on the services of others by reason of age and physical or mental impairment, and that is licensed to provide skilled nursing care. This category includes nursing or convalescent homes, hospices, or assisted living facilities. A "nursing or convalescent home" is any part of a building where shelter, board, and nursing care for 3 or more persons of all ages not related to the operator, requiring that care because of infirmities of old age, illness, and/or disability of a physical or mental nature. "Assisted living" is a residence that primarily serves the elderly and provides rooms and meals, and may provide personal care and supervision of self-administered medication. They may provide other services, such as recreational activities, financial services and transportation. This use does not include an establishment which provides care only during the day, or a halfway house for recovering alcohol and drug abusers.

Live/Work Dwelling	A principally residential building that includes an office, studio, or other commercial use and a single dwelling unit occupied by the building owner. Compare: (1) Home Occupations (listed under "Accessory," below). A live-work unit allows a broader range of commercial and production-type uses and more non-residential floor area than a home occupation. In addition, a live-work unit may be designed as a townhouse or with a storefront or other commercial design configuration at the ground level, while a home occupation occurs in a building that is designed as a residence. (2) Mixed-use Building (listed under Commercial / Mixed-Use – Mixed-Use, below). A Mixed-use Building allows multiple buildings and residences in the same building, while a Live/Work Dwelling is generally limited to a single dwelling unit and a single business.
Lodging	
Bed and breakfast	An owner- or operator-occupied house, or part of a house, that offers no more than 9 guest bedrooms for overnight paid occupancy of up to 30 consecutive nights, and where breakfast is provided to guests.
Hotel (small)	A Hotel that does not contain more than 50 guest rooms and does not exceed three stories in height.
Hotel / Motel	A building containing rooms intended or designed to be used or which are used, rented, or hired out to be occupied, or which are occupied for sleeping purposes by guests and transients and where only a general kitchen and dining room are provided within the building or in an accessory building.
Recreational vehicle park	Any area that is occupied or intended or designed or improved for occupancy by transients using recreational vehicles, motor homes, or mobile trailers for dwelling, lodging, or sleeping purposes and is held out as such to the public. Examples include campgrounds and recreational vehicle/travel trailer parks. This use does not include a Manufactured Housing Land Lease Community.
Commercial / Mixed-Use	
Animal Services:	
Animal hospital (indoor)	Any part of a building designed or used to care for or observe animals under medical treatment, supervised by a licensed veterinarian. The treatment of animals occurs entirely inside the principal building and not in ancillary or accessory buildings. This use does not include outside kennels.
Animal services, generally	Any part of a building designed or used to care for, board, groom, observe, or treat animals, supervised by a licensed veterinarian. This use may include overnight boarding or outdoor confinement or exercise areas. Includes a dog pound.
Financial Services:	
Automated teller machine, stand alone	An automated teller machine that is at a location separate from the controlling financial institution.
Financial institutions	A business where the primary occupation is financial services such as banking, savings and loans, loan offices, and check cashing and currency exchange outlets. It does not include financial services that typically occur in an office or storefront, such as investment companies, loan companies, credit and mortgage, insurance services, or brokerage firms), which are classified under "Office," below.
Pawn shop	A business that loans money on the security of pledges, deposits or other secured transactions in personal property (other than vehicles or other transportation devices).
Food & Beverage Sales / Service:	
Bar / Lounge	An establishment where the main source of revenue is the sale of alcoholic beverages which are customarily consumed on the premises. This includes taverns, brewpubs, microbreweries, hookah lounges, neighborhood taverns/bars/pubs, or micro distilleries where food and drink are served on the premises.
Food/Art market	A structure or place where agricultural produce, art or hand-made craft is brought for the purpose of retail sales from vehicles, temporary stands, or stalls. These include more than one seller per parcel of land. Examples include farmers markets, seafood markets, mobile markets, art markets, maker markets, and craft fairs.
Food preparation	A business that prepares food and beverages for off-site consumption, including delivery services. Examples include catering shops, bakeries with on-site retail sales, and the small-scale production of specialty foods (such as sweets). This classification excludes food production of an industrial character.
Food service	An establishment for retail sales of food and beverages for off-site preparation and consumption. Examples include grocers/supermarkets, specialty food stores, fruit and/or vegetable stands, butcher shops, delicatessens, dairy product sales, food cooperatives, or convenience markets. This category also includes large-scale stores that sell food items and beverages in bulk.
Mobile Food Establishment	A vehicle-mounted Food Establishment (as defined by LCG Code of Ordinances, Chapter 70, Section 70-86) designed to be readily movable which includes a motorized or towed self-contained food service operation truck or towed self-contained trailer unit designed to be readily movable. A Mobile Food Establishment shall not mean a stand, booth or cart.
Mobile vendor	Any person, including any employee or agent of another, who sells or offers to sell, barter or trade from a vending vehicle, trailer or cart. Mobile vendors do not include Mobile Food Establishments
Restaurant	A structure where food and drink are prepared, served, and consumed. Examples include microbreweries, micro distilleries, sit-down restaurants, cafes, delis, ice cream parlors, specialty food and/or outside dining patios and sitting areas. May include take-out, drive-in, sit-down service, or the sale and consumption of alcohol. The zoning district regulations indicate whether a drive-thru facility for food service is allowed.
Snack or beverage bars	Establishments primarily engaged in (1) preparing and/or serving a specialty snack, such as ice cream, coffee and/or pastries, frozen yogurt, cookies, or popcorn, or (2) serving nonalcoholic beverages, such as coffee, juices, or sodas for consumption on or near the premises.

Mixed-Use:

Mixed-use building	A building with any of the following floor space configurations: (1) an office, as defined below, located above the ground floor, where the ground floor is occupied by any use permitted by right in the applicable zoning district, or any use permitted as a conditional use in the applicable zoning district, provided that, with respect to such conditional use, a conditional use permit has been issued by the appropriate agency; or (2) any use permitted by right in the applicable zoning district, or any use permitted as a conditional use in the applicable zoning district, provided that, with respect to such conditional use, a conditional use permit has been issued by the appropriate agency, and residential dwelling units above the ground floor or behind the non-residential floor area. The floor space above the ground floor may be occupied by non-residential floor area in addition to residential dwelling units.
Office, Business & Professional:	
Office	A building principally occupied by professional, semi-professional, business, government/municipal, philanthropic institutions, or client-oriented services. Offices do not include retail or wholesale activities which require the receiving, stocking, storing, displaying, manufacturing, selling, or renting of merchandise or equipment, except where specifically permitted as an accessory use. Offices include the administrative, clerical or public contact offices of a government agency. All services are rendered within the principal building, and no outside areas are used to perform services. Examples of businesses include law firms, publishers, business services, sales, marketing, interior decorators, and studios for professional work or teaching.
Personal / Business services:	
Bail bond services	An office that engages in the sale or issuance of bail bonds or other financial transfers for the purpose of securing the release from jail of an accused defendant pending trial.
Business support services	Includes blueprinting, printing, graphics, photostating, copying, packaging, labelling, and similar services. "Printing" and "graphics" mean business engaged in the custom design and/or reproduction of written or graphic materials. Typical processes include computerized design and printing, photocopying, and facsimile sending and receiving.
Courier, messenger and delivery services	Establishments primarily engaged in providing air, surface, or combined mode courier services, express delivery services of parcels, or local messenger and delivery services of small items, with local pick-up and delivery. Examples include air courier services, express delivery services; local delivery services for letters, documents, or small parcels; grocery delivery services (i.e., independent service from grocery store), or restaurant meals delivery services.
Day Labor Service	Any building or premises that serves as a staging point or gathering place for persons who are seeking immediate employment in daily labor activities and who accept or are assigned employment in accordance with whatever employment is available on that particular day. For purposes of this definition, "day labor" means manual labor, such as construction cleanup, garbage pickup and removal, demolition, convention setup and takedown, landscaping, planting, and digging.
Funeral services	Any place or premises devoted to or used in the care and preparation for burial of the body of a deceased person or maintained or held out to the public by advertising or otherwise as the office or place for the practice of funeral directing (source: RS 37:831). For example funeral homes.. (Note: cemeteries are classified under Public/Civic/Institutional - Assembly, below).
Crematorium	The building or portion of a building that houses the chamber for cremation and the holding facility.
Linen/Uniform Supply	Establishments that supply laundered items, such as table and bed linens; towels; diapers; and uniforms, gowns, or coats of the type used by doctors, nurses, barbers, beauticians, and waitresses.
Maintenance & repair services	An establishment providing repair services for personal and household goods, such as household appliances, computers, radio, television, audio or video equipment, office machines, furniture and leather goods, and metal sharpening. This classification excludes building maintenance services and maintenance and repair of automobiles and other vehicles and equipment.
Personal services	A business which provides a service to the general public. This includes, but is not limited to, barber shops, beauty shops/salons, laundries (including self-service), dry cleaners, tailors, seamstresses or dressmakers, taxidermist, pet groomers, photographers, wedding planning, wedding chapels, dating services, nail salons, massage establishments, tattoo parlors, and shoe shining or repair. This does not include social escort, bail bond, or other services listed separately.
Pick-up station (laundry and/or dry cleaning)	Establishments that accept from the public clothes or other materials to be laundered or dry-cleaned, and for which a charge is made. The laundering or dry-cleaning work is done by a laundry or dry cleaning establishment that is not on the premises of the pickup station.
Retail sales:	
Convenience store	Establishments that retail a limited line of goods that generally includes milk, bread, soda, alcohol and package liquor, and snacks, but not fuel sales for vehicles.
Convenience store (with gasoline sales)	Establishments that retail a limited line of goods that generally includes milk, bread, soda, alcohol and package liquor, snacks, and fuel sales for vehicles.
Nonstore retailers	Establishments that retail merchandise through online, mass media, telephone, mail, or similar methods (infomercials, direct-response advertising, paper and electronic catalogs, door-to-door solicitation, in-home demonstration, selling from portable stalls, vending machines, and similar methods). Examples include mail-order houses, vending machine operators, home delivery sales, door-to-door sales, party plan sales, electronic shopping, and sales through portable stalls (e.g., street vendors).
Nursery/Horticulture/ Farm Supply	A place for the propagation or sale of small trees, shrubs, garden supplies, and plants. This classification includes the sale of seed and feed, landscape materials, soils, and rental of landscaping equipment.

Retail, limited (A)	An establishment engaged in the sale and/or rental of goods such as apparel and accessories/uniforms, bicycles, cameras and photographic supplies, candy and confections, electronics, entertainment media (such as videos, compact discs, DVDs, or computer games), floral goods, gifts and novelties, hardware, health and personal care (such as pharmacies, cosmetics and optical or surgical supplies), hobby, home décor, jewelry, luggage and leather goods, music, news, media (newsstands), office supplies, pets, picture frames, shoes, sporting goods, stationary, tobacco, toys, used merchandise/antiques, arts and crafts, or similar items. This includes artist studios/galleries that both create and sell visual artwork. Each Retail, Limited (A) use on a Lot shall be limited to six thousand (6,000) gross square feet per lot.
Retail, limited (B)	An establishment engaged in the sale and/or rental of all goods permitted in Retail, limited (A) with not limitation on gross square feet per lot, and, additionally, the sale and/or rental of goods such as beer or liquor (package), firearms, and furniture.
Retail, general	An establishment engaged in sale and/or rental of all goods, permitted in Retail, limited (B), and, additionally, appliances, auto parts/tires, general merchandise, heating and plumbing equipment, and pawn shops. This use classification shall also include the sale and/or rental of goods at establishments such as department stores, warehouse clubs, variety stores (see §89-151), superstores, swap meets and flea markets, auctions, and consumer goods rental/general rental centers.
Vehicles / Equipment:	
Auto and truck repair	An area used for major mechanical and body work, straightening of body parts, body repairs, battery rebuilding, painting, welding, short term (less than 72 hours) storage of automobiles not in operating condition, outdoor work on vehicles, or other work involving noise, glare, fumes, smoke, or other characteristics to an extent greater than normally found in auto service stations. Includes general maintenance activities including but not limited to replacement of filters, fluids, light bulbs, belts, fuses, and tire; emissions testing; and similar activities. Includes emissions testing services that test the emissions of automobiles or other vehicles to determine compliance with state or federal emissions requirements.
Automobile or vehicle dealership	A facility for the sale or rental of automobiles, motorcycles, trucks, tractors, construction or agricultural equipment, motor homes and RV
Building material sales & services	Retailing, wholesaling or rental of building supplies or construction equipment. Examples include lumberyards, hardware / home improvement sales and services, paint, tool and equipment sales or rental establishments.
Car Wash	A building or part of a building with facilities for the simultaneous washing of automobiles. It does not include the additional activities permitted in "auto and truck repair".
Commercial and Industrial Machinery and Equipment Rental and Leasing	Establishments primarily engaged in renting or leasing machinery and equipment for use in business or industrial operations. These establishments typically cater to a business clientele and do not generally operate a retail-like or store-front facility. Examples include the sale or leasing of farm equipment and supplies, heavy equipment, office furniture or equipment, machinery tools (construction equipment sales and service), or off-highway transportation equipment.
Gasoline or diesel fuel sales	An area used exclusively for retail sales of fuels oils, CNG, and electric charging station. This use may have storage tanks and pumps, vehicle service and repair facilities conducted inside the building, or an accessory car wash.
Manufactured Home Dealers	Establishments primarily engaged in retailing new and/or used manufactured homes (i.e., mobile homes), parts, and equipment.
Truck stop	A structure or land intended to be used primarily for the sale of fuel for trucks and usually incidental service or repair of trucks. This includes a group of facilities consisting of those uses and attendant eating, sleeping, or truck parking facilities. As used in this definition, the term "truck" does include any vehicle whose maximum gross weight is more than 10,000 pounds.
Public/Civic/Institutional	
Day Care:	
Adult day care	A licensed establishment operated and maintained to provide care or supervision during the day, such as social activities, minor health care assessments, meals, and recreation, for five or more persons 18 years of age or older. The facility is not used as a residence. The definition does not include halfway houses for recovering alcohol and drug abusers.
Child care facility, commercial	A facility that is licensed as such by the State of Louisiana and provides non-medical care to children, normally for periods less than 24 hours. It serves more than six children and/or is operated by a person who is not a resident of the site.
Child care facility, residential	A facility that is licensed as such by the State of Louisiana and provides for non-medical care to children, normally for periods less than 24 hours. It serves six children or less, and the operator is a resident of the site.
Assembly:	
Cemetery/mausoleum/columbarium	A burial ground, place of interment, or premise for the storage of deceased humans or pets.
Church or worship center	A place of religious worship and instruction. Accessory uses requiring independent approval include (1) an associated private school, and (2) child care.
Exhibition, convention, or conference facility	A facility with exhibition halls and/or conference rooms used for assemblies or meetings of individuals or representatives of a group sharing common interests. This does not include clubs, lodges, community meeting facilities, or other meeting facilities of private or non-profit groups that are primarily used by group members.
Banquet, reception or event hall	Any building(s) and its premises used for the exclusive purpose of hosting social functions, ceremonies, gatherings, parties or other events (See §89-95-3)
Club or lodge (private)	A non-profit association of persons which owns, rents, or leases a building, or portion thereof; the use of such premises being restricted to members and guests. This includes a fraternal organization.
Government / Non-Profit:	
Armory	A building or group of buildings used primarily for housing and training troops or for storing military property, supplies, or records.

Detention or penal institution	A facility where persons are detained pending adjudication or confined under criminal sentences. Examples include community correctional facilities, correctional facilities or juvenile detention facilities.
Vehicle / equipment maintenance facility	A facility providing maintenance and repair services for vehicles and equipment and areas for storage of equipment and supplies. This classification includes construction yards, equipment service centers, transit vehicle storage and servicing, and similar facilities.
Public Safety Facility	A facility for public safety and emergency services, such as police, fire protection, police and fire training facilities, and ambulance and emergency services, administrative facilities for emergency medical care, and blood and organ banks. This includes accessory transportation services and vehicle maintenance.
Social assistance, welfare, and charitable services	Establishments that provide social assistance services directly to clients such as children, elderly persons, disabled persons, homeless persons, or veterans. Social assistance may include food, medical relief, counseling or training. Examples include adoption agencies, youth centers (except recreational only), child guidance organizations, youth self-help organizations, foster care placement services, community action services agencies, marriage counseling services (except by offices of mental health practitioners), crisis intervention centers, multipurpose social services centers, family social services agencies, self-help organizations (except for disabled persons, the elderly, persons diagnosed with intellectual and/or, developmental disabilities), family welfare services, suicide crisis centers, hotline centers, telephone counseling services, community food services (includes collection, preparation, and delivery of food, clothing and blankets for needy persons).
Postal services	Establishments that provide mail services, including delivering items (such as letters and small parcels that can be handled by one person without using special equipment. Sorting and transportation activities, where necessary, are generally mechanized.
Educational:	
College / technical school	A "college" is a post-secondary educational institution authorized to award associate, baccalaureate, or higher degrees, or a seminary. A "technical school" is a specialized institution of learning which offers secondary or post-secondary instruction in business, trade, vocational, or other technical subject matter.
School (public or private)	An institution of learning which offers instruction in the several branches of learning required to be taught in the public schools of the state.
Personal instructional services	The provision of instructional services such as tutoring and exam preparation, language, photography, fine arts, crafts, dance or music studios, exercise studios, art studios, driving schools, employment training, diet centers, and beauty schools. This includes incidental retail sales, or light assembly and offices relating to training or instruction.
Medical:	
Hospital or sanitarium	A "hospital" is a place devoted primarily to the maintenance and operation of facilities for the diagnosis, treatment, or care for at least 24 hours in any week of 3 or more non-related individuals suffering from illness, disease, injury, or deformity, except homes for the aged or nursing or convalescent homes. A "sanitarium" is an institution for the recuperation and treatment of victims of physical or mental disorders.
Medical office, clinic, or laboratory	Examples include medical offices, laboratories, or facilities for medical, optical, orthotic, prosthetic, psychiatric, physiotherapy, surgical, or dental laboratory services, photographic, analytical, or testing services. A clinic is a building designed for or used by any combination of physicians, surgeons, dentists, psychiatrists, physiotherapists, or practitioners in related specialties, and who do not offer in-patient care.
Arts, Entertainment, & Recreation:	
Adult business	See Section 18-3 of the Code of Ordinances.
Civic Spaces	A park, playground, natural area, or open space that is open to the general public or on a non-profit basis. Examples include tennis clubs, central squares, neighborhood parks, recreational facilities, picnic facilities, public recreation areas, and accessory food concessions.
Cultural facility	An institution engaged primarily in the performing arts or in the display or preservation of objects of interest in the arts or sciences that are open to the public on a regular basis. Examples include performing arts centers for theater, dance and events, museums, historical sites, art galleries, artist/artisan studio or shop, libraries/reading rooms, zoos, aquariums and observatories.
Entertainment facility	An establishment where the primary source of revenue is derived from live or recorded performances shown or played for the amusement of an audience. Examples include music clubs and dance halls.
Health/fitness club	An establishment that offers exercise or weight control programs whether or not the business provides any other service. Examples include gymnasiums, martial arts schools, gymnastics schools, weight control establishments/reducing salons, health clubs, health spas, swimming pools, handball facilities, racquetball or tennis club facilities, tanning facilities, fitness facilities, and yoga or workout studios.
Recreational Facility, Indoor	Buildings or structures principally devoted to recreational activities or nongambling games, leisure and recreation services to the public or to members. Examples include the following uses when they are conducted indoor: ice or roller skating rinks, bingo parlors, billiard parlors, bowling centers, pool rooms, miniature golf courses, amusement arcades, tennis clubs, swimming pools, non-commercial community centers, play courts, shooting facilities, batting cages, go-cart or dirt-bike courses, skateboard areas, and water slides or water parks.
Recreational Facility, Outdoor or Major	Large, generally outdoor facilities, such as: outdoor roller or ice-skating rinks, sports stadiums and arenas; amusement and theme parks; racetracks; swimming or wave pools; entertainment complexes; amphitheaters; drive-in theaters; archery or shooting ranges; riding academies; miniature golf; golf courses, driving ranges, and country clubs; marinas; and similar facilities.
Theater	A facility with fixed seats for the viewing of movies or live presentations of musicians or other performing artists.

Industrial / Production	
Manufacturing & Employment:	
Contractor	The facilities for a specialized trade related to construction, electric, glass, painting and decorating, welding, water well drilling, sign making, or similar items. Includes storage yards (for equipment, materials, supplies and/or vehicles), roofing and sheet metal, elevator maintenance and service, and venetian blind and metal awning fabrication and cleaning.
Data Processing, Hosting, and Related Services (including data centers)	Establishments that provide infrastructure for hosting or data processing services. These establishments may provide specialized hosting activities, such as web hosting, streaming services or application hosting; provide application service provisioning; or may provide general timeshare mainframe facilities to clients. Data processing establishments provide complete processing and specialized reports from data supplied by clients or provide automated data processing and data entry services.
Dirt pit, sand pit or similar excavation	An excavation from which extracted dirt, clay, sand or gravel is or may be used at the same location or may be transported for use at a different location and which has one or more of the following characteristics: (1) Exceeds a total surface area of ten acres; or (2) The excavated area exceeds an average depth of 25 feet at any time after the commencement of excavation; or (3) The time needed for completion will exceed 180 days.
Industrial Services	A business that provides cleaning, washing, or similar services to industrial, manufacturing, medical or business establishments. An example includes commercial launderer that launders and dry cleans clothing and other fabric articles in bulk quantities, such as cleaning services for hospitals, restaurants, hotels, and similar clients, or rug and dry-cleaning plants.
Media Production	Establishments that produce, manufacture, arrange for the manufacture, or distribute motion pictures, videos, television programs, television commercials, and music and sound recordings. This includes specialized motion picture or video postproduction services, such as editing, film/tape transfers, titling, subtitling, credits, closed captioning, and computer-produced graphics, animation and special effects, and developing and processing motion picture film. Examples include motion picture film laboratories, stock footage film libraries, postproduction facilities, teleproduction services, and sound recording studios. It does not include graphics, editing, or similar work that occurs in an office (see Commercial / Mixed-Use - Office category, above).
Mining & quarrying	The extraction of metallic and nonmetallic minerals, including sand and gravel pit operations.
Manufacturing, Light	The manufacturing or processing of materials employing electrical or other unobjectionable motive power, utilizing hand labor, or other unobjectionable machinery or processes, and free from any objectionable odors, fumes, lint, vibration, or noise. An example is jewelry manufacturing.
Manufacturing, General	Manufacturing of products, from extracted or raw materials, or recycled or secondary materials, or bulk storage and handling of those products and materials. These include apparel (including clothing, shoes, dress making), brooms, caskets, food/baking (including coffee roasting, creameries, ice cream, ice, frozen food, confectionery, and beverage), tobacco products, fasteners and buttons, gaskets, leather and allied products, medical equipment and supplies, mill work and similar woodwork, mattresses, musical instruments, novelties, office supplies, printing and print supplies, signs, sporting goods, textiles (including dyeing, laundry bags, canvas products, dry goods, hosiery, millinery), and toys. This includes similar establishments, and businesses of a similar and no more objectionable character. It also includes incidental finishing and storage. Goods or products manufactured or processed on site may be sold at retail or wholesale on or off the premises. This does not include any activity listed under Intensive Manufacturing.
Manufacturing, Intensive	Manufacturing of paper, chemicals, plastics, rubber, cosmetics, drugs, nonmetallic mineral products (such as concrete and concrete products, glass), fabricated metal products (including electroplating, hardware), primary metals, acetylene, cement, lime, gypsum or plaster-of-Paris, chlorine, corrosive acid or fertilizer, insecticides, disinfectants, poisons, explosives, paint, lacquer, varnish, petroleum products, coal products, plastic and synthetic resins, electrical equipment, appliances, batteries, machinery, and transportation equipment. This group also includes smelting, animal slaughtering and oil refining.
Oil and gas company (drilling and exploration)	Establishments that operate and/or develop oil and gas field properties. Activities may include exploration for crude petroleum and natural gas; drilling, completing, and equipping wells; operating separators, emulsion breakers, desilting equipment, and field gathering lines for crude petroleum and natural gas; and all other activities in the preparation of oil and gas up to the point of shipment from the producing property.
Research and development	The investigation into the natural, physical, or social sciences, and that includes product development or testing. This does not include research, engineering or similar activities that occur indoors in an office environment, which is classified separately under Commercial / Mixed-Use - Office, above.
Oil and mining support activities	Establishments that support oil extraction or minerals mining, including exploration, sampling, excavating, drilling, surveying, and similar activities. This includes oil field service companies and oil field supplies and machinery.
Stone cutting	Establishments that cut, shape, and finish marble, granite, slate, and other stone for building and miscellaneous uses, or that buy or sell partly finished monuments and tombstones.
Warehousing, Storage & Distribution:	
Building and landscaping materials supplier	A business that sells building materials or landscaping where the majority of sales are wholesale transactions to other firms, not retail sales.
Building maintenance services	An establishment providing carpet cleaning, carpentry, roofing, exterminator, glazing, janitorial services, electrical repair, plumbing, heating and air conditioning (sales and service), upholstery, painting and paper hanging, sign painting, or rug cleaning.
Freight depot (railway and truck)	Distribution facilities upon which storage and warehousing of cargo is incidental to the primary function of freight shipment, and not to include any display of goods for either retail sale or wholesale. Includes both railway and truck freight transfers.
Fuel Distribution or Recycling	A facility dedicated to: (1) wholesale or commercial fuel storage and distribution, including petroleum, biodiesel, propane, butane, natural gas, or other similar fuels, to vehicles, machinery, or heavy equipment, or (2) the collection,

	storage, and processing of waste oil product for conversion into useable fuel products such as biodiesel, and may include storage and sales of resulting useable fuels. This does not include auto service stations.
Machinery and heavy equipment sales and service	The retail sales and accessory repair of construction, agriculture, excavation, and similar machinery and equipment, including tractor-trailers.
Self-service storage facility	A building or group of buildings in a controlled access compound that contains varying sizes of individual, compartmentalized, controlled access stalls or lockers for the storage of customers' residential and/or commercial goods.
Oil & gas storage	A tank farm or outdoor facility to store oil and gas. Includes bulk plant (petroleum).
Outdoor storage	Materials, goods, vehicles, or equipment kept or placed outside an enclosed structure for twenty-four (24) hours or more. Includes pipe storage and sand and gravel storage yards.
Vehicle towing and storage facility	Establishments primarily engaged in towing light or heavy motor vehicles, along with incidental services such as storage and emergency road repair services.
Wholesale distribution, warehousing and storage	The storage of goods, and the sale of goods to other firms for resale, including activities involving significant storage and movement of products or equipment. Examples include warehouse or produce/fruit/food storage and wholesale structures, carting, express crating, hauling, cold storage, feed locker plants, dry goods wholesale, hardware storage, and wholesale, paper supplies, shoes, sporting goods, professional and commercial equipment and supplies merchant wholesalers (such as restaurant supply sales), and otherwise preparing goods for transportation. This may include fulfillment centers that combine storage with call centers.
Infrastructure	
<i>Transportation / Parking:</i>	
Airport	Any area of land or water which is used or intended for the landing and taking off of aircraft, and any appurtenant areas which are used or intended for use for airport buildings or other airport facilities or rights-of-way, including all necessary runways, taxiways, aircraft storage and tie-down areas, hangers, public terminal buildings and parking, helicopter pads, support activities such as airport operations and air traffic control, and other necessary buildings and open spaces. Includes dusting services.
Ground passenger transportation (e.g. taxi, charter bus)	Establishments that provide passenger transportation by bus, charter bus, automobile, limousine, van, or shuttle. Some services (such as taxi) are not operated over regular routes and on regular schedules. Examples include charter bus, special needs transportation, taxicab owner/operators, taxicab fleet operators, or taxicab organizations. This does not apply to publicly operated bus or mass transit systems. Includes fleet services that store, maintain, repair, fuel, and service two or more vehicles owned by a single commercial or public entity.
Helicopter / miscellaneous air transportation	Facilities intended solely for takeoff and landing of helicopters, or for miscellaneous transportation vehicles for scenic purposes such as balloons.
Parking facility	A parking lot or a parking garage offering parking to the public and is the principal use of the premises. "Parking lot" is an off-street, ground-level, and open area for the temporary placement of operable motor vehicles. A "parking garage" is a multi-level structure for the temporary placement of operable motor vehicles. Automobile fuels and oils are not sold and motor vehicles are not equipped, repaired, hired, or sold in a parking facility
Railroad facilities	A facility for freight pick-up or distribution by rail. This may include specialized services for railroad transportation including servicing, routine repairing (except factory conversion, overhaul or rebuilding of rolling stock), and maintaining rail cars; loading and unloading rail cars; and independent terminals.
Railroad right-of-way	A strip of land with tracks and auxiliary facilities for track operation, but not including freight depots or stations, loading platforms, train shed, warehouses, car or locomotive shops, or car yards.
Passenger depot	Facilities for passenger transportation operations, and holding facilities, which includes rail stations, bus terminals, urban and regional transit stations and scenic and sightseeing facilities, but does not include airports and heliports. This includes accessory parking facilities. This does not include transit shelters, which are permitted in all districts.
Transit shelter	A roofed structure with at least three (3) walls located on or adjacent to the right-of-way of a street, and which is designed and used primarily for the protection and convenience of bus passengers.
<i>Utilities:</i>	
Utility, Major	A building or other structure for water supply (including water distillation) or wastewater treatment or the production of electricity, steam, air conditioning, hot water or chilled water for consumption by the general public.
Utility, Minor	All lines and facilities related to the provision, distribution, collection, transmission, or disposal of water, storm water, communications, electricity, transportation, gas, steam, and similar public services, and may include storage for vehicles and equipment necessary to provide those services. This includes facilities that are necessary to support legally established uses and involve only minor structures such as electrical distribution lines, water or sewer pumping stations, water storage facilities, telephone exchanges, switch boxes, transformer boxes, cap banks, and underground water and sewer lines. This does not include "communications facility" or "wireless communication tower" as defined below, which refer to the point of transmission rather than distribution systems such as cable networks.
<i>Communications facilities:</i>	
Communications facility	Broadcasting and other communication services accomplished through electronic mechanisms. Examples include radio, television or recording studios, switching centers and cable transmitting stations.
Wireless communication tower or antenna	Antenna support structures for mobile and land based telecommunication facilities, such as whip antennas, panel antennas, microwave dishes and receive-only satellite dishes, cell enhancers and related equipment for wireless transmission from a sender to one or more receivers, such as for mobile cellular telephones, mobile radio systems facilities and commercial radio service. This facility includes a monopole tower, a steel lattice tower and any self-supporting communication tower. This use may include an unmanned equipment shelter.

Weather or environmental monitoring station	A facility with instruments and equipment that measures atmospheric conditions (typically to provide current weather information or a basis for weather forecasts), air or water quality, soil conditions, or similar variables.
Waste-related:	
Hazardous waste disposal	A facility where hazardous or infectious waste material is incinerated, landfilled or put to other final disposition.
Hazardous waste transfer	A facility where hazardous or infectious waste is received and processed for transportation to another place for recycling, re-use, incineration or final disposal.
Junk yards	A facility or area for storing, keeping, abandoning, selling, dismantling, shredding, compressing, demolishing, or salvaging scrap, discarded material or equipment. This includes metal, paper, rags, tires, bottles, motor vehicles or motor vehicle parts, machinery, structural steel, equipment and appliances. Examples of "junkyard" include: (1) Facilities or sites for separating trash and debris from recoverable or recyclable resources, such as paper products, glass, metal cans and other products; and (2) Facilities or sites where damaged and/or wrecked and/or dismantled and/or partially dismantled motor vehicles are stored for periods of longer than 90 days; and (3) Facilities and sites where motor vehicle parts may be removed and stored, sold or salvaged.
Recycling plant	A facility in which recyclable material only is collected, processed, separated, and/or baled in preparation for shipment to others who will use those materials to manufacture new products. Recyclable material includes metals, glass, plastics, wood, paper, and other similar materials that may be used in the manufacture of new products. Recycling plants shall not collect vehicles for salvage, hazardous materials, compost, or rubbish.
Remediation Services	Establishments primarily engaged in one or more of the following: (1) remediation and cleanup of contaminated buildings, mine sites, soil, or ground water; (2) integrated mine reclamation activities, including demolition, soil remediation, waste water treatment, hazardous material removal, contouring land, and revegetation; and (3) asbestos, lead paint, and other toxic material abatement.
Solid waste	A fixed facility where non-hazardous wastes are taken from collection vehicles, temporarily stored, and ultimately relocated to a permanent disposal site. It does not include an incineration facility. Examples include transfer stations (prohibited in Lafayette Parish under Ordinance No. O-263-2011), disposal areas, and waste management services such as pumping (i.e., cleaning) cesspools, portable toilets, or septic tanks; cesspool cleaning services; sewer cleaning and rodding services; portable toilet renting and/or servicing; and sewer or storm basin cleanout services.
Agriculture	
Farming	Any parcel of land which is used for gain in the raising of agricultural products, livestock, poultry, or dairy products. It includes necessary farm structures within the prescribed limits and the storage of equipment used.
Poultry and egg production	Establishments engaged in breeding, hatching, and raising poultry for meat or egg production. Examples include hatcheries and poultry storage and dressing.
Community garden	A site operated and maintained by an individual or group to cultivate trees, herbs, fruits, vegetables, flowers, or other ornamental foliage for the following uses: personal use, consumption, donation or off site sale of items grown on the site.
Crop Agriculture	An area of land managed and maintained by an individual or group of individuals to grow and harvest food crops and horticultural products (including flowers, trees, and bees and apiary products) for off-site sale in locations where retail sales are an allowed use. Crop agriculture may be a principal or accessory use.
Community Supported Agriculture	An area of land managed and maintained by an individual or group of individuals to grow and harvest food and/or horticultural products for shareholder consumption or for sale or donation.
Accessory	
Accessory use (generally)	A use customarily incidental and subordinate to the principal use or building and located on the same lot with the principal use or building.
Accessory commercial uses	Commercial uses that are accessory to multi-family residential buildings.
Accessory farm use	Buildings, corrals, coops, stables or structures used in conjunction with farming or ranching.
Accessory schools	An educational use, such as a kindergarten, that is accessory to a multi-family residential building.
Accessory retail and personal service, office, or recreational use	A retail, office, or recreational use that is subordinate to and incidental to the primary use, that primarily serves the employees of the primary use.
Caretaker or guard	A home, apartment, manufactured home, or other unit built to residential occupancy standards for use as the residence of the caretaker or guard.
Construction yard	A temporary area used for the storage of construction materials, supplies, equipment, tools, stock piling and recycling of useable construction materials and other items as permitted including temporary storage containers, construction trailers and temporary office trailers.
Home occupation	A commercial use conducted within a dwelling unit by its resident(s), which is clearly secondary to the use of the dwelling for living purposes, and which does not change the residential character of the dwelling unit or its surroundings.
Model home complex / temporary real estate sales office	A "model home complex" is a group of at least two (2) dwelling units that are temporarily used for display purposes as an example of dwelling units available or to be available for sale or rental in a particular subdivision or other residential development approved by the City. Model homes may also incorporate sales or rental offices for dwellings within the development. A "temporary real estate sales office" is an office or a model home used to sell homes or buildings while the property is under development. The sales may occur in a permanent building, or in a trailer or manufactured home.
Parking garage, private	A space intended for or used by the private automobiles of households, businesses, government or non-business entities resident on the lot.
Pharmacy, accessory	A pharmacy or pharmacy supply facility accessory to a medical office, clinic, or laboratory that sells medical items where the total square footage does not exceed 10% of the building square footage. The accessory pharmacy is contained within the principal medical building.

Recreational facility, accessory	A recreational facility for the exclusive use of members and their guests, or solely for the use of employees of a permitted business use. This may include swimming pools, tennis courts, exercise facilities, and similar indoor activities. It does not include golf courses, which are classified separately.
Sign	See §89-90 (“Signs”)
Storage	Containers or bins that are used for on-site temporary storage generally for the purposes of moving.
Miscellaneous	
Temporary Uses	See §89-92 (“Temporary Uses”)

89-22 Overlay Districts

A set of regulations which apply to a specific geographic area in addition to the underlying zoning districts and existing zoning and development regulations is commonly known as an “overlay district.”

The Louisiana Avenue Zoning and Development Overlay District, The Louisiana Avenue Interstate 10 Zoning and Development Overlay District, and the University Avenue Zoning and Development Overlay District, shall remain in full force and effect. The standards for governing zoning and development within the overlay districts are set forth in Appendix A of this chapter.

89-23 Reserved

89-24 Reserved

COMMUNITY DEVELOPMENT & PLANNING DEPARTMENT
220 West Willow Street, Building B
Lafayette LA 70501

Hours: 7:00 a.m. - 4:00 p.m.
Phone: 337-291-8000
Email: DP@LafayetteLA.gov

DIRECTOR: Mary Sliman
Public Records Request

PLATTING OF LAND

Subdivision is the process of dividing one parcel of land into two or more parcels and involves the layout of a parcel of vacant land into lots, blocks, streets and public areas. A plat of property, following the approval of the Planning Commission, is recorded with the Lafayette Parish Clerk of Court.

Platting is used for managing community growth and for implementing the Comprehensive Plan. The rules and procedures for platting can be found in the subdivision regulations. These regulations are administered by the Development and Planning Department.

There are a number of reasons why developers and citizens alike seek plat approval by the Planning Commission. These include:

State law requires that prior to the sale or donation of any property, it must be platted and approved by the Planning Commission.

Lot purchasers have some degree of official protection simply because a uniform set of standards is used to review the subdivision prior to its legal registration.

Taxpayers and subdividers are assured through the approval process that all subdivisions will be constructed to established standards.

In order to obtain a permit for new residential or commercial construction, a plat of the property must have been approved or considered a “lot of record” by the Planning, Zoning and Development Department. There are three (3) avenues for plat approval:

[Planning Commission \(link to Planning Commission page\)](#)

[Hearing Examiner](#)

If the property being platted is five (5) acres or less in size, five (5) lots or less, and does not create any new public or private streets, then it can be reviewed through the Hearing Examiner process. The Hearing Examiner process takes approximately 10-15 days to complete.

The Director of the Development and Planning Department (or his/her designee) acts as the Hearing Examiner for the Planning Commission. The review process is the same as the Planning Commission, however, the approval time is shorter.

The Planning Commission must ratify all actions of the Hearing Examiner. Any action of the Hearing Examiner can be appealed to the Planning Commission.

[Hearing Examiner Meeting Dates](#)

[Hearing Examiner Agenda](#)

[For a Hearing Examiner Application, please click here.](#)

[For a Hearing Examiner Variance Application, please click here.](#)

[Boundary Line Adjustments \(BLA\) – \(application\)](#)

PLANNING COMMISSION

If the property being platted is greater than five acres in size, or if five or more lots are being created, or if new public or private streets are being dedicated, then the plat must be approved by the Planning Commission.

Approval by the Planning Commission generally takes between 30-45 days to complete. Since the property being platted is usually a large tract of property, and new streets are being created, the review and approval time needs to be more detailed.

The plat is reviewed by the Areawide Development Review Committee (ADRC) for compliance with drainage, transportation, zoning, utilities, etc. The ADRC make a recommendation of approval, conditional approval or denial to the Planning Commission.

The Planning Commission holds a public hearing on the proposed development and votes to approve, conditionally approve or deny the development. Parish Commission meetings are held once a month, on the second Monday of the month at 5:00 p.m. City Commission meetings are held once a month, on the third Monday of the month at 5:00 p.m.

City Planning Commission Meeting Dates
Parish Planning Commission Meeting Dates
City Planning & Zoning Commission Members

Parish Planning Commission Members

Applications for plat approval are accepted the first Thursday of the month. For an application please click [here](#).

PROPERTY ADDRESSES

The Development Division of the Department of Development and Planning issues municipal addresses for the City of Lafayette, unincorporated areas of Lafayette Parish, Carencro, Scott, and Youngsville. We have worked closely with the Geographic Information Services Division to create a Point Address Layer over the existing aerial photography. Citizens are able to identify property in Lafayette Parish by addresses and determine if it is located within the corporate limits of Lafayette, Carencro, Broussard, Duson, Scott, Youngsville or the Unincorporated Area of the Parish.

Master Street Index

Should you need to be issued a new property address, it must be issued from the office of Development and Planning.

BOARD & ZONING ADJUSTMENT (BOZA)

Site Approval and Requests for Variance of Zoning Regulations

Individuals and building contractors visit the Development Division of the Development and Planning Department to request Building Permits for residential construction, both new and remodeling. Planners review plans to insure that the proposed use is permitted in the property's zoning district and that such requirements as minimum building setbacks, parking, fencing, signage, and landscaping are met.

In some instances, when an applicant is unable to meet the requirements, he or she may apply to the Board of Zoning Adjustment (B.O.Z.A.) for a "Variance" of the specific requirement that would otherwise prevent development of a site. The Board meets monthly to consider and decide on these requests. Since action by the City-Parish Council is not required, a citizen can receive final action at the meeting and proceed with construction, within approximately 45 days.

Board of Zoning Adjustment Calendar
Board of Zoning Adjustment Agenda
Variance Application

BOZA Membership
Chris German, Chairman

Garland Pennison

Chelsi LeBlanc

Melissa Llewellyn

Rebekke H. Miller, Alternate #1

Melanie Guillot Bordelon, Alternate #2

All correspondence with the Board members must be directed through the Development and Planning Department at 337-291-8426, mailing address:

Lafayette Consolidated Government
Development and Planning Department
PO Box 4017-C
Lafayette, LA 70502

Please do not contact the individual Board members as it may be in violation of the Board's Rules of Policy and Procedure and may affect the outcome of any Board decision. If you feel it imperative to speak with a Board member prior to a meeting, contact the Development and Planning Department and we will relay your message to the member involved.

HEARING EXAMINER

If the property being platted is five (5) acres or less in size, five (5) lots or less, and does not create any new public or private streets, then it can be reviewed through the Hearing Examiner process. The Hearing Examiner process takes approximately 10-15 days to complete.

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Hearing Examiner Meeting Dates

For a Hearing Examiner Application, please [click here](#).

For a Hearing Examiner Variance Application, please [click here](#).